

EMPLOYEE POLICY MANUAL & HANDBOOK



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POLICIES

ADMINISTRATIVE PRIVILEGES POLICY

The following document applies to all university employees and computers, including Information Technology Services (ITS) employees and computers.

Running a computer system with administrative privileges represents a significant risk to the confidentiality, integrity, security, and availability of the University's information assets. However, without elevated administrative privileges, a user cannot immediately install or update some software and/or hardware and must wait for ITS support, which causes an inconvenience for the user and increases the expense of maintaining the University's computer assets. Therefore, under the direction of the university administration, ITS enables automated temporary access to elevated administrative privileges for each employee on their assigned computer to perform job-related duties.

All university-owned computers must:

- Be joined to the University's active directory domain;
- Have management software installed that facilitates hardware or software inventory for asset tracking, license compliance, software installation/upgrading, remote assistance, or troubleshooting;
- Have active, properly configured security (anti-virus, malware, etc.) software;
- Have service packs and/or patches deemed necessary by ITS.

NOTE: Exceptions to the above can be made by the Chief Information Officer.

Administrative Privileges Agreement

Every university employee has automated temporary access to elevated administrative privileges for job-related duties on their university-assigned computer and is required to abide by the following:

- Users will not alter the computer's firewall, antivirus, or any other security software;
- Users will not create any new user accounts or modify any existing accounts;
- The ITS department will continue to provide operating system patches, application software patches, antivirus/malware updates through the system wide client management platform to all University owned computers. Users will not block or in any manner disable or revise any services on the computer that may prevent these or other routine maintenance procedures including scheduled antivirus/malware scans;
- Users will maintain software licensing information for any software personally installed on their assigned computer;
- User will not share their username or password with others (ITS can provide assistance in establishing options for securely sharing items between users);
- Users will not install or use software that is considered insecure. If there are questions concerning the validity of any software, the user should contact ITS prior to installing;
- Users agree that ITS has the right to temporarily block the computer from the university network at any time if the computer is suspected to be a security or support risk;
- Users will be responsible for backing up their data. ITS will not be able to restore a configuration customized by the user. In the event of a computer failure, ITS will restore the original base image on the computer. The base image includes an operating system, and any software maintained by the ITS department;
- Users agree that, in the event their elevated administrative privileges result in a security compromise, they may be held responsible for any damages that may result to the full extent

allowed by university policy, local, State, and/or Federal law.

Privileges Revocation

A user's elevated administrative privileges may be revoked for any of the following reasons:

- User is involved in a data breach that is related directly to their having administrative privileges;
- User is downloading or installing software that is illegal or malicious to the University's IT Resources;
- User is downloading or distributing copyrighted material without permission and can't demonstrate "fair use" (<http://www.copyright.gov>)
- User requires excessive support from ITS staff. Excessive support is defined as frequent incidents requiring ITS staff to spend time returning a computer's operating system or software to a properly functioning state.

Decisions to revoke a user's elevated administrative privileges will be made collaboratively by the Executive Director of ITS and the immediate supervisor of the assigned user based on documentation of any of the above conditions. Revocation of privileges will be communicated in writing to the user upon execution. If the Executive Director and the user's immediate supervisor are unable to reach a mutually acceptable agreement, either may appeal to the Technologies Advisory Committee (TAC) for a decision. The committee may be reached by sending a written request to the TAC Chair. The Chair will respond to appeal requests in writing to the requester within 15 business days. In the meantime, prior to the TAC's official decision, revocation of elevated administrative privileges is at the discretion of the Executive Director.

A user's previously revoked administrative privileges will not be restored without a written request from the user. After a period of 90 days, a user may request the reinstatement of their previously granted elevated administrative privileges by sending a written request to the Executive Director and their immediate supervisor. The decision process will consider the documentation and/or decision that led to the revocation and the user's computer use record during the prior 90 days. If the decision is made to continue without elevated administrative privileges, the user may continue to request reinstatement every 90 days. Any reinstatement request that is less than 90 days from the initial revocation or from a previous reinstatement request will not be accepted.

A user whose administrative privileges are revoked and not restored may appeal the decision with the TAC. The committee may be reached by sending a written request to the Executive Director and the TAC Chair. The committee will respond to appeal requests in writing to the requester within 15 business days.

Approved by the Shared Governance Executive Committee and the President, 02/06/2014.

Approved as modified by the SGEC and the President, 03/15/2021.

BACKGROUND CHECKS

In order to verify the pertinent backgrounds of individuals before being hired into positions at The University of North Alabama, the University conducts a pre-employment background check as part of its employment procedures. The University contracts with an outside agency to perform the background checks. The cost for the checks is to be borne by the University. At minimum, a criminal records search and verification of social security number is required for all recommended candidates for faculty and staff positions. * As such, the background checks are conducted by the Office of Human Resources (HR) only upon receipt of a

recommendation to hire a candidate for a position. A pre-employment credit history check will be conducted for selected candidates for, but not limited to, the following positions:

- Senior and executive level management positions;
- Positions with access to university financial and/or sensitive information, records/databases;
- Positions handling cash and checks on a regular basis.

Job postings for positions subject to background investigations will contain notification to applicants that, prior to hiring, the final candidate must successfully pass a pre-employment background investigation. As a general rule, the results of the investigation must be received before an offer of employment can be made. However, under extreme circumstances, an offer of employment may be made prior to the completion of the background check provided the employment letter states that employment is contingent upon a satisfactory report. For this particular situation, the employment letter must contain the following statement: "This offer is contingent upon the completion of a background investigation which reveals satisfactory results."

Background Investigation Procedure

During completion of a staff/service employment application or a faculty profile application, candidates will be notified of the proper disclosures and asked to authorize the release of information for a background check.

**Background investigations for Teachers at Kilby School and for University Police Officers will continue to be conducted by their respective departments according to state requirements in addition to checks performed by HR.*

Although a background check will include, at minimum, a criminal history and social security number trace, and, for some positions, a credit history, it is the responsibility of the recommending official to check employment and/personal references and to verify required professional licenses and certifications prior to a formal background investigation request being submitted. Academic degrees will continue to be verified through official transcripts for faculty positions, which will be maintained in each selected candidate's personnel file. Academic degrees required for staff positions will be verified through our background check provider as part of the initial background check. If required for a particular position, a Motor Vehicle Report (MVR) may be requested by the recommending official. If a background check shows possible disqualifying information, the Office of HR, in consultation with the recommending official and his/her respective Vice President, will determine whether to exclude the candidate. In making this determination, the following factors should be taken into consideration: the nature and details of the conviction, the length of time that has passed since the offense occurred, how the crime relates to the responsibilities of the position, and any evidence of rehabilitation. However, the President reserves the right to make the ultimate decision concerning the disposition of each candidate.

If the possibility of adverse action exists, the Office of HR will provide a Pre-Adverse Action Notice along with a copy of the consumer report and a notice of rights to the candidate. The candidate has a minimum of five business days to refute information with the provider. If the candidate fails to respond in a timely manner to remove or to clarify the disqualifying information, the recommending manager will be notified by the Office of HR, and he/she may proceed with the selection process and recommend another candidate. If the decision is made not to hire the candidate, a Final Adverse Action Notice is mailed or emailed to the candidate by the Office of HR explaining the reason for not hiring. Background checks revealing misrepresentations may be grounds for immediate rejection of the application. All information received in the background investigation process will be maintained in the employee's personnel file or in a confidential file (for those individuals who are not hired).

BENEFITS PROGRAMS AND INFORMATION

Overview

The University of North Alabama offers a comprehensive benefits program that provides protection and services to meet the needs of its employees throughout various stages of life. To get detailed information about each benefit offered, please refer to the [benefits](#) section of the HR website or to contact the Office of Human Resources at extension 4291.

Benefits Eligibility

The eligibility of staff and service employees for University of North Alabama benefits/privileges is determined by the employee's employment status classification. Each eligible employee must have health insurance under the University's group plan or show proof of being insured under another plan. In addition to the narrative below, a [chart](#) also details benefit eligibility by classification.

Full Time, Regular Faculty (9/12 month) members are eligible for the following benefits:

- Medical/vision and dental insurance (individual and family)
- Basic life and AD&D insurance (after 90 days of employment)
- Long-term disability insurance (after 90 days of employment)
- Sick leave (including personal leave)
- Paid holidays
- Tuition remission (employee, spouse, and a dependent child)
- Teachers' Retirement System participation
- TIAA CREF (403b plan)
- RSA 1 (457 plan)
- Optional life insurance
- Cafeteria plan participation
- Discount athletic tickets
- Supplemental benefits

Full Time, Regular Staff employees and 12-month non-teaching Faculty members are eligible for the following benefits:

- Medical/vision and dental insurance (individual and family)
- Basic life and AD&D insurance (after 90 days of employment)
- Long-term disability insurance (after 90 days of employment)
- Annual and sick leave (including personal leave)*
- Paid holidays
- Tuition remission (employee, spouse, and a dependent child)
- Teachers' Retirement System participation
- TIAA CREF (403b plan)
- RSA 1 (457 plan)
- Optional life insurance
- Cafeteria plan participation
- Discount athletic tickets
- Supplemental benefits

**for non-exempt employees, eligibility begins after 90-day new hire probationary period has been completed*

Three-Quarters'-Time Faculty (9/12 month) members are eligible for the following benefits:

- Medical/vision and dental insurance (individual and family)
- Basic life and AD&D insurance (after 90 days of employment)
- Long-term disability insurance (after 90 days of employment)
- Sick leave (including personal leave)
- Paid holidays
- Tuition remission (employee, spouse, and a dependent child)
- Teachers' Retirement System participation
- TIAA CREF (403b plan)
- RSA 1 (457 plan)
- Optional life insurance
- Cafeteria plan participation
- Supplemental benefits

Three-Quarters'-Time Staff employees are eligible for the following benefits:

- Medical/vision and dental insurance (individual and family)
- Basic life and AD&D insurance (after 90 days of employment)
- Long-term disability insurance (after 90 days of employment)
- Annual and sick leave* (including personal leave): Accrues at an hourly rate based on hours worked.
- Paid holidays
- Tuition remission (employee, spouse, and a dependent child)
- Teachers' Retirement System participation
- TIAA CREF (403b plan)
- RSA 1 (457 plan)
- Optional life insurance
- Cafeteria plan participation
- Supplemental benefits

**for non-exempt employees, eligibility begins after 90-day new hire probationary period has been completed*

Half-Time Faculty members are eligible for the following benefits:

- Medical/vision and dental insurance: If elected, the University pays half of the individual premium.
- Sick leave (including personal leave): Accrues at half the regular rate.
- Paid holidays
- Tuition remission (employee only)
- Teachers' Retirement System participation
- Cafeteria plan participation (for medical and dental only)

Half-Time, Regular Staff employees are eligible for the following benefits:

- Medical/vision and dental insurance: If elected, the University pays half of the individual premium.
- Annual and sick leave* (including personal leave): Accrues at an hourly rate based on hours worked.
- Paid holidays (if scheduled to work)
- Tuition remission (employee only)
- Teachers' Retirement System participation
- Cafeteria plan participation (for medical and dental only)

**for non-exempt employees, eligibility begins after 90-day new hire probationary period has been completed*

Part-Time, Regular Staff employees are eligible for the following benefits: Tuition remission (employee only)

Full-Time, Temporary Staff employees are eligible for the following benefits:

- Medical/vision insurance (individual only): Available to those employees with a contract over 60 days in duration.
- Dental insurance (individual only): Available to those employees with a contract over 9 months in duration.
- Paid holidays (those that fall during employee's regular work period)
- Tuition remission (employee only)
- Teachers' Retirement System (mandatory participation after one year of employment)

Part-Time, Temporary Staff employees are eligible for the following benefits:

Tuition remission (employee only)

Adjunct Faculty/Clinical Assistants/Clinical Supervisors are eligible for the following benefits:

Tuition remission (employee only)

Continuation of Benefits Upon Leave or Separation

An employee is entitled to the continuation of certain benefits during absences due to vacation, sickness, on-the-job injuries, long-term disability, leave without pay or leave of absence, termination, and retirement.

Leave Without Pay, Leave of Absence, and Long-Term Disability: An employee's benefits will remain in effect as long as he/she remains active (defined as being on the payroll). When an employee exhausts his/her leave, is placed in a "leave-without-pay" (LWOP) or "leave-of-absence" (LOA) status, or is placed on long-term disability (LTD), his/her benefit entitlements change. When an employee moves into the LWOP, LOA (without pay for reason of illness), or LTD status, the following outlines how his/her various benefits are handled:

- Accrual of annual and/or sick leave ceases.
- The University continues to pay the employee's individual health/vision and dental benefit premiums for six months from the employee's last day worked or from the last day of paid leave. The employee may continue the family coverage by paying the family premium. After the employee has exhausted his/her six-month entitlement during which the University paid the individual premiums, he/she is no longer eligible for coverage under the University's group plan. However, he or she may continue coverage under the provisions of the Consolidated Omnibus Reconciliation Act (COBRA).
- Employees enrolled in any supplemental insurance coverage(s) must pay the monthly premium for any of the coverage(s) he/she wishes to continue during his/her absence. It should be noted that the University does not contribute the \$6.00 monthly premium credit during period of LWOP, LOA, or LTD.
- The University continues to pay the premiums for Basic life and LTD benefits for six months from the employee's last day worked or from the last day of paid leave.
- When/if an employee returns to full duty from LWOP, LOA, or LTD, his/her health/vision, dental, life, LTD, and any elected supplemental policies will be reinstated effective the date of his/her return provided all employee-paid premiums are current.

Termination: Upon termination, an employee may continue his/her individual health/vision and dental benefits and the coverage for his or her dependents under the provisions of COBRA by paying 102% of the current premium. Basic life and supplemental benefits may be continued by the employee on a direct-pay basis with each benefit provider.

Retirement: If retirement under the TRS occurs:

- Individual or family health/vision and dental insurance coverage under the University's group plan will be discontinued. An employee under the age of 65 who retires under the TRS is eligible for health insurance coverage under the Public Education Employees' Health Insurance Program (PEEHIP). TRS offers other optional benefits such as dental and vision to retirees during its open enrollment period. An employee over the age of 65 who retires under the TRS or reaches the age of 65 after retirement is eligible for health insurance coverage under Medicare and supplemental coverage under [PEEHIP](#).
- University retirees are eligible to elect to continue the basic life coverage at the group rate.
- Selected supplemental benefits may be continued by the employee on a direct-pay basis with each benefit provider.
- Retirees may elect to continue existing dental and/or supplemental vision coverage under the COBRA provisions.

- Miscellaneous benefits available to university retirees:
 - ♦ Full use and check-out privileges at Collier Library.
 - ♦ Upon request, may continue to obtain current decals/tags from the University Police Department which will permit campus parking in spaces reserved for faculty and staff. Without current decals/tags, only the spaces reserved for visitors may be used.
 - ♦ Upon request, may use the Wellness Center in Flowers Hall. Inquiries should be directed to the Administrative Assistant in the department of Health, Physical Education, and Recreation.

Continuation of Benefits During Leave of Absence Without Pay (not related to sickness): Once an employee exhausts his/her accrued leave, he or she may be placed in a leave-without-pay status for short periods of time or leave of absence for periods up to six months. The employee may be eligible to continue his/her health/vision, dental, basic life, LTD, and other supplemental benefits at his/her own expense.

Death Benefits

In the event of the death of an active, full-time or part-time regular employee, the beneficiary selected by the employees entitled to certain death benefits. The Office of Human Resources maintains the forms necessary to establish a beneficiary. There are separate beneficiary forms for each of the benefits listed below. It is suggested that an employee ensures his/her beneficiary information is up to date at all times. Any changes to this information must be made in person in the Office of Human Resources.

If an employee dies before he/she retires from the University, his/her beneficiary is eligible to receive the following:

- Basic Life insurance: In the event of the death of an employee under the age of 65, his/her beneficiary receives one and one-half times the employee's current annual base salary. For active employees, the benefit amount is reduced by 25% every five years starting at age 65.
- Teachers' Retirement System (TRS) death benefits: Members of the Teachers' Retirement System of Alabama have death benefits available through the TRS. The benefits are detailed in the [TRS Member Handbook](#).
- Sick leave benefits: Upon the death of an eligible active employee, a death benefit equal to the unused accrued sick leave balance of the employee or 60 workdays, whichever is smaller, is paid to the beneficiary of the employee or will be included in the amount reported to the Teachers' Retirement System, but not both. For an employee who is not vested, payment of 60 days is the only option. For a vested employee, it is at the discretion of the beneficiary as to how the sick leave will be distributed.
- Annual leave benefits: Upon the death of an employee, the beneficiary receives payment for all accrued annual leave.
- Unpaid earned biweekly or monthly salary (including accrued compensatory time, if any): Upon the death of an employee, that portion of the biweekly or monthly salary earned by the employee is paid to the beneficiary.
- Continuation of health insurance: In the event of the death of an employee who has family health insurance coverage under the University's group plan, the covered spouse and/or dependents are entitled to continuation of health insurance coverage for 36 months under the provisions of COBRA. That law allows the spouse and dependents to remain on the University's group plan by paying 102% of the premiums.

Upon the death of a retiree of the University, the designated beneficiary is eligible to receive the following:

- Basic Life insurance: If the retiree is under the age of 65, his/her beneficiary receives one and one-half times the employee's annual base salary effective the date of retirement. This benefit amount is reduced to \$10,000 upon the end of the month in which the retiree attains age 65 and to \$0 upon the end of the month in which the retiree attains age 70.
- Teachers' Retirement System (TRS) death benefits: Retirees of the Teachers' Retirement System of Alabama have death benefits available through the TRS. The benefits are detailed in the [TRS Member Handbook](#).

CENTERS AND INSTITUTES: POLICIES AND GUIDELINES

The University recognizes the contribution that centers and institutes can make in (a) enriching teaching, research, and service within the academic community and/or (b) advancing institutional goals within the service mission of the institution beyond academics. They also often assist the University in leveraging external funding. Proposals for the establishment of such units require a careful review of their need, role within the institution, and relationship to the mission of the university. The guidelines herein are to be followed for the proposal of a center or institute and an ongoing review of its viability to the university.

Proposals

Any administrative unit of the university may submit a proposal for the creation of a center or institute. The terms centers and institutes are used interchangeably but institutes typically reflect a broader institutional scope.

ACADEMIC	NON-ACADEMIC
Proposals that are academic in nature must have the endorsement of the appropriate department chair(s) and college dean(s). Proposals then are submitted via Courseleaf to the Council of Academic Deans (COAD) for review and initial approval. A proposal with COAD and Provost endorsement next is submitted to the university Executive Council for review and approval.	Proposals for centers or institutes that are non-academic in nature are submitted by the appropriate vice president to the university Executive Council for review and initial approval.
The President has final authority for the approval of centers and institutes.	
The creation of any new center will be shared with the Board of Trustees as a matter of information.	
The creation of any new academic center will be submitted as a formal notification to the Alabama Commission on Higher Education (ACHE).	ACHE notification is not required for non-academic centers.

A proposal must include the following items:

- Purpose of the center or institute;
- Relation to mission of the university;
- Organization chart (to include a reporting structure);
- Budget;
- Objectives;
- External funding partners (if any);
- An advisory board (if needed); and
- Evaluation procedures.

All fundraising, including the establishment of current use and endowment funds, must follow the gift acceptance, spending, and investment policies of the UNA Foundation.

These guidelines recognize that units of the institution that provide ongoing administrative and academic support are often referred to as centers. The guidelines described herein are not applicable to those units.

Structure

Each center and/or institute should have a director (or co-directors). The designation of those individuals(s) shall occur in conjunction with the initial creation of the center or institute and have the approval of the department chair and cost center head/dean. The director is responsible for working with colleagues (and an advisory board, if needed) to meet the mission and purpose of the center or institute and demonstrate compliance with reporting requirements. Periodic evaluation of the performance of the center or institute is the responsibility of the appropriate cost center head/dean, and in the case with academic centers or institutes, in consultation with the chair of the department in which the director resides. Should the performance of the director fail to meet the needs of the center or institute, the cost center head/dean can, in consultation with the department chair and/or advisory board, take action as needed, including the removal of the director. For centers with a multidisciplinary mission, any personnel action shall be collaborative among the respective cost center heads/deans and department chairs.

In the event there is a need for the replacement of a center or institute director, Appendix A outlines the process to be followed.

The creation of advisory boards is encouraged, but not required. The membership of such shall be coordinated by the director with approval by the cost center head/dean and department chair. Advisory boards do not exercise administrative authority over the center or institute.

Reporting Procedures

Centers and institutes are considered a part of the organization structure of the university. As such, the director must compile and submit annual and periodic reports compliant with the guidelines outlined by the university Institutional Effectiveness Committee, utilizing the online process and template.

Periodic Review

Centers and institutes will conduct an audit of their activities and contribution to the university's mission every five years. The report of that audit will be reviewed by the COAD and/or Executive Council to determine continued viability. Should a center or institute be deemed non-viable, it will be afforded the opportunity to provide an improvement plan. A subsequent review after one year will be conducted and a final recommendation will be made to the President by the COAD or Executive Council to either continue the center or institute for an additional four years or discontinue it.

Approved by Executive Council: February 19, 2024

Minor clarification edits by President's Office concerning ACHE notifications: March 11, 2024

COMPUTER NETWORK AND COMPUTER MONITORING POLICY

There is a need to periodically inspect computers and network usage in order to ensure the continued correct operation of the University network and computing resources. The University does not condone censorship, nor does it endorse the routine inspection of electronic files or monitoring of network activities related to

individual use. At times, however, legitimate reasons exist for persons other than the account holder to access computers, electronic files, or data related to use of the University network. Such monitoring is limited to the backup, caching of data, logging of general activity, and usage patterns.

The University may monitor individual usage in the following instances:

- The user has voluntarily made access available to the public;
- To protect the security, functionality, and liability of the University's IT resources;
- Where probable cause exists to believe that the user has violated policy.

Any such monitoring of individual activity, with the exception of when a user voluntarily grants access, must be approved in advance by the Vice President for Business and Financial Affairs (VPBFA) in consultation with the President. The University may also monitor individual usage upon receipt of a legally served directive of appropriate law enforcement agencies. In these instances, the user will not be notified, so as to not impede investigations by proper authorities. The VPBFA must be notified prior to initiation of monitoring. Any violation of these procedures or unauthorized monitoring by the University will be considered "misuse" and personnel involved will be subject to disciplinary action.

Approved by the Shared Governance Executive Committee and the President, 02/06/2014.

Approved as modified by the SGEC and the President, 03/15/2021.

COMPUTER USAGE POLICIES

The University's Computer Usage Policies are located on the Information Technology Services website. Please click on the link above to visit their website.

CONSENSUAL RELATIONSHIPS POLICY

The University of North Alabama (the "University") is committed to providing an environment for work and learning as free as possible from conflicts of interest, favoritism and exploitation. Where an individual exercises direct supervision to coerce another person to enter into a non-consensual relationship, the harm to that person and to the institution is evident. Even where the relationship is consensual, there is significant potential for harm when there is a power difference between the parties involved - - for example, between a supervisor and an employee or between a faculty or staff member and a student. Any evaluation or supervision provided may be suspect in view of such relationship.

A consensual relationship with a subordinate is likely to interfere with the ability of a superior to act and make decisions fairly and without bias. Even if the superior is able to avoid showing favoritism, the other individuals in the learning or workplace environment are likely to see themselves as being less favored and disadvantaged by the personal relationship. Additionally, the damage can continue long beyond the consensual relationship and can make people suspicious of any future professional interactions between the individuals.

The following policy is directed to faculty-student relationships, to staff-student relationships, to employee-employee relationships, and to student paraprofessional staff-student relationships. While the University normally has no interest in private romantic or sexual relationships between individuals, the University has adopted a consensual relationship policy for the following reasons: to avoid the types of problems outlined above, to protect individuals from the type of injury that either a subordinate or superior individual to such

relationship can incur, to protect the integrity of the learning and work environment and evaluation process, and to provide information and guidance to members of the University community. This Policy addresses consensual relations only. Non-consensual or coerced relationships are addressed in the University Policy on Sexual Harassment.

Definitions

For purposes of this policy, the following terms are defined as follows:

Consensual Relationship - Any dating, romantic, sexual, or marriage relationship willingly undertaken by the parties.

Direct Supervision - Includes but is not limited to the following activities: academic instruction, course teaching, formal mentoring, overseeing, directing, examining, grading, advising, supervising, evaluating, recommending, promoting, paraprofessional student staff member duty coverage areas, employing and other employment actions including directly setting of salary or wages, any disciplinary action, including suspension, expulsion and termination, and exercising responsibility for grades, honors or degrees.

Student Paraprofessional - “A paraprofessional is defined as a student who is selected, trained, and supervised in assuming responsibilities and performing tasks that are intended to (1) directly promote the individual personal development of his or her peers, (2) foster the creation and maintenance of environments that stimulate and support residents’ personal and educational development, and/or (3) perform tasks that ensure the maintenance of secure, clean, healthy, psychologically safe, and esthetically pleasing living accommodations.” (*Winston & Fitch, p. 317, 1993*). Students with educational responsibilities; i.e. undergraduate teaching assistants, graduate teaching assistants, and graduate assistants also fall into this category.

Educational Responsibility – The power or authority to evaluate, influence, provide, or control aspects related to a student’s education or professional development. Covered activities include, but are not limited to, teaching, grading, mentoring, advising, evaluating research or other academic activity, serving on a student’s dissertation committee, participating in decisions or recommendations regarding funding or other resources, clinical supervision, and recommending for admissions, employment fellowships, or awards.

Policy Regarding Faculty-Student, Staff-Student, and Paraprofessional Student Staff-Student Consensual Relationships

Interactions between the faculty members, staff members, or paraprofessional student staff members and students at the University are guided by mutual trust, confidence and/or professional ethics. Professional faculty-student, staff-student, or paraprofessional student staff-student relationships have a power differential between faculty members, staff members, or paraprofessional student staff and students; personal faculty-student, staff-student, or paraprofessional student staff-student relationships carry risks of conflict of interest, breach of trust, abuse of power, and/or breach of professional ethics.

Prohibited Relationships

Faculty members and staff members shall not engage in, and are prohibited from, consensual relationships with students whenever a faculty member or staff member has direct supervision with respect to the student. Should a consensual relationship exist prior to the beginning of the professional relationship, or develop, or appear likely to develop, while the faculty member or staff member is, or

would be, in a position of direct supervision over the student, the faculty member or staff member shall immediately report such relationship with his or her immediate supervisor and initiate steps to avoid and/or terminate the position of direct supervision. Avoidance or termination includes but is not limited to the student not enrolling in a course; a qualified alternative faculty member or teaching assistant taking the position of direct supervision; transfer of the student to another course, section, seminar, etc. taught by a different faculty member or teaching assistant; assigning or transferring the student to, or the student selecting, another academic advisor; or the student dropping or withdrawing from a course.

Paraprofessional student staff members shall not have a romantic and/or sexual relationship with anyone currently in their duty coverage area. A consensual friendship-based relationship may exist even if one or both partners consider it casual, temporary, or episodic. The policy applies to even a single intimate, sexual, or romantic encounter. If the potential for such a relationship should develop, the paraprofessional student staff member must immediately notify his/her supervisor in writing. A paraprofessional student staff member must understand if he/she wishes to pursue such a relationship, appropriate action will be taken. This would include, but not be limited to, offering the resident the option to voluntarily move to another complex, or having the paraprofessional student staff member moved to an appropriate location if the ability to do so is present. A paraprofessional student staff member should not be assigned to rounds within an area where a resident with whom he/she is in a relationship currently lives and should not become involved in a disciplinary incident involving said party absent an emergency situation.

Discouraged Relationships

The following faculty-student, staff-student, and paraprofessional student staff-student relationships are strongly discouraged at the University in light of the potential for apparent and actual conflicts of interest. Should such relationships arise, however, they are required to be disclosed and managed as indicated below:

Even when no position of direct supervision exists, a faculty member or staff member who engages in a romantic or sexual relationship with a student must promptly disclose the existence of the relationship to his or her immediate supervisor if there exists a reasonable possibility that a conflict of interest may arise. Relationships, in which a conflict of interest exists or is likely to arise, appear to third parties to create an unfair advantage for the student or to be exploitative of the student and may later develop into conflicts of interest that are prohibited above.

When the student is a graduate student in the same department or academic program as the faculty member or is an undergraduate student and is majoring or minoring in the same department as the faculty member or department of a staff and/or paraprofessional student staff member, a potential conflict of interest exists. A conflict of interest also may arise if the student is studying in a department separate from the faculty member. The faculty, staff, or paraprofessional student staff member must promptly disclose the relationship to his or her immediate supervisor when a potential conflict of interest exists or is reasonably likely to arise.

Once the relationship is disclosed, the immediate supervisor will evaluate the situation to determine whether an actual conflict of interest exists or is likely to arise and will develop a management plan to address the potential conflict of interest. The faculty, staff, or paraprofessional student staff member has the professional and ethical responsibility to

remove himself or herself from any decisions that may reward or penalize the student involved and otherwise comply with the management plan.

A paraprofessional student staff member shall report immediately to his/her supervisor the potential for, or existence of, any romantic and/or sexual relationship with anyone living within any on-campus housing unit. This will permit the UNA administration to take any appropriate measures. Each matter will be analyzed on a case-by-case basis depending upon the specific facts and context of the relationship. If paraprofessional staff are required to address an incident with said party, they should recuse themselves and contact a back-up paraprofessional student staff member. If another paraprofessional student staff member is not available, the supervisor on duty should be contacted.

Policy Regarding Employee/Employee Consensual Relationships

An employee should be aware that entering into a consensual relationship with another employee that exercises direct supervision over the employee creates the potential for risk to both parties. In particular, such a relationship will limit that supervisor/employee's ability to direct work or promote that employee's career and creates conflicts of interest and perceptions of undue advantage.

Prohibited Relationships

A University employee shall not engage in, and is prohibited from, consensual relationships with another employee whenever one employee has direct supervision with respect to the other employee. Should a consensual relationship exist prior to the beginning of the period of direct supervision, or develop, or appear likely to develop, while an employee is, or would be, in a position of direct supervision over another employee, the employee exercising direct supervision shall immediately report such relationship to his or her immediate supervisor and steps to avoid and/or terminate the position of direct supervision shall be taken. Avoidance or termination includes but is not limited to the subordinate employee not accepting such position; another appropriate employee assuming the position of direct supervision; or transfer of the subordinate employee to another position not directly supervised by the other employee.

Discouraged Relationships

The following relationships between employees are strongly discouraged at the University in light of the potential for apparent and actual conflicts of interest. Should such relationships arise, however, they are required to be disclosed and managed as indicated below:

Even when no position of direct supervision exists, an employee who engages in a romantic or sexual relationship with another employee must promptly disclose the existence of the relationship to his or her immediate supervisor if there exists a reasonable possibility that a conflict of interest may arise. Relationships, in which a conflict of interest exists or is likely to arise, may later develop into conflicts of interest that are prohibited above.

Once the relationship is disclosed, the immediate supervisor will evaluate the situation to determine whether an actual conflict of interest exists or is likely to arise and will develop a management plan to address the potential conflict of interest. An employee has the professional and ethical responsibility to remove himself or herself from any decisions that may reward or penalize the other employee involved and otherwise comply with the management plan.

Sanctions/Intent

University responses to violations of this Policy will vary as appropriate to the facts and circumstances of each case and persons in violation of this Policy shall be subject to sanctions ranging from verbal warnings to dismissal or termination. The University reserves the right to take disciplinary action against members of the University community who make false allegations of unreported consensual relationships. This Policy is not intended to intrude on the privacy of members of the University community but is intended primarily to be instructive and corrective.

A paraprofessional staff member who engages in a prohibited relationship and/or fails to report will be subject to discipline up to and including termination from job duties and referral for possible violation of the Student Code of Conduct or Title IX. Other, lesser sanctions may be imposed depending upon the circumstances.

Winston, R.B., & Fitch, R. (1993). Paraprofessional staffing. In R.B. Winston, S. Anchors, and Associates (Eds.), Student housing and residential life (pp. 315-344). San Francisco: Jossey-Bass.

Approved by UNA Board of Trustees on March 14, 2008.

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Editorial revision approved by Shared Governance and the President, February 2026.

CREATION OF COPYRIGHTED MATERIALS POLICY

The University of North Alabama (UNA) encourages the creation and dissemination of scholarly work by members of the UNA community, including Copyrightable Works (Works). It is traditional at UNA that most such works are deemed the property of the creator, and the creator has the right to exercise the exclusive rights of the copyright holder and to receive any revenue generated from the exercise of such rights. Notwithstanding this tradition, there are times when UNA provides substantial contributions to the creation of certain works, and in those cases, UNA will be entitled to assert ownership rights in such works. This Policy Governing the Creation of Copyrighted Materials (Policy) is intended to clarify UNA's and the creator's ownership of and rights in all such Works.

BACKGROUND

Federal Copyright Law provides that most original works of authorship are protected by copyright automatically when they are fixed in tangible form. In the course of teaching, researching and conducting other intellectual and administrative activities at, for or on behalf of UNA, faculty, staff, doctoral fellows, students and others engaged by or on behalf of UNA may create works that are protected by copyright.

Copyrightable works of authorship include, among other categories: books, articles, instructional materials, and other written works; musical and dramatic works; pictures, films, videos, sculptures and other works of art; computer software; and electronic chip designs.

Copyright Law grants ownership of a Work created by a person in the course of their employment to the employer rather than to the individual creator. However, to encourage members of UNA to create academically relevant and significant Works, in most cases, UNA will allow the faculty, staff, doctoral fellow,

student or other individual engaged by or on behalf of UNA to assert ownership of Works they create, except as set forth in this Policy.

This Policy applies to all UNA faculty, staff, doctoral fellows, students and other individuals engaged by or on behalf of UNA.

1. DEFINITIONS

a) Rights of the Copyright Owner (17 USC § 105):

The owner of a copyright has the exclusive right to:

- i) To reproduce the work;
- ii) To prepare derivative works;
- iii) To distribute copies or phonorecords of the work to the public by sale, rental, lease, or lending;
- iv) In the case of literary, musical, dramatic, and choreographic works, pantomimes, and motion pictures and other audiovisual works, to perform the work publicly;
- v) In the case of literary, musical, dramatic, and choreographic works, pantomimes, and pictorial, graphic, or sculptural works, including the individual images of a motion picture or other audiovisual work, to display the copyrighted work publicly; and
- vi) In the case of sound recordings, to perform the copyrighted work publicly by means of a digital audio transmission.

b) Copyrightable Works: Copyrightable works of authorship are those that are fixed in a tangible medium and among other categories may include: books, articles, instructional materials, and other written works; musical and dramatic works; pictures, films, videos, sculptures and other works of art; computer software; and electronic chip designs.

c) Fixed in a Tangible Medium (17 U.S.C. § 102): A copyright interest arises in a Work once it is "fixed in a tangible medium" of expression. A tangible medium is one from which the Work can be perceived, reproduced, or otherwise communicated, directly or with the aid of a machine or device.

d) Non-Copyrightable Material: Copyright interest does not extend to and copyright law does not protect ideas, procedures, processes, systems, methods of operation, concepts, principles, facts or discoveries, regardless of the form in which they are described, explained, illustrated, or embodied in a Work.

e) Categories of Works: Works typically fall into one of the following categories:

- i) literary works;
- ii) musical works, including any accompanying words;
- iii) dramatic works, including any accompanying music;
- iv) pantomimes and choreographic works;
- v) pictorial, graphic, and sculptural works;
- vi) sound recordings; and
- vii) architectural works.

f) Ordinary Use of Resources. Ordinary use of UNA resources occurs when an author/creator uses UNA resources or facilities in a manner consistent with use expected for the day-to-day performance of the individual's obligations to UNA, such as ordinary use of library facilities, office space, office supplies or equipment including copiers, telephones, and fax machines, or UNA owned personal computers or other electronic devices.

g) Substantial Commitment of Resources. UNA makes a substantial commitment of resources to a Work if the author/creator makes use of UNA personnel, equipment and/or facilities beyond the Ordinary Use of Resources. A substantial Commitment of Resources by UNA may include, for example purposes,

use of laboratory facilities, designated research equipment, equipment of any kind provided through a grant or corporate sponsorship, or work or materials the funding for which was otherwise subsidized by UNA.

h) Work Made for Hire (17 U.S.C. § 101):

- i) A "work made for hire" is: (i) a work prepared by an employee within the scope of their employment; or (ii) a work specially ordered or commissioned for use as a contribution to a collective work, as a part of a motion picture or other audiovisual work, as a translation, as a supplementary work, as a compilation, as an instructional text, as a test, as answer material for a test, or as an atlas, if the parties expressly agree in a signed written agreement that the work shall be considered a work made for hire.
- ii) *Supplementary Work*. A "supplementary work" is a Work prepared for publication as a an addition to or revision of the Work of another author for purposes of introducing, concluding, illustrating, explaining, revising, commenting upon, or assisting in the use of the other work, such as forewords, after words, pictorial illustrations, maps, charts, tables, editorial notes, musical arrangements, answer material for tests, bibliographies, appendixes, and indexes.
- iii) *Instructional Text*. An "instructional text" is a literary, pictorial, or graphic work prepared for publication and with the purpose of use in systematic instructional activities.
- i) *Teaching Materials*. Teaching Materials include lecture notes, syllabi, course materials, handouts, teaching aides, regardless of the media, and other similar materials utilized for purposes of teaching a course to students. Video recordings of lectures taught to or for UNA students are not considered Teaching Materials and are Assigned Tasks as provided for in Section 3.

2. **OWNERSHIP AND RIGHTS IN COPYRIGHTABLE WORKS**

UNA has and will assert its ownership interest in the following Works.

a) Assigned Tasks.

- i) Created by Faculty Members and Doctoral Fellows in the scope of their assigned duties, except for Teaching Materials. UNA will own the copyright in Works created by faculty and doctoral fellows in the course of their assigned duties of employment where documentation of the employee's assignment explicitly states in writing that the Work will be owned by UNA. Examples may include copyrights in materials designed to promote UNA, materials created for administrative use within UNA, and other similar Works.
 - ii) Created by UNA Staff, Students, or other personnel in the scope of their assigned duties. UNA will own the copyright in Works created by UNA staff, students and other personnel in the scope of their assigned duties, including duties as teaching or research assistants.
- b) Sponsored Agreements. Where a Work is developed by faculty, staff, doctoral fellows, students, or others engaged by or on behalf of the University in the course of sponsored research funded by an outside agency, company or other institution pursuant to a funding or sponsorship agreement approved by the appropriate university official(s), ownership of such Works will be determined by the applicable terms of the funding or sponsorship agreement.
- c) Patentable Works. Where a Work is also patentable, the UNA Patent Policy will apply to it, notwithstanding any inconsistent provisions in this Policy.
- d) Works with Substantial Commitment of UNA Resources. When UNA makes substantial commitment of resources to a project, UNA is entitled to at least partial ownership of the Work. The specific definition

of substantial commitment of UNA resources may vary on a case-by-case basis and should be determined in cooperation with the Provost and Executive Vice President for Academic Affairs (PEVPAA) PEVPAA and relevant College Dean or supervisor prior to initiating the Work. If the determination of a substantial commitment of UNA resources is not made in advance of initiating the Work, or if circumstances change during creation of the Work such that a substantial commitment of UNA Resources was utilized, the creator will work together with the PEVPAA and the relevant College Dean or supervisor to determine the proper allocation of ownership and to document such determination in writing.

3. FINANCIAL BENEFITS FROM WORKS

- a) Teaching Materials. Except for tuition and fees UNA receives from students, UNA will not assert any rights to financial benefits a creator may derive from commercialization of their teaching materials. Creators of teaching materials are not entitled to any portion of tuition or fees UNA receives from students that may be allocated to the courses utilizing the Teaching Materials, except for their standard compensation.
- b) Assigned Tasks. UNA shall be entitled to all financial revenue generated by Works developed as part of Assigned Tasks and owned by UNA.
- c) Sponsored Agreements. Any financial benefit from Works arising out of funding or sponsorship agreements shall be distributed as set forth in the funding or sponsorship agreement.
- d) Patentable Works. Any financial benefit from Works that also result in inventions addressed under the UNA Patent Policy shall be distributed as provided for in the Patent Policy.
- e) Works with Substantial Commitment of UNA Resources.
 - i) Where the creator(s) has relied on a Substantial Commitment of UNA Resources, in whole or in part, to create a Work, UNA shall be entitled to that portion of the financial benefit from the Work as specified in the written agreement between UNA and the creator. If there is not a written agreement, UNA shall be entitled to recover its Substantial Commitment of UNA Resources first, and thereafter, the financial benefit from the Work shall be divided 50/50 between UNA on the one hand and the creator(s) on the other hand.

4. EXCLUSIVE RIGHTS OF OWNERSHIP.

- a) In general, the exclusive rights of ownership in a Work may be exercised by the owner of the Work as defined by this Policy.
- b) When UNA has all or partial ownership in a Work, UNA reserves the right to assert exclusivity as to some or all of the exclusive rights of ownership, such as the right to copy or distribute the Work. Such reservation of rights shall be determined between UNA and the creator(s) in cooperation with the PEVPAA and the relevant College Dean or supervisor.

Approved through the Shared Governance Process and by President Kitts, 10/21/2024

USE OF COPYRIGHTED MATERIALS POLICY

The University of North Alabama is committed to complying with the laws protecting the rights of copyright holders while recognizing that those rights permit certain educational uses, including fair use, of copyrighted

materials. Faculty, staff, students and others working for or on behalf of UNA ("personnel") bear the responsibility to make informed decisions regarding the proper use of copyrighted materials and are obligated to comply with Federal Copyright law ([Title 17 U.S. Code](#)).

1) BACKGROUND

Copyright Law gives creators of original works the right to control how others use, reproduce, distribute, perform, display or use their works. Works protected by copyright include, among other categories: books, articles, instructional materials, and other written works; musical and dramatic works; pictures, films, videos, sculptures and other works of art; computer software; and electronic chip designs. As a result, use of another's work generally requires the permission of the rights holder, unless the work is in the public domain, or a statutory exception applies. The exceptions most likely to apply in the academic setting are the statutory Classroom Exception, the TEACH Act, and the Fair Use exception.

It can be difficult to determine the copyright status of a work and whether the use qualifies for one of the exceptions to the requirement to obtain permission for use of the work. The Office of the Provost and Executive Vice President for Academic Affairs and the library staff are available to assist in making decisions regarding the use of copyrighted materials.

2) APPLICABILITY This Policy applies to all UNA personnel and to all copyrighted material.

3) DEFINITIONS

a. Rights of the Copyright Owner (17 USC § 105):

The owner of a copyright has the exclusive right to:

- i. To reproduce the work;
- ii. To prepare derivative works;
- iii. To distribute copies or phono records of the work to the public by sale, rental, lease, or lending;
- iv. In the case of literary, musical, dramatic, and choreographic works, pantomimes, and motion pictures and other audiovisual works, to perform the work publicly;
- v. In the case of literary, musical, dramatic, and choreographic works, pantomimes, and pictorial, graphic, or sculptural works, including the individual images of a motion picture or other audiovisual work, to display the copyrighted work publicly; and
- vi. In the case of sound recordings, to perform the copyrighted work publicly by means of a digital audio transmission.

b. Copyrightable Works: Copyrightable works of authorship are those that are fixed in a tangible medium and among other categories may include: books, articles, instructional materials, and other written works; musical and dramatic works; pictures, films, videos, sculptures and other works of art; computer software; and electronic chip designs.

c. Fixed in a Tangible Medium (17 U.S.C. § 102): A copyright interest arises in a Work once it is "fixed in a tangible medium" of expression. A tangible medium is one from which the Work can be perceived, reproduced, or otherwise communicated, directly or with the aid of a machine or device.

d. Non-Copyrightable Material. Copyright interest does not extend to and copyright law does not protect ideas, procedures, processes, systems, methods of operation, concepts, principles, facts or discoveries, regardless of the form in which they are described, explained, illustrated, or embodied in a Work.

e. Categories of Works: Works typically fall into one of the following categories:

- i. literary works;
- ii. musical works, including any accompanying words;
- iii. dramatic works, including any accompanying music;

- iv. pantomimes and choreographic works;
 - v. pictorial, graphic, and sculptural works;
 - vi. sound recordings; and
 - vii. architectural works.
- f. **Ordinary Use of Resources.** Ordinary use of UNA resources occurs when an author/creator uses UNA resources or facilities in a manner consistent with use expected for the day to day performance of the individual's obligations to UNA, such as ordinary use of library facilities, office space, office supplies or equipment including copiers, telephones, and fax machines, or UNA owned personal computers or other electronic devices.
- g. **Public Domain.** Copyrights exist for a set amount of time and once the copyright expires, the work is in the public domain and can be used without obtaining further permission. However, copyright lasts for decades, not years, and the actual duration of a copyright varies based on a number of factors, so it is always important to properly determine if a copyright has expired.
- h. **Substantial Commitment of Resources.** UNA makes a substantial commitment of resources to a Work if the author/creator makes use of UNA personnel, equipment and/or facilities beyond the Ordinary Use of Resources. A substantial Commitment of Resources by UNA may include, for example purposes, use of laboratory facilities, designated research equipment, equipment of any kind provided through a grant or corporate sponsorship, or work or materials the funding for which was otherwise subsidized by UNA.
- i. **Work Made for Hire (17 U.S.C. § 101):**
- i. A "work made for hire" is: (a) a work prepared by an employee within the scope of their employment; or (b) a work specially ordered or commissioned for use as a contribution to a collective work, as a part of a motion picture or other audiovisual work, as a translation, as a supplementary work, as a compilation, as an instructional text, as a test, as answer material for a test, or as an atlas, if the parties expressly agree in a signed written agreement that the work shall be considered a work made for hire.
 - ii. *Supplementary Work.* A "supplementary work" is a Work prepared for publication as an addition to or revision of the Work of another author for purposes of introducing, concluding, illustrating, explaining, revising, commenting upon, or assisting in the use of the other work, such as forewords, after words, pictorial illustrations, maps, charts, tables, editorial notes, musical arrangements, answer material for tests, bibliographies, appendixes, and indexes.
 - iii. *Instructional Text.* An "instructional text" is a literary, pictorial, or graphic work prepared for publication and with the purpose of use in systematic instructional activities.

4) SECURING PERMISSION

Anyone who wishes to use a copyrighted work as a part of the creation of scholarly, instructional, or work-related materials or media must either confirm the work qualifies for an exception to the requirement to obtain permission or must obtain written permission from the copyright owner. Email correspondence is sufficient to meet the requirement for a writing, but permission granted in a phone call or other verbal conversation is not sufficient. The permission must specify the use that is permitted, for example, display in a live classroom, use in virtual learning, distribution to students, posting in a learning management system, use in course materials, use in lectures outside of the classroom or for speaking engagements, etc.

If the permission from the copyright owner requires a fee, the person seeking permission to use the copyrighted work is responsible for ensuring that funds are available to cover such fee. If the permission

from the copyright owner requires negotiation of a license or other agreement granting permission, such license or agreement must be approved in accordance with standard UNA procedures for contract approval.

5) **QUALIFYING FOR AN EXCEPTION**

The three most common copyright authorization exceptions are outlined here. Anyone choosing to make use of another's materials with the belief that it is permitted under one of these exceptions should document their determination that the exception applies and maintain such documentation as outlined in Section 6 below. If there is any question as to the applicability of the exception, UNA's General Counsel should be consulted.

a. **Classroom Exception**

Just as it sounds, the Classroom Exception allows for the performance or display of copyrighted works by faculty or students when they are face-to-face in a physical classroom. To qualify for this exception:

- The use must be face-to-face in a physical (not virtual) classroom;
- The materials being performed or displayed must be legally obtained; and
- The use must be made on behalf of a non-profit educational institution.

This exception does not cover use of material in a virtual classroom, reproduction or distribution of materials as part of handouts or assignments, use in learning management systems, or in an e-reserve system. If you need to use copyrighted materials for those purposes see the exceptions for the TEACH Act or Fair Use.

b. **TEACH Act**

The Technology, Education, and Copyright Harmonization Act of 2002 ("TEACH Act") updated Section 110 of the Copyright Act to provide for use of copyrighted materials in certain virtual education settings. The implications of the TEACH Act are nuanced, but it generally expands an educator's ability to perform and display copyrighted works in digital online instruction settings, without permission of the copyright holder. However, as with the Classroom Exception, there are conditions that must be met to qualify for this exemption. Application of those conditions is often detailed and confusing and fair use should be considered as an alternative exception in those situations.

The TEACH Act permits:

- Transmitting performances of all of a non-dramatic literary or musical work. This includes poetry or short stories, but does not include audiovisual works, and musical works except for opera, music videos, and musicals.
- Transmitting "reasonable and limited portions" of any other performance. This includes audio visual works such as films and videos and dramatic musical works, but the use must be for reasonable and limited portions.
- Transmitting displays of any work in amounts comparable to typical face-to-face displays. This includes all types of still images.

In addition to the requirements regarding the types of works, these additional requirements apply:

- The performance or display must be by or at the direction of, or under supervision of, an instructor, and be conducted as an integral part of a class session at an accredited nonprofit educational institution.
- The performance or display must be directly related and of material assistance to the teaching content of the transmission.

- The transmission must be solely for, and to the extent technically feasible, the reception of the transmission must be limited to students officially enrolled in the course.
- The institution involved in the transmission must have implemented policies related to copyright that at a minimum inform students that certain course materials may be copyrighted and further use of such materials is prohibited.
- To the extent possible, technological protection must be applied to the digital transmission to prevent the ability to copy, redistributed, modify or otherwise use the copyrighted materials outside of the educational purpose.

The TEACH Act does not cover supplemental online reading, viewing, or listening materials.

c. Fair Use

Fair Use (17 U.S.C. § 107) is the most commonly relied upon exception for the use copyrighted materials without obtaining permission. However, while fair use is more common in educational settings, not all academic use qualifies as fair use.

Generally, fair use permits the use of a copyrighted work "for purposes such as criticism, comment, news reporting, teaching (including multiple copies for classroom use), scholarship, or research..."

The four key factors used to determine whether use of a work qualifies as "fair use" are:

1. The purpose and character of the use, including whether such use is of a commercial nature or is for nonprofit educational purposes;

Activities limited to the support of educational efforts are more likely to qualify as fair use. Uses that are "transformative" in nature are more likely fair use. To be transformative, the use must add or change the original work in a way that gives it new expression, meaning or message. Incorporating quotations into a paper or pieces of a work mixed into a multi-media product for teaching are usually transformative in nature. Criticism or critical analysis of a work also tends to favor fair use.
2. The nature of the copyrighted work – fiction or factual or a combination;

Works that are unpublished are less likely to qualify as fair use. Excerpts of informational and factual works for educational purposes are more likely to qualify as fair use. Use of materials such as test forms or workbook pages that are intended to be used and repurchased are less likely to qualify as fair use.
3. The amount and substantiality of the portion of the work used in relation to the copyrighted work as a whole; and

The amount of the work is analyzed both quantitatively and qualitatively. There is not a hard and fast line for the portion of the work that may be used, but the portion of the work to be used should be narrowly tailored to meet the educational purpose.
4. The effect of the use upon the potential market for, or value of, the copyrighted work.

The impact on the value of the work is closely linked to the purpose of the use, and considers whether the use impacts the creator's ability to make a living from the work. If the work is being used for a commercial purpose, any adverse effect on the creator's ability to earn money from the work weighs against fair use. Producing copies of an entire work to save money for students is almost never a fair use. Similarly, if a digital, academic license for excerpts is available for a reasonable price, then use of the excerpt is likely not a fair use.

All four factors must be considered to determine whether each use is a fair use. Each factor is given equal weight. The goal is to achieve a balance between the rights of the copyright holder with the rights of the public. Fair use is also technologically neutral so the same analysis may be applied to any medium.

This [link \(https://copyright.columbia.edu/basics/fair-use/fair-use-checklist.html\)](https://copyright.columbia.edu/basics/fair-use/fair-use-checklist.html) includes a checklist you may find helpful in determining whether your activity(s) is within the limits of fair use under U.S. copyright law. Another resourceful checklist can be found [here \(https://www.lib.purdue.edu/uco/fair-use\)](https://www.lib.purdue.edu/uco/fair-use).

- d. Other Exceptions for Use of Copyrighted Materials These exceptions may be relevant for some use of copyrighted material.
- [Reproduction by libraries and archives](http://www.copyright.gov/title17/92chap1.html#108) (<http://www.copyright.gov/title17/92chap1.html#108>)
 - [Effect of transfer of particular copy or phonorecord](http://www.copyright.gov/title17/92chap1.html#109) (<http://www.copyright.gov/title17/92chap1.html#109>)
 - [Exemption of certain performances and displays](http://www.copyright.gov/title17/92chap1.html#110) (<http://www.copyright.gov/title17/92chap1.html#110>)
 - [Secondary transmissions of broadcast programming by cable](http://www.copyright.gov/title17/92chap1.html#111) (<http://www.copyright.gov/title17/92chap1.html#111>)
 - [Ephemeral recordings](http://www.copyright.gov/title17/92chap1.html#112) (<http://www.copyright.gov/title17/92chap1.html#112>)
 - [Computer programs](http://www.copyright.gov/title17/92chap1.html#117) (<http://www.copyright.gov/title17/92chap1.html#117>)
 - [Secondary transmissions of distant television programming by satellite](http://www.copyright.gov/title17/92chap1.html#119) (<http://www.copyright.gov/title17/92chap1.html#119>)
 - [Reproduction for blind or other people with disabilities](http://www.copyright.gov/title17/92chap1.html#121) (<http://www.copyright.gov/title17/92chap1.html#121>)
 - [Secondary transmissions of local television programming by satellite](http://www.copyright.gov/title17/92chap1.html#122) (<http://www.copyright.gov/title17/92chap1.html#122>)

Anyone who wishes to use copyrighted materials within the scope of these exceptions must be able to document their justification or rationale for meeting the terms of the exceptions.

6) RETENTION OF RECORDS. The following policy statements are for the protection of UNA personnel in the event that their use of copyrighted materials is called into question.

- a. Persons who receive explicit permission to use copyrighted materials shall retain the record of these permissions in accordance with the [Public Universities of Alabama Retention Schedule](#).
- b. Persons who use copyrighted materials under one of the statutory exceptions shall retain their written justification for this use in accordance with the [Public Universities of Alabama Retention Schedule](#).
- c. These records and justifications must be available at any time upon request.
- d. If an item that contains copyrighted material becomes wholly or partly the property of UNA then a copy of the permission to use or the justification for use of the copyrighted material must be submitted to and stored with the Office of the Provost and Executive Vice President for Academic Affairs.

7) OPEN EDUCATIONAL RESOURCES/CREATIVE COMMONS LICENSES.

- a. "Open Educational Resources" ("OER") are any type of educational materials that are distributed in a manner that allows for free use and reuse, without the need to ask for permission. The specific rights granted may vary between materials, or the works may be licensed under Creative Commons licenses.

OER can include textbooks, curricula, syllabi, lecture notes, assignments, tests, projects, audio, video, animation and more. <https://oercommons.org/>

- b. Creative Commons is a similar initiative that may also include educational materials. Creators of these works make them available to the public with limited restrictions. Creative Commons licenses include:
 - i. Attribution – the author must be credited, usually using the title of the work, author of the work, source of the work and the license that bears the work.
 - ii. Non-commercial – you cannot profit from use of the work.
 - iii. No derivatives – you cannot change the work, even in minor ways.
 - iv. Share alike – whatever you do with the work, the result must bear a share alike license for others to use.

<https://creativecommons.org/>.

8) A NOTE ABOUT WORKS ON SOCIAL MEDIA

Just because it is possible to download works from social media does not mean that it is permissible. Most content in social media is protected by copyright. In addition, the terms of use of most social media platforms prohibit the downloading of content without permission.

The document concerning Copyright Resources may be found in the next section.

Approved through the Shared Governance Process and by President Kitts, 10/21/2024

USE OF COPYRIGHTED MATERIAL RESOURCES

What Is Copyright?

[What is Copyright? | U.S. Copyright Office \(https://www.copyright.gov/what-is-copyright/\)](https://www.copyright.gov/what-is-copyright/)

Public Domain Explained

[Stanford Libraries \(https://fairuse.stanford.edu/overview/public-domain/welcome/\)](https://fairuse.stanford.edu/overview/public-domain/welcome/)

[Cornell University Library \(https://guides.library.cornell.edu/copyright/publicdomain\)](https://guides.library.cornell.edu/copyright/publicdomain)

Overview of Educational Exceptions

[Copyright Exceptions for Education | NC State University Libraries \(ncsu.edu\)](https://www.lib.ncsu.edu/okc/copyright/instruction/exceptions)

[\(https://www.lib.ncsu.edu/okc/copyright/instruction/exceptions\)](https://www.lib.ncsu.edu/okc/copyright/instruction/exceptions)

Teach Act

[University of Texas TEACH Act \(https://guides.lib.utexas.edu/copyright/teachact\)](https://guides.lib.utexas.edu/copyright/teachact)

[TEACH Act Checklist \(https://guides.lib.utexas.edu/copyright/teachactchecklist\)](https://guides.lib.utexas.edu/copyright/teachactchecklist)

Fair Use

[Fair Use \(FAQ\) | U.S. Copyright Office \(https://www.copyright.gov/help/faq/faq-fairuse.html\)](https://www.copyright.gov/help/faq/faq-fairuse.html)

Fair Use Checklist

[Columbia University Libraries](https://copyright.columbia.edu/basics/fair-use/fair-use-checklist.html)

[\(https://copyright.columbia.edu/basics/fair-use/fair-use-checklist.html\)](https://copyright.columbia.edu/basics/fair-use/fair-use-checklist.html)

[Purdue University \(https://www.lib.purdue.edu/uco/fair-use\)](https://www.lib.purdue.edu/uco/fair-use)

Public Universities of Alabama Retention Schedule

(<https://una.edu/general-counsel/docs/public-universities-of-alabama-retention-schedule.pdf>)

Open Educational Resources:

[Open Education Resources at UNA \(https://www.una.edu/oer/index.html\)](https://www.una.edu/oer/index.html)

[UNESCO \(http://unevoc.unesco.org/go.php?q=Open%20Educational%20Resources\)](http://unevoc.unesco.org/go.php?q=Open%20Educational%20Resources)

[University of Texas Libraries \(https://guides.lib.utexas.edu/OER\)](https://guides.lib.utexas.edu/OER)

How do I find OERs?

[OER Commons \(https://www.oercommons.org/\)](https://www.oercommons.org/)

[Open Stax \(https://openstax.org/subjects\)](https://openstax.org/subjects)

[Open Textbook Library \(https://open.umn.edu/opentextbooks/\)](https://open.umn.edu/opentextbooks/)

[Oasis \(https://oasis.geneseo.edu/\)](https://oasis.geneseo.edu/)

[Mason OER Metafinder \(https://oer.deepwebaccess.com/oer/desktop/en/search.html\)](https://oer.deepwebaccess.com/oer/desktop/en/search.html)

[Duke University Libraries](https://scholarworks.duke.edu/open-access/teaching-and-learning-with-open-educational-resources-improve-access-flexibility-and-affordability-in-your-classroom/)

(<https://scholarworks.duke.edu/open-access/teaching-and-learning-with-open-educational-resources-improve-access-flexibility-and-affordability-in-your-classroom/>)

- What are OERs?
- What are the benefits of using OERs in my teaching?
- How can I tell if something is OER and not just a website?
- How can I tell the quality of an OER?

Creative Commons

[Homepage - Creative Commons \(https://creativecommons.org/\)](https://creativecommons.org/)

Other helpful information

[UT's Copyright Crash Course \(https://guides.lib.utexas.edu/copyright\)](https://guides.lib.utexas.edu/copyright)

[US Copyright Office \(https://www.copyright.gov/\)](https://www.copyright.gov/)

[US Copyright Act \(US Copyright Act\)](#)

DANGEROUS WEAPONS AND FIREARMS POLICY

PURPOSE

The University of North Alabama seeks to maintain a welcoming and safe environment for students, employees, and visitors, and adopts this policy for possession of dangerous weapons and firearms on campus and at events.

DEFINITIONS

Campus – all property owned, leased, or controlled by the University and any affiliated buildings and outdoor premises, such as parking lots and other outdoor property.

Firearm – a pistol, handgun, rifle, or shotgun and any associated ammunition.

Dangerous Weapon – Includes the following:

- Any device that shoots or delivers a bullet, BB, pellet, arrow, dart, flare, electrical charge, or other projectile, whether loaded or unloaded, including those devices powered by CO2.
- Any explosive device, including fireworks.

- Any instruments/devices that are designed or may be used as a weapon to injure or threaten another individual, including, but not limited to, non-culinary knives with a blade greater than four (4) inches.
- A firearm, as defined herein, is not included in this definition of dangerous weapon.

POLICY

Except as otherwise stated in this policy or as otherwise allowed by law, the University of North Alabama (UNA) prohibits the possession, transportation, and use of firearms and other dangerous weapons on campus. This policy applies to all persons on campus, including faculty, staff, students, contractors, and visitors. The University Police Department provides temporary storage (no more than 48 hours) for lawfully possessed firearms at its campus police department.

Consistent with Alabama law, all persons are strictly prohibited from possessing firearms at locations where security guards and other security features are employed, such as athletic events.

This policy will be published in the Employee Policy Manual & Handbook, University Police Department Policy and Procedures, and Student Handbook, and supersedes any contrary provisions.

ENFORCEMENT

Persons not on campus and in violation of UNA policy are trespassers and may be dealt with accordingly, including, but not limited to, being removed from campus and receiving a written directive to remain off campus. Contractors and vendors are expected to comply with policy and contract terms. Violations of Alabama law may be dealt with by appropriate law enforcement. Student violations may be addressed in accordance with the Code of Student Conduct as well as other applicable policies and may include sanctions, up to and including expulsion. Employee violations may be resolved in accordance with employer policies, up to and including termination.

EXCEPTIONS

This policy does not prohibit use or possession of dangerous weapons or firearms:

1. By certified law enforcement officers acting within the scope of their employment;
2. By private security, who with express prior permission of the University Police Department, possess firearms or dangerous weapons while in the employ of UNA or for a permitted event;
3. By members, coaches, and authorized staff of a recognized team or course who are acting within the scope of activities that the University Police Department has pre-approved (i.e. ROTC members);
4. At the President's home;
5. By law enforcement officers who are attending classes as students. If, however, law enforcement officers are not in uniform during class, they must keep their weapon(s) concealed.

No other individual may possess a firearm on campus, except for a lawfully-possessed firearm, properly maintained in the individual's privately-owned motor vehicle in a manner that satisfies all requirements and prerequisites of Alabama law. Any other use or possession of dangerous weapons or firearms on campus must be authorized by the University Police Department.

SCOPE

This policy applies to all faculty, staff, students, contractors, vendors, or visitors to the UNA campus.

**Policy adopted from the University of Alabama with permission.*

DISCRIMINATION AND HARASSMENT POLICY

The University of North Alabama (“UNA”) is committed to a learning and work environment free from discrimination and harassment. UNA is committed to maintaining an inclusive community that respects and values all of its members.

I. Policy

This Policy prohibits discrimination and harassment on the basis of race, color, religion, or national origin, age, gender, sex, sexual orientation, genetic information, gender identity, gender expression, pregnancy, disability, veteran or military status, and all other characteristics protected by state or federal law (collectively, “protected status” or “protected characteristics”). This prohibition includes discrimination and harassment based on the perception of an individual’s protected status, even if that perception is incorrect. The Policy also prohibits related misconduct, such as sexual assault, relationship violence, stalking, and retaliation.

The Policy should be read consistently with all applicable federal, state, and local laws addressing discrimination, harassment, and related misconduct. These include, but are not limited to, Title VI of the Civil Rights Act of 1964, Title VII of the Civil Rights Act of 1964, the Civil Rights Act of 1866 (42 U.S.C. Section 1981), Title IX of the Education Amendments of 1972, the Americans with Disabilities Act, Section 504 of the Rehabilitation Act of 1973, the Age Discrimination Act of 1975, the Equal Pay Act of 1963, and the Alabama Clarke-Figures Equal Pay Act.

II. Jurisdiction/Scope

The Policy applies to all members of the UNA community (which includes collectively and without limitation, all individuals who are enrolled at, employed by, appointed by, affiliated with, or otherwise engaged in any activity sponsored by or undertaken on behalf of UNA) and applies to all Prohibited Conduct that occurs on UNA property and/or during participation or attempted participation in a UNA program or activity. UNA will respond appropriately to conduct that occurs off UNA property and/or outside of a UNA-related program or activity, including off-campus or online conduct that is not part of a UNA program or activity if the alleged Prohibited Conduct is contributing to a hostile environment that occurs within a UNA program or activity. UNA maintains the discretion to address conduct that occurs off campus and/or outside of a UNA-related program or activity that does not contribute to a hostile environment within a UNA program or activity pursuant to this Policy or any other appropriate policy.

Members of the UNA community covered by this Policy include, but are not limited to, trustees, full and part-time students and employees, including faculty members, staff, undergraduate students, graduate students, scholars and fellows, researchers, student employees, volunteers, interns, trainees, temporary and contract employees. Members of the UNA community may also include third parties engaging in a UNA program or activity, including, but not limited to, applicants for admission and employment, visitors, visiting scholars, conference attendees, exchange students, employees of UNA contractors and vendors to the extent they are participating in a UNA-sponsored program or activity, and program participants.

When UNA receives reports from individuals who are not participating in UNA programs or activities, it will evaluate those reports promptly and determine the applicability of the Policy and what, if any, action is warranted. UNA retains the discretion to use any of its existing procedures, processes, and/or other resolution

mechanisms to address the reports and complaints of Prohibited Conduct committed by individuals who are affiliated with UNA, but who do not fall into the category of a student, faculty, or staff respondent.

Some types of harassment and related misconduct may be criminal in nature and can also be reported to law enforcement. For on-campus reports, contact University Police Department at (256) 756-4357 (HELP), and for off-campus reports call either 911 (emergencies) or the local non-emergency law enforcement number.

III. Prohibited Conduct

This Policy prohibits all the following conduct, collectively defined as “Prohibited Conduct.”

A. Discrimination and Harassment Based on All Protected Characteristics

Discrimination: When an individual or group is subjected to an adverse action, including differential treatment, based upon a protected status or characteristic. Discrimination can occur under this Policy in either an employment or an educational context. Discrimination also includes failing to provide reasonable accommodations to a qualified person with a disability or failing to reasonably accommodate an employee’s religious beliefs or practices, as required by state and federal law.

Harassment: Conduct based on a protected characteristic that satisfies one or more of the following:

Non-Title IX Hostile Environment Harassment (Including Sexual Harassment): Unwelcome protected status-based conduct that, based on the totality of the circumstances, is subjectively and objectively offensive and is so severe or pervasive that it limits or denies a person’s ability to participate in or benefit from UNA’s programs or activities (i.e., creates a hostile environment). Factors considered when determining whether the conduct created a Hostile Environment include, but are not limited to:

1. The degree in which the conduct affected the Complainant’s ability to access UNA’s program or activity;
2. Whether the conduct unreasonably interfered with an employee’s work performance;
3. The severity of the conduct;
4. The type, frequency, and duration of the conduct;
5. Whether the conduct was physically threatening or humiliating;
6. The parties’ ages, roles within UNA’s program or activity, previous interactions, and other factors about each party that may be relevant to evaluating the effects of the conduct;
7. The location of the conduct and the context in which the conduct occurred; and
8. Other Prohibited Conduct in UNA’s program or activity.

An isolated incident, unless sufficiently severe, would typically not create a hostile environment. Harassment is distinguished from behavior that, even though unpleasant or disconcerting, is appropriate to the carrying out of certain instructional, advisory, or supervisory responsibilities. Harassment can include conduct that significantly interferes with the individual’s or group’s:

- educational environment (e.g., admission, academic standing, grades, assignment);
- work environment (e.g., hiring, advancement, assignment);
- participation in a UNA program or activity (e.g., campus housing); or
- receipt of legitimately-requested services (e.g., disability, pregnancy, or religious accommodations).

Protected Characteristics include the following:

Age: The number of years from the date of a person’s birth. With respect to employment, individuals who are forty (40) years of age or older are protected from discrimination and harassment based on age. There is no age threshold for protection from discrimination for students or other

participants in educational programs or activities.

Color: An individual's skin tone, complexion, or shade.

Disability: A physical or mental impairment that substantially limits one or more major life activities. Individuals are protected from discrimination if they have such an impairment; have a record of such impairment; or are regarded as having such impairment. A qualified person with a disability must be able to perform the essential functions of the employment or volunteer position or the academic, athletic, or extra-curricular program, with or without reasonable accommodation.

National Origin: An individual's actual or perceived country or ethnicity of origin.

Gender: A socially constructed set of expectations, roles, behaviors, and activities a given society or culture considers appropriate for individuals generally based on an individual's sex assigned at birth.

Gender Expression: The external appearance of one's gender identity, usually expressed through behavior, clothing, haircut, or voice, and which may or may not conform to socially defined behaviors and characteristics typically associated with being either masculine or feminine.

Gender Identity: One's innermost concept of self as male, female, a blend of both or neither – how individuals perceive themselves and what they call themselves. One's gender identity can be the same as or different from their sex assigned at birth.

Genetic Information: Information about (i) an individual's genetic tests, (ii) the genetic tests of family members of such individual, and (iii) the manifestation of a disease or disorder in family members of such individual. Genetic Information includes, with respect to any individual, any request for, or receipt of, genetic services, or participation in clinical research that includes genetic services by such individual or any family member of such individual.

Military Status: Service members and veterans including disabled veterans, special disabled veterans, veterans of the Vietnam Era, and other protected veterans as defined by federal and state law.

Race: An individual's actual or perceived racial or ethnic ancestry or physical characteristics associated with a person's race, such as a person's color, hair (including hair texture or hairstyle commonly associated with a particular race), facial features, height, and weight. The concept of race under some laws is broader than the modern understanding of the term and may include ancestral and ethnic characteristics. The protected characteristic of race also includes association with a person of a different race than the person to whom the discrimination or harassment is directed.

Religion: All aspects of religious observance, practice, or beliefs, including a lack of religion. Also includes actual or perceived shared ancestry, ethnic characteristics, or citizenship/residency in a country with a dominant religion.

Sex (Assigned at Birth): A designation at birth (male, female, and intersex) generally based on external appearance of sex organs; includes pregnancy, childbirth, and medical conditions related to pregnancy or childbirth. Conduct of a sexual nature is by definition based on Sex as a Protected Status.

Sexual Orientation: One's sexual, romantic, physical, and/or emotional attraction (or lack of attraction) to others.

B. Stalking

A course of conduct (including cyberstalking) directed at a specific person, based on that person's protected status/characteristic, that would cause a reasonable person to fear for their safety or the

safety of another, or to suffer substantial emotional distress. A course of conduct means two or more acts, including but not limited to acts in which a person directly, indirectly, or through third parties, by any action, method, device, or means, follows, monitors, observes, surveils, threatens, or communicates to or about another person, or interferes with another person's property. Substantial emotional distress means significant mental suffering or anguish.

C. Relationship Violence

A pattern of abusive behavior in a current or former intimate relationship that is used by one partner to gain or maintain power and control over another partner. Relationship violence can be sexual, emotional, economic, or psychological actions or threats of actions that influence another person. Relationship violence includes, but is not limited to, dating violence and domestic violence, as defined below.

- Dating violence: Any act of violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the Complainant and where the existence of such a relationship is determined based on a consideration of the length, type, and frequency of interactions between the persons involved in the relationship. For purposes of this definition, violence includes, but is not limited to, sexual or physical abuse or the threat of such abuse.
- Domestic violence: A felony or misdemeanor crime of violence, based on sex, committed by a current or former spouse or intimate partner of the Complainant, by a person with whom the Complainant shares a child in common, by a person who is cohabitating with or has cohabitated with the Complainant as a spouse or intimate partner, by a person similarly situated to a spouse of the Complainant under the domestic or family violence laws of Alabama, or by any other person against an adult or youth Complainant who is protected from that person's acts under the domestic or family violence laws of Alabama.

D. Sexual Assault

Any actual or attempted sexual contact with another person without consent, including instances where the Complainant is incapable of giving consent. Sexual contact includes penetration of a person's body parts, by any object or body part of another, in a sexual manner or causing a person without consent to penetrate themselves or another's body as described herein. Sexual contact also includes fondling, which is the touching of the private body parts of another person for the purpose of sexual gratification, without the consent of the other person. Sexual contact does not require skin to skin contact. Sexual assault can occur between individuals of the same or different sexes and/or genders. The regulations applying Title IX of the Education Amendments of 1972 define sexual assault as an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation. For more detailed information about conduct that may constitute sexual assault, refer to the Procedures for Responding to Reports and Complaints of Title IX Sexual Harassment.

E. Sexual Exploitation

Taking sexual advantage of another without consent for one's benefit or the benefit of another party. This may include but is not limited to the following: threatening to disclose an individual's sexual orientation, gender identity, or gender expression unless the individual submits to sexual demands; observing or allowing others to observe sexual activity of others without their knowledge or consent; streaming images of sexual activity without the knowledge or consent of those involved; causing the incapacitation of another person for the purpose of compromising that person's ability to give consent to sexual activity; knowingly exposing another individual to a sexually-transmitted infection without

the individual's knowledge; and knowingly making a materially false representation about sexually transmitted infection, birth control, or prophylactic status with the specific intent and effect of inducing the Complainant to participate in a specific sexual act or encounter.

F. Title IX Sexual Harassment

UNA's Procedures for Responding to Reports and Complaints of Title IX Sexual Harassment ("hereinafter referred to as "[Title IX Procedures](#)") applies to all reports of Title IX Sexual Harassment as defined in the Title IX Procedures, alleged to have occurred on or after August 14, 2020, and when meeting the jurisdictional requirements set forth in the Title IX Procedures.

G. Violation of Supportive or Remedial Measures

Where a violation of Supportive Measures would constitute Prohibited Conduct under this Policy the violation will be addressed pursuant to the Policy. If the violation of Supportive Measures would not constitute Prohibited Conduct under this Policy, then such violation of Supportive Measures will be referred to the Office of Student Affairs, Office of Human Resources, or other appropriate senior administrator.

H. Retaliation

Intimidation, threats, coercion, or discrimination against any person by UNA, a student, or an employee or other person authorized by UNA to provide aid, benefit, or service under UNA's program or activity, for the purpose of interfering with any right or privilege under the Policy or because the person reported information, made a complaint, testified, assisted, participated or refused to participate in any manner in an investigation, proceeding, hearing, or informal resolution. Individuals are also protected from good faith opposition to what an individual reasonably believes to be discrimination, harassment, or related misconduct under this Policy and making good faith requests for accommodations on the basis of religion, pregnancy or pregnancy-related medical conditions, or disability.

To constitute a Policy violation, the challenged actions or treatment must be sufficiently serious to discourage a reasonable person from further reporting, participation, or opposition. Charging an individual with a Policy violation for making a materially false statement in bad faith in the course of UNA's complaint process or in response to a complaint does not constitute Retaliation.

IV. Additional Defined Terms

Informal Resolution: A voluntary, non-punitive, remedies-based process that does not include an investigation or hearing. Remedies may include appropriate and reasonable educational, restorative, and accountability-focused measures as agreed to by the parties and approved by UNA.

Coercion: The use of an unreasonable amount of pressure to gain sexual access. Coercion is more than an effort to persuade, entice, or attract another person to have sex. When a person decides not to participate in a particular form of sexual activity, decides to stop, or decides not to go beyond a certain sexual interaction, continued pressure can be coercive. In evaluating whether coercion was used, UNA will consider: (i) the frequency of the application of the pressure, (ii) the intensity of the pressure, (iii) the degree of isolation of the person being pressured, and (iv) the duration of the pressure.

Complaint: An oral or written request to UNA that objectively can be understood as a request for UNA to investigate and make a determination about alleged Prohibited Conduct.

Complainant: An individual who is alleged to have experienced Prohibited Conduct who was participating or attempting to participate in UNA's program or activity at the time of the alleged Prohibited Conduct. In some situations, the conduct may be reported by someone other than the Complainant. In either case, the "Complainant" is the individual who was/is being subjected to the Prohibited Conduct, not necessarily the reporter.

Consent: An affirmative decision to engage in mutually acceptable sexual activity freely given by clear actions and/or words. Consent may not be inferred from silence, passivity, or lack of active resistance alone. A current or previous dating or sexual relationship is not sufficient to constitute consent. Consent to one form of sexual activity does not imply consent to other forms of sexual activity.

- Consent is not freely given when the individual is incapacitated (Defined further below). Consent is not freely given when the individual is coerced into sexual activity, such as, for example, through the use of physical force, threat of physical or emotional harm, undue pressure, isolation, or confinement.
- Consent may be withdrawn at any time. Once withdrawn, the non-consensual sexual activity must cease.
- The perspective of a reasonable person will be the basis for determining whether a Respondent knew, or reasonably should have known, whether a Complainant was able to freely give consent and whether consent was given. Additionally, being intoxicated or incapacitated does not diminish one's responsibility to obtain consent and will not be an excuse for Prohibited Conduct.
- A person under 16 years old is deemed incapable of consent.

Confidential Employee: An employee whose communications are privileged or confidential under federal or state law, whom UNA has designated as confidential to provide services to persons related to discrimination, harassment, and related misconduct, or who is conducting an Institutional Review Board-approved human-subjects research study.

UNA Program or Activity: Includes all operations of UNA, including educational programs, employment or other activities; locations, events, and circumstances where UNA exercises substantial control; remote learning platforms; and any building owned or controlled by a student organization recognized by UNA.

Incapacitation: Incapacitation is the state of being unable to consent by making informed, deliberate decisions about whether or not to engage in sexual activity. States of incapacitation include, but are not limited to: being mentally and/or physically helpless, asleep, unconscious, intermittently conscious or unaware that sexual activity is occurring. Incapacitation also includes the physical inability to communicate unwillingness. Alcohol or other drug use is one of the primary causes of Incapacitation. Incapacitation is a state beyond drunkenness or intoxication. A person is not necessarily Incapacitated solely as a result of drinking or using drugs; the level of impairment must be significant enough to render a Complainant unable to Consent. Evaluating Incapacitation requires an assessment of whether a Respondent knew or should have known of the Complainant's incapacitation based on objectively and reasonably apparent indications of impairment when viewed from the perspective of a sober, reasonable person in the Respondent's position. Indications that a person may be incapacitated include but are not limited to: slurred speech, unsteady walking, combativeness, emotional volatility, vomiting, and inability to dress or undress without assistance. Being impaired by alcohol or other drugs is not a defense to any violation of this Policy.

Formal Complaint of Title IX Sexual Harassment: A document or electronic submission filed by a Complainant or signed by the Title IX Coordinator alleging Title IX Sexual Harassment against a Respondent and requesting that UNA investigate the allegation. At the time of filing a Formal Complaint, a Complainant must be participating in or attempting to participate in a UNA education program or activity. A Formal Complaint must contain the Complainant's physical or digital signature or otherwise indicate that the Complainant is the

person filing the Formal Complaint.

Report: Notification, either orally or in writing, and by any individual, that Prohibited Conduct is alleged to have occurred.

Respondent: The person or office, program, department, or group against whom the allegation or complaint is made; i.e., the individual(s), organizational unit(s), or group(s) who have been reported to be the perpetrator of conduct that could constitute Prohibited Conduct. For allegations of Harassment, only a person can be a Respondent.

Responsible Employee: An individual designated by the Policy who is required to report information regarding Prohibited Conduct to UNA Title IX Coordinator.

Student: A person who has gained admission to UNA's education programs.

Supportive Measures: Individualized measures offered as appropriate, as reasonably available, without unreasonably burdening a Complainant or Respondent, not for punitive or disciplinary reasons, and without fee or charge to the Complainant or Respondent, designed to restore or preserve a party's equal access to UNA's programs or activities, protect the safety of the parties or UNA's educational environment, or provide support during the resolution process.

V. Resources and Reporting Options

UNA encourages all individuals to seek the support of on- and off-campus resources, regardless of when or where an incident occurred. These resources can provide guidance on reporting options and information about available resources. In general, UNA provides two ways to raise concerns about possible Prohibited Conduct - Confidential Resources and Non-Confidential Reporting Options.

A. Confidential Resources

The following UNA resources can provide counseling, information, and support in a confidential setting. These confidential resources will not share information about a report of Prohibited Conduct without the individual's express written permission unless there is a continuing threat of serious harm to the Complainant or to others or there is a legal obligation to reveal such information (*e.g.*, suspected abuse or neglect of a minor, which may be reported only to law enforcement or child protective services and never to the Title IX Office or any other UNA official). These individuals can also help an individual make a report to UNA.

- Student Counseling Services - 256-765-5212
- University Health Services - 256-765-4328

These off-campus resources can also provide counseling, information, and support in a confidential setting to students, faculty, and staff:

- North Alabama Crisis Center - 256-716-1000
- One Place of the Shoals - 256-284-7600
- Safe Place (domestic violence) - 256-767-6210 or 1-800-550-9215
- THRIVE Alabama - 256-764-0492

Medical concerns/evidence preservation. UNA encourages individuals to seek assistance from a medical provider or crisis response service immediately after an incident that may require medical attention or preservation of evidence. This provides the opportunity to address physical well-being or health concerns, preserve any available evidence, and begin a timely investigative and remedial response. Generally, a forensic medical exam needs to be conducted no later than 96 hours after the

occurrence of a sexual assault. If you suspect that you have been drugged, those drugs often leave the system within 24 hours or less, and any testing should be done within that window, or soon as otherwise practicable.

B. Reporting Options (Non-Confidential)

Individuals are encouraged to report all Prohibited Conduct, whether that conduct potentially falls under Title IX prohibitions or other non-discrimination prohibitions, to UNA. Making a non-confidential report of Prohibited Conduct means that UNA will contact the Complainant to offer resources and support. UNA will also identify the appropriate response to the report as outlined in this Policy and accompanying Procedures. Any individual can make a report under this Policy to UNA. A report may be made in person, in writing, by telephone, or by email. A report can be made anonymously.

For Non-Title IX Prohibited Conduct:

Catherine White
Associate Vice President, Human Resources
226 Cramer Way
256-765-4291
humanresources@una.edu

For Title IX Prohibited Conduct:

Kate Hanbery
Title IX Coordinator
318 Cramer Way
256-765-4223
titleix@una.edu

C. Responsible Employees

Responsible Employees are individuals who must immediately share all known information about all forms of possible Prohibited Conduct, not limited to sexual misconduct, directly with the individuals identified in paragraph B above. Responsible Employees are not confidential resources. Responsible Employees include, but are not limited to, all administrators, faculty, employees with teaching or supervisory authority, graduate students with teaching or supervisory authority (including Teaching Assistants acting in their role), and all athletic staff.

Individuals who are not required to report Prohibited Conduct to UNA as described above are nonetheless strongly encouraged by UNA to consult with UNA and/or file a report. If you have any question about whether you are a Responsible Employee or questions regarding your Responsible Employee duties, please promptly contact your direct supervisor for clarification.

D. Law Enforcement

UNA encourages all individuals to report Prohibited Conduct that may involve criminal conduct to the UNA Police Department or, for incidents taking place off campus, to the appropriate local law enforcement agency. Criminal conduct could include sexual violence, relationship violence, stalking, dating or domestic violence, and conduct that could be a hate crime. In cases of sexual misconduct involving a minor, members of the UNA community are required to report the situation to the Alabama Department of Human Resources and/or the Florence Police Department.

E. Leniency

In order to encourage reports of conduct that is prohibited under this Policy, UNA may offer leniency (up to and potentially including amnesty) with respect to other violations which may come to light as a result of such reports, depending on the circumstances involved.

VI. Supportive Measures

Supportive Measures are available regardless of whether an investigation is requested. A Complainant who

requests Supportive Measures retains the right to request an investigation, either at the time Supportive Measures are requested or at a later date. UNA or its designee, will contact a Complainant after receiving notice of possible Prohibited Conduct (1) to discuss the availability of Supportive Measures and (2) to explain that Supportive Measures are available with or without a request for investigation. Supportive Measures may also be requested by and made available to Respondents. UNA will ultimately serve as the point of contact for any Party requesting Supportive Measures under this Policy. UNA will determine a reasonable timeframe for application of Supportive Measures, which in most cases will be time bound.

VII. Emergency Removal and Administrative Leave

Emergency Removal of a Student Respondent. Where there is an imminent and serious threat to the health or safety of any students, employees, or other individuals arising from a report of Prohibited Conduct, UNA can remove a Student Respondent from part or all of UNA's programs or activities and issue any necessary related no-trespass and no-contact orders. In addition, UNA may take reasonable and appropriate interim steps to protect the safety and well-being of members of the UNA community, maintain the integrity of the resolution process, and deter retaliation. Such steps may include limiting or removing a Respondent from UNA programs and activities.

Administrative Leave of an Employee/Faculty Respondent. UNA may place an Employee/Faculty Respondent on administrative leave (or a student employee on leave from their employment including graduate students on leave from their appointment) upon a report of Prohibited Conduct and/or during the pendency of the grievance process. UNA, in its discretion and based on the circumstances, will determine whether any administrative leave is imposed with or without pay or benefits. In addition, UNA retains the authority to change schedules, limit access to certain areas, or otherwise adjust working conditions during the process of investigating and resolving an allegation of Prohibited Conduct under this Policy.

VIII. Timelines

To maintain and support a community that is respectful and free from discrimination, harassment, and related misconduct, and to maximize UNA's ability to respond promptly and effectively, UNA urges individuals to come forward with reports of Prohibited Conduct as soon as possible. Complainants and other reporting individuals are encouraged to seek assistance and utilize available resources if they feel they have been subjected to or have witnessed Prohibited Conduct.

IX. Privacy and Confidentiality

UNA will protect the confidentiality and privacy of the complaint process to the extent reasonably possible. Investigators, advisors, decision-makers, facilitators, and any others participating in the process on behalf of UNA shall preserve the privacy of information obtained through the process except as required to implement the Policy and/or its procedures. However, because of legal requirements, UNA cannot guarantee confidentiality relating to incidents of Prohibited Conduct except where those reports are privileged communications to Confidential Resources.

Privacy means that information related to a report will be shared with a limited number of UNA employees who "need to know" in order to assist in the assessment, investigation, and resolution of the report, including the provision of Supportive Measures. The privacy of student education records will be protected in accordance with the Family Educational Rights and Privacy Act ("FERPA"), and the privacy of employee records will be protected in accordance with state law and UNA policy.

Confidentiality exists in the context of laws that protect certain relationships, including those who provide services related to medical and clinical care, mental health providers, counselors, and ordained clergy. The law

creates a privilege between certain health care providers, mental health care providers, attorneys, clergy, spouses, and others, with their patients, clients, parishioners, and spouses. UNA has designated individuals who have the ability to have privileged communications as Confidential Resources.

Title IX Reports and Complaints: Requests for Confidentiality or No Further Action

When a Complainant requests that UNA not use their name as part of any resolution process, or that UNA not take any further action, UNA will generally try to honor those requests. However, there are certain instances in which UNA has a broader obligation to the community and may need to act against the wishes of the Complainant. In such circumstances, the Title IX Coordinator will notify the Complainant in writing of the need to take action. The factors the Title IX Coordinator will consider when determining whether to act against the wishes of a Complainant include:

1. The Complainant's request not to proceed with filing a Formal Complaint;
2. The Complainant's reasonable safety concerns regarding filing a Formal Complaint;
3. The risk that additional acts of Prohibited Conduct would occur if a Formal Complaint is not filed;
4. The severity of the alleged Prohibited Conduct, including whether the conduct, if established, would require the removal of a Respondent from campus or imposition of another disciplinary sanction to end the discrimination and prevent its recurrence;
5. The age and relationship of the parties, including whether the Respondent is an employee of UNA, or whether the impacted person is a minor;
6. The scope of the alleged discrimination, including information suggesting a pattern, ongoing discrimination, or discrimination alleged to have impacted multiple individuals;
7. The availability of evidence to assist a decisionmaker in determining whether discrimination occurred;
8. Whether UNA could end the alleged discrimination and prevent its recurrence without filing a Formal Complaint;
9. Whether the conduct as alleged presents an imminent and serious threat to the health or safety of the Complainant or other persons, or that the conduct as alleged prevents UNA from ensuring equal access on the basis of sex to its education program or activity;
10. Whether the accused has a history of violent behavior or is a repeat offender;
11. Whether the incident represents an escalation on the part of the person accused;
12. Whether the accused used a weapon or force; and
13. Whether available information reveals a pattern of perpetration at a given location by a particular group.

X. Applicable Procedures

UNA will review all reports of Prohibited Conduct. The procedures used to adjudicate Prohibited Conduct will vary based on the nature of the Prohibited Conduct. Where more than one procedure may apply based on the parties and/or alleged conduct, UNA has discretion to apply the procedure that it determines is most appropriate based on the unique facts and circumstances presented by the allegations, as well as to consolidate multiple sets of allegations into a single investigation and/or adjudication. Likewise, UNA may decide to process and resolve separately allegations raised in the same report.

UNA will provide written notice to the parties of the policy and procedure that will be used in the resolution of any complaint made under this Policy.

When cases are transferred from one policy to another, and/or from one office to another, UNA will also transfer any file (including evidence gathered, if any) to the office or administrator who will be responsible for resolution of the complaint.

UNA has the discretion to consolidate complaints against more than one Respondent, or by more than one Complainant against one or more Respondents, or by one party against another party, when the allegations arise out of the same facts or circumstances.

XI. Records Retention

For a period of at least seven years after the date of a matter is concluded, UNA will maintain records documenting the response, resolution process used (if any), including any investigation and hearing report, sanction, and appeals records involving allegations of Prohibited Conduct.

Approved by UNA Executive Council for implementation as interim policy pending shared governance review. December 15, 2025

DRUG AND ALCOHOL ABUSE POLICY

It is the policy of the University of North Alabama that the unlawful possession, use, or distribution of illicit drugs and alcohol by students and employees on its property, or as a part of any of the University's activities, is prohibited.

Students, faculty, staff, and service employees who violate a local, state, or federal drug or alcohol statute may be referred to the appropriate law enforcement officials for prosecution. Additionally, an individual who violates the law or the provisions of this University's drug and alcohol policy will be referred to the appropriate supervisor or student judicial bodies for appropriate disciplinary action. University-imposed sanctions may include suspension or termination. As an alternative to disciplinary action, the University may require an individual to complete successfully a drug or alcohol recovery program in an approved treatment facility.

An individual who has drug, alcohol, or related problems may voluntarily seek counseling and follow prescribed treatment without fear of recrimination. Assistance may be given in referring persons to various community agencies which are trained and equipped to treat persons with drug or alcohol problems. These referral services are available at the University Health Center for students and through the faculty, staff, or service employee's supervisor, department head, or Assistant Vice President for Human Resources for faculty, staff and service employees.

The provisions of this policy shall apply to all students and to all University employees, full-time or part-time, including professional and nonprofessional employees, as well as persons on the University Campus for any purpose.

The University of North Alabama Board Of Trustees empowers the University President, or his administration, to administer this policy. The University President is further empowered to take all actions necessary to comply with the United States Department of Education Drug Free Schools and Campuses Regulations, as currently written, or to be promulgated in the future.

Approved by the Board of Trustees, 11/28/1990

EMERGENCY CLOSING POLICY

There are situations (e.g., inclement weather conditions, other acts of God, power failures, etc.) that will prevent University of North Alabama employees from performing their normal duties. These situations may necessitate the cancelling or delaying of classes (including Kilby School), and work activities, or the curtailing of scheduled activities. Conditions may exist which limit employees' abilities to report to work. Certain jobs are considered essential during an emergency and require designated personnel to be present for work.

Closing Guidelines

The following apply in situations requiring the opening/closing of the University during inclement weather and/or other emergency situations:

University Remains Open

If the University remains open, those employees who do not report to work must report their hours of absence as sick leave, annual leave, or leave without pay. The University does not wish personnel to take undue personal or property risks; therefore, employees are expected to use reasonable judgment, in keeping with their location and circumstances, as to whether or not they can or should report to work. If an employee feels it is in his/her best interest to leave work early due to inclement weather or other emergency conditions, he/she must report his/her absence as sick leave, annual leave, or leave without pay.

University Is Closed

If the President notifies employees in advance of the start of the workday that the University will be closed or will have a delayed opening, employees (to include those on annual and sick leave) are not charged leave for the time off. Part-time and temporary employees are paid for any hours scheduled to work during the period of closure. An employee not scheduled to work is not given credit for the additional time off. If the President announces during the day that the University will be closing early, an employee on annual leave or sick leave is charged leave as scheduled and does not receive additional credit for the hours the University was closed. Non-exempt employees (including part-time and temporary employees) who worked all scheduled hours (if any) should report their full shift, as if worked, on the bi-weekly timesheet.

If a natural catastrophe occurs that requires prolonged, complete or partial closing of the University, the policy of granting off-time without charging it against leave or providing leave with pay may be negated.

Essential Personnel

Designated essential personnel are required to work during periods when the University is closed. Each department head that has areas of responsibility that are deemed essential during inclement weather/emergency conditions creates a list of essential personnel. Employees so designated are informed well in advance of anticipated inclement weather condition requirements and informed of the requirements of this policy and other pertinent information as deemed necessary by the department head and supervisor.

Essential personnel are credited with compensatory time at the rate of an hour for each hour worked under the given circumstances. All hours over 40 hours per week are overtime and are credited as one and one-half times each hour worked.

Essential personnel must be available for emergency work as required. Essential personnel who fail to report for work as scheduled are subject to disciplinary action if they do not have a valid excuse.

Cancellation of Classes

Cancelling classes is an academic matter. The Provost and Executive Vice President for Academic Affairs recommends to the President calling off or dismissing classes. Cancellation of classes is predicated upon the faculty and their students catching up with the work (subject matter) missed prior to the end of the term, or in the case of Kilby School, on a revised schedule conforming to state requirements.

Approved by the Executive Council, 01/11/2000

EMPLOYMENT OF FOREIGN NATIONALS POLICY

UNA is an equal opportunity employer committed to achieving excellence and strength through diversity. The employment of foreign nationals in faculty and staff positions is an accepted practice for achieving diversity. UNA and foreign nationals, however, are subject to federal laws and regulations of the Departments of State, Labor, and Homeland Security (specifically, USCIS). Specifically, UNA is responsible for ensuring that all employees, regardless of citizenship or national origin, are lawfully employed. Specific to foreign national employees, UNA is, at a minimum, responsible for keeping them in-status (i.e., lawfully employed). This involves UNA's sponsorship of the employee as he/she applies for legal status and employment visa filing fees. The fees cannot be passed on to the foreign national employee. Failure to adhere to such laws subjects the University to potentially serious sanctions; therefore, UNA has established the following procedures that shall apply to all cost centers:

- The cost center desiring to hire a foreign national must obtain approval from the appropriate vice president for any expenditure associated with the employment of the foreign national *prior* to an offer of employment. Vice presidents will advise the Executive Council of pending employments.
- Vice presidents will then inform the Office of Human Resources of the cost center's desires, and that office will, in writing, apprise that Vice President and cost center head of current law related to employment of foreign nationals.
- During the job search phase, the Office of Human Resources will ensure that international applicants are advised of the eligibility requirements for employment in the U.S. The cost center seeking to employ the foreign national will work through its vice president and with the Office of Human Resources during the post-offer/pre-employment phase to ensure the foreign national's eligibility for the position and for the appropriate status. The cost center will continue to work with these offices throughout the visa application process.
- The University will apply for the H-1B, TN or O-1 visa. After the foreign national has been employed with the University for at least three years, the University will, at the employee's request, apply for employment-based permanent residency on behalf of the employee. If the employee has family, the employee must, if necessary, retain legal counsel to make the necessary petition on behalf on those family members.

IMPORTANT INFORMATION

The classifications which have been used most frequently to appoint immigrant faculty and staff at UNA are the:

- H-1B Temporary Worker – used to employ foreign nationals who qualify as individuals engaged in “specialty occupations,” defined by immigration regulations as the “professions” (i.e., university professors and other teachers, engineers, systems analysts and other computer professionals, financial analysts and others in advanced business specialties, accountants, lawyers, architects, and other

service professionals, health care professionals, etc.). The position may be of a permanent nature; however, the employment of the foreign national must be considered temporary. An individual may be employed for up to six years in H-1B status. Individuals employed as H-1Bs may remain in that status for a period of up to three years and may be renewed for up to three additional years.

- TN (Trade NAFTA) - restricted to nationals of Canada and Mexico and limited to specific professions as defined by the North American Free Trade Agreement. Admission to the U.S. in TN status is granted in one-year increments. The number of years an individual is allowed to remain in TN status is unlimited, provided an application for extension is made each year; however, TN status is not to be used for permanent employment.
- O-1 Visa – available to foreign nationals who have extraordinary ability in science, art, education, business, or athletics which has been demonstrated by sustained national or international acclaim and whose achievements have been recognized through extensive documentation. The foreign national must seek to enter the United States and continue to work in the area in which he/she is extraordinary. The O-1 petition has an initial period of stay of up to 3 years. Subsequent extensions are unlimited but may be granted for no more than one year at a time. Work visas such as the H-1B, O-1 and TN are filed by the employer on behalf of the employee and are issued to the employee.

Approved by the Executive Council, 07/25/2007

UNIVERSITY ENTERTAINMENT POLICY

The University Entertainment Policy is located on the Controller's website. To view this policy, please click the link above.

FAMILY AND MEDICAL LEAVE ACT (FMLA)

Eligibility

An employee will be eligible to seek unpaid leave under the Family and Medical Leave Act (FMLA) if (1) the employee has worked for the University for at least 12 months, (2) the employee has worked for the University for at least 1,250 hours during the 12 months before the leave and (3) at least 50 employees work at the same worksite or otherwise work within a 75-mile traveling distance from the employer's worksite. In certain circumstances, separate periods of employment are aggregated for the purposes of the 12-month requirement. Additionally, any time that the employee would have worked for the University but for his/her National Guard or Reserve obligations is counted toward the 1,250-hour requirement for FLMA Leave.

Types of Family and Medical Leaves

For purposes of this policy, the term "FMLA leave" refers to the leaves of absence under the Family and Medical Leave Act. Employees may qualify for various types of FLMA leave. Throughout this policy, the term "FMLA leave" refers to any of the following types of leaves:

Pregnancy Leave - An employee may take a Pregnancy Leave due to incapacity due to pregnancy, prenatal medical care or childbirth.

Birth, Adoption, and Bonding Leave - An employee may take leave for the birth, adoption and bonding for his/her child after birth, or for placement with the employee of a child for

adoption or foster care. The leave must be completed within 12 months of the child's birth, adoption or foster care placement.

Family Illness Leave - An employee may take leave for a family illness to care for a seriously ill or injured spouse, parent or child. The illness or injury must be a "serious health condition" within the definition of the FMLA, a term which is defined below. If the leave is for care of a child, the child must either be under age 18 or unable to care for himself/herself due to a mental or physical disability.

Employee Illness Leave - An employee may take leave because of his/her own serious health condition that makes the employee unable to perform his/her job.

Qualifying Exigency Leave - An employee may take a qualifying exigency leave for certain "qualifying exigencies" arising out of the fact that the employee's spouse, child of any age, or parent is on active duty (or has been notified of an impending call to active duty) in support of certain types of military operations, known as "contingency operations." The family member must be a member of the National Guard or one of the military's reserve units or a retired member of the regular armed forces or the Reserves. Qualifying exigencies may include attending certain military events, arranging for alternative childcare, addressing certain financial and legal arrangements, attending certain counseling sessions, attending post-deployment reintegration briefings and any other circumstance that the University and the employee agree should be a qualifying exigency and as to which they agree about the timing of the leave for that event.

Military Caregiver Leave - An employee may take a military caregiver leave to care for a spouse, child of any age, parent or next of kin who is a current member of the Armed Forces (including a member of the National Guard or the Reserves) and incurs a serious illness or injury in the line of duty or active duty that may render the service member medically unable to perform his or her duties, if the illness or injury is one for which the service member (1) is undergoing medical treatment, recuperation or therapy, (2) is in outpatient status, or (3) is on the temporary disability retired list. If a military caregiver leave also qualifies as a leave for family illness, the leave will be designated as a military caregiver leave.

Serious Health Condition

A "serious health condition" is an illness, injury, impairment or physical or mental condition that involves either an overnight stay in a medical care facility or continuing treatment by a health care provider for a condition that either prevents the employee from performing the functions of the employee's job or prevents the qualified family member from participating in school or other daily activities.

Subject to certain conditions, the continuing treatment requirement may be met by a period of incapacity of more than three consecutive calendar days combined with at least two visits to a health care provider or one visit and a regimen of continuing treatment, or incapacity due to pregnancy, or incapacity due to a chronic condition. Other conditions may meet the definition of continuing treatment.

Notice and Scheduling of Leave and Related Employee Responsibilities

Required Information - Employees who seek FMLA leave must provide sufficient information for the University to determine if the leave may qualify for FMLA protection and the anticipated timing and duration of the leave. Sufficient information may include that the employee is unable to perform job functions, the family member is unable to perform daily activities, the need for hospitalization or continuing treatment by a health care provider or circumstances supporting the need for a leave for a qualifying exigency or to serve as a military caregiver. Employees must also inform the University if the

requested leave is for a reason for which FMLA leave was previously taken or certified. Employees may also be required to provide a certification and periodic recertification supporting the need for leave. Unless a longer period is specified, a medical certification or recertification must be completed and returned to the University within 15 days of the University's request. Moreover, employees on leave may be contacted periodically for updates concerning their status and intent to return. Employees are expected to be fully responsive to such requests for updates.

Advance Notice of Foreseeable Leave - Except as otherwise provided below, employees must provide 30 days' advance notice of the need to take FLMA leave when the need for the leave is foreseeable. When 30 days' notice is not possible, the employee must provide notice as soon as practicable.

Scheduling of Foreseeable Leaves - If an employee plans to take FMLA leave for his/her own illness, a family illness, or to serve as a military caregiver because of planned medical treatment, the employee must make an effort to schedule the treatment to reduce the disruption to the University, subject to the health care provider's approval. An employee should generally consult with his/her supervisor to explore alternatives to reduce the disruption to the University.

Notice of Unforeseeable Leave - When a Family and Medical Leave for employee illness, a family illness, as a military caregiver, or for a qualifying exigency is needed due to a reason that was not foreseeable, an employee should give his/her supervisor and the Office of Human Resources verbal or written notice as soon as he/she reasonably can do so.

Effect of Insufficient Notice - An employee's failure to give adequate notice may delay, or may result in the denial of, the employee's right to receive the protection of FMLA leave.

Confirmation of Leave - The University shall inform employees who request FMLA leave whether they are eligible for a leave that is covered by the FMLA. If the employee is eligible, the notice shall specify any additional information that the University requires as well as the employee's rights and responsibilities. If the employee is not eligible, the University shall provide at least one reason of the ineligibility determination. The University shall determine if leave will be designated as FMLA-protected and the amount of leave counted against the employee's leave entitlement. If the University determines that the leave is not FMLA-protected, the University shall inform the employee.

Length of Leave and Restoration Rights

General - In general, except for those employees taking leave to serve as a military caregiver, an employee will be entitled to a maximum of 12 weeks of FMLA leave (for any type of FMLA leave or a combination thereof) during any 12-month period. The 12-month period is a rolling period measured backward from the date an employee uses any leave under this policy. Each time an employee takes any FMLA leave, the remaining leave entitlement will be any balance of the 12 weeks that has not been used during the immediately preceding 12 months.

In the case of a military caregiver leave, an employee is entitled to a maximum of 26 weeks of leave in the 12-month period beginning on the first day that the employee takes this form of leave and ending 12 months later.

Nature of the Leave - FMLA leave for the birth, adoption and bonding must be taken at one time and before the end of the 12-month period beginning on the date of the child's birth or placement.

Other types of FMLA leave may be taken through either a reduced working schedule or intermittently if such an arrangement is medically necessary (or if the University approves such an arrangement in its

discretion). If an employee is entitled to FMLA leave for his/her own illness, a family illness, or to serve as a military caregiver leave, or if the employee is permitted to work on a reduced work schedule or intermittent basis, the University may transfer the employee temporarily to a position for which he/she is qualified and which has equivalent pay and benefits if the alternative position would better accommodate the recurring leaves than the employee's regular position. Use of intermittent or reduced schedule leave is measured in increments of one hour. Leave for a qualifying exigency may also be taken on an intermittent basis.

Special Rule Applicable to Spouses who are Both Employed by the University - If the University employs both spouses, the combined total Family and Medical Leave to which they will be entitled together will be 12 weeks in any 12-month period if the leave is taken for birth, adoption and bonding.

Restoration Rights

General - At the end of FMLA leave, an employee will generally have the right to return to his/her last position before the leave or to an equivalent position with equivalent benefits, pay and other terms and conditions of employment. In returning from any of these leaves, the employee will not lose any benefit rights, such as sick or annual leave, to the extent that those benefit rights accrued before the leave period.

Certification Before Return - Before an employee may return from FLMA leave for his/her own illness that has continued for at least 5 calendar days, the employee's health care provider may be required to certify that the employee is able to resume his/her job. The employee will be required to bear the out-of-pocket costs of such a certification, if any.

Pay and Benefits

Pay - FMLA leaves are not paid leaves. However, an employee may substitute a paid leave for which the employee is eligible for otherwise unpaid leave. In this case, the FMLA leave, and the paid leave would run concurrently and would remain subject to all protections that would apply if the leave were taken on an unpaid basis. Employees who seek paid leave will need to meet the notice and qualification requirements under the respective leave policies.

Other Benefits - During FMLA leave, the University will continue the employee's health/vision and dental insurance coverage. Likewise, the employee is entitled to continue said coverage for his/her family provided that he/she pays the regular premium on a timely basis. In addition, employees may elect to continue any supplemental insurance policies by timely payment of premiums. During any paid leave, the employee's share of the premiums will be deducted from the employee's pay.

Group life insurance and long-term disability insurance will also be maintained during FMLA leave as if the employee was actively employed.

Medical Records

Documents relating to medical certifications, recertifications or medical histories of employees or employees' family members will be maintained separately and treated as confidential medical records, except that in some legally recognized circumstances, the records (or information in them) may be disclosed to supervisors and managers, first aid and safety personnel, or government officials.

FMLA Violations and Enforcement

Unlawful Actions by Employers - The FMLA makes it unlawful for any employer to:

- Interfere with, restrain, or deny the exercise of any right provided under the FMLA; or
- Discharge or discriminate against any person for opposing any practice made unlawful by the FMLA or for involvement in any proceeding under or related to the FMLA.

Enforcement - An employee may file a complaint with the U.S. Department of Labor or may bring a private lawsuit against an employer. The FMLA does not affect any Federal or State law prohibiting discrimination or supersede any State or local law or collective bargaining agreement which provides greater family or medical leave rights.

Approved by the Executive Council, 08/22/2011

FREE SPEECH AND ASSEMBLY POLICY

The University of North Alabama (UNA or the University) recognizes and supports the rights of members of the campus community to engage in expressive activities in a manner consistent with local, state and federal law. The purpose of this policy is to promote the free exchange of ideas and the safe and efficient operation of the University. The primary function of the University is the discovery, improvement and dissemination of knowledge by means of research, teaching, discussion and debate. It is not the role of the University to shield individuals from speech protected by the First Amendment to the United States Constitution and Article I, Section 4 of the Constitution of Alabama of 1901, including ideas and opinions they find unwelcome, disagreeable, or offensive. The University protects intellectual freedom and free expression. In balancing the rights of students, faculty, staff and visitors to speak on campus with the University's need to preserve and protect its campus community, expressive activities may be subject to reasonable regulation with regard to time, place and manner, whether inside buildings or outside on campus ground.

Within this policy "expressive activities" include:

- Meetings and other group activities of registered UNA student organizations;
- Speeches, performances, demonstrations, rallies, vigils and other similar events by members of the campus community, which is defined as students, administrators, faculty, and staff, and the invited guests of the University and the University's student organizations, administrators, faculty, and staff;
- Distribution of literature by members of the campus community, such as leaflets and pamphlets;
- Students, administrators, faculty, and staff taking positions on public controversies; and
- Any other expression protected by the First Amendment to the United States Constitution or Article I Section 4 of the Alabama Constitution.

The University supports free association and will not deny a student organization any benefit or privilege available to any other student organization or otherwise discriminate against an organization, based on the expression of the organization, including any requirement of the organization that the leaders or members of the organization affirm and adhere to an organization's sincerely held beliefs or statement of principles, comply with the organization's standard of conduct, or further the organization's mission or purpose, as defined by the student organization.

The University will strive to remain neutral, as an institution, on the public policy controversies of the day, except as far as administrative decisions on the issues that are essential to the day-to-day functioning of the

University, and will not require students, faculty, or staff to publicly express a given view of a public controversy.

The University campus is open to any speaker invited by registered student organizations or faculty. The University will not charge fees based on the protected activity of the member of the campus community or student organization, or the content of the invited guest's speech, or the anticipated reaction or opposition of listeners.

The University will maintain and enforce constitutional time, place and manner restrictions for outdoor areas of campus only when they are narrowly tailored to serve a significant institutional interest and when the restrictions employ clear, published, content-neutral and viewpoint-neutral criteria, and provide for ample alternative means of expression. All restrictions shall allow for members of the University community to spontaneously and contemporaneously assemble, speak and distribute literature. The University provides forums for the expression of ideas and opinions, and outdoor areas are deemed to be a forum for members of the campus community. The University does not create free speech zones or other designated outdoor areas of the campus in order to limit or prohibit protected expressive activities by members of the campus community.

Persons other than members of the campus community may engage in expressive activity in designated campus areas, so long as their expressive activity is otherwise lawful, compliant with university policies and procedures, and does not disrupt the functioning of the University or interfere with the expressive activity of another person or group. Contact UNA Police for locations designated for expressive activity by persons other than members of the campus community.

GUIDELINES

- The University strongly encourages that all activities be registered with the appropriate office and the desired location be reserved in advance to determine if the space is available and to allow time to make adequate University arrangements. For more information regarding space availability, contact the Office of University Center Operations and Event Management located in the Guillot University Center, room 107, (256) 765-4658.
- If literature is distributed, the party distributing the literature is responsible for cleaning up any discarded literature and restoring the campus to its previous condition.
- Use of campus land is on a temporary basis.
- Time, Place and Manner Restrictions: Expression by members of the campus community may be limited or restricted with respect to time, place or manner only as provided for in this policy or other related statements of policy. For outdoor areas of campus, such limitations shall be narrowly tailored to serve a significant institutional interest (such as avoiding disruption to the function or security of the University; prohibiting conduct that materially and substantially disrupts another person's or group's expressive activity; prohibiting unlawful harassment; avoiding the scheduling of two events at the same time in the same facility; prohibiting the blocking or use of threats to prevent any person from attending, listening to, viewing or otherwise participating in expressive activity; prohibiting conduct that prevents individuals from transacting business or lawful meeting, gathering or procession; etc.) and to assure compliance with applicable local, state and federal laws.
- No person may engage in conduct that materially and substantially disrupts the protected expressive activity or infringes on the rights of members of the campus community to engage in or listen to a protected expressive activity that is occurring in a location that has been reserved for that protected expressive activity.
- All time, place and manner restrictions must be both reasonable and content-neutral, the latter term meaning that they shall be applied without regard to the content of the expression or the purpose of

the assembly. Limitations may include requiring scheduling and planning with the appropriate office, restricting or prohibiting the use of certain areas (i.e., ingress and egress areas, instructional classrooms and areas, laboratories, etc.), limiting amplification within a certain distance of academic buildings when classes or other academic activities are being conducted, and reimbursing the institution for any costs and damages associated with the use of a facility, area or medium.

Nothing in this policy is intended, nor should it be understood, as an endorsement or approval by the University of any speech or demonstration on campus. Given the wide range of expression that occurs at higher education institutions, the use of any institutionally controlled facility, area or medium for any expression shall not constitute or suggest endorsement by the Board, the University, its administration, staff, faculty, student body or any individual member of these constituencies.

Individuals and groups utilizing university property shall assume full responsibility for any violation of law they commit while on university property.

REVIEW

The Vice President for Student Affairs is responsible for the review of this operating policy every four years or as needed.

Approved by Shared Governance Executive Committee and President Kenneth Kitts, 05/09/2019

Approved by Executive Council as interim policy until review/approval by Shared Governance and Board of Trustees, 07/30/2024

This policy will be interpreted and enforced consistent with Ala. Code 1975 § 16-68-1 through 8

Approved by the Board of Trustees, 03/14/2025 (Interim designation removed)

GRIEVANCE POLICY

GRIEVANCES

A grievance is a complaint directed against another member or organization of the university community or against the University--including the departments, divisions, and colleges thereof--alleging improper, arbitrary, or discriminatory application of university rules, regulations, standards, practices, and/or procedures relating to the conditions of employment, or to other circumstances giving proper grounds for complaint. Grievance procedures do not apply to actions involving disciplinary suspension, dismissal, or other termination of employment for cause. For such actions, reference is made to the procedures under the Due Process Policy (contained in the [Faculty Handbook](#)).

Informal procedures

A grievance must be filed within fourteen (14) days* of the event(s) that lead to the grievance. A grievant first must seek resolution or redress of the grievance informally through the established administrative channels beginning, according to the grievant's classification and to the nature of the grievance, with the official at the first or immediate level of authority, and, if required, continuing in the chain of authority to the next higher level. The complaint of a faculty member normally will be directed to the department head/director with continuation in line to the Provost and Executive Vice President for Academic Affairs; for staff, to the immediate supervisor/director and appropriate Executive Council member with continuation in line to the Associate Vice President for Human Resources (AVPHR). Following a thorough review of all information presented including discussions with all parties involved, the VPAA or AVPHR should provide a written response to the grievant at the completion of the process.

At any point during the informal process, the grievant may seek resolution with the [University Ombudsman](#).

Formal hearing

If, after exhausting recourse through informal procedures, the grievant still feels that a satisfactory remedy or relief has not been provided, the grievant may request a formal hearing within fourteen (14) days* of receipt of the response from the Provost or AVPHR. The request shall be directed to the President of the University in writing and shall bear the grievant's name, current address, and telephone number; a clear statement of the nature of the grievance and the facts supporting it; the remedy or relief sought; the date; and the grievant's signature.

On receipt of the grievant's request, the President shall proceed to the establishment of a proper Grievance Committee to hear the case, as provided for under Grievance Committees below and shall give the grievant not less than seven (7) days'* advance notice as to the date, time, and place set for the hearing.

GRIEVANCE COMMITTEE

On proper request for a hearing, as hereinafter provided, the President of the University shall establish for grievance hearings an ad hoc committee of three persons. The committee shall be composed of university personnel appointed by the President, according to the classification of the person initiating the request, as follows:

Committee Composition: Committees shall be composed as follows:

- **University Faculty:** from the list of nine (9) nominees established for such purposes by the Faculty Senate at the beginning of each academic year.
- **Staff:** from among members of the university staff including recommendations from Staff Senate.

Committee Selection: Toward assuring a full and impartial hearing strictly on the merits of the case, due regard shall be given to appointment to committees of persons with appropriate expertise and without bias or direct interest in the outcome, to provision for peer representation where relevant, and to adherence to hearing procedures. Persons appointed to grievance committees who deem themselves disqualified by reasons of bias or interest may be excused. The grievant or accused shall have the right of challenge of committee appointments for cause and if in the judgment of the President a challenge is supported by adequate grounds, the member so challenged shall be excused. The President shall appoint replacements for members excused until a proper committee is established. The President shall designate one member of the committee to act as chair or may appoint an additional ex officio nonvoting member to act as chair. The committees may adopt supplemental rules and regulations for their governance and operation which are not in conflict with this resolution.

Functions of the Grievance Committee: The Committee or Committee Chair may confer with the grievant prior to the hearing to schedule witnesses, provide for the exchange of documents, and achieve other appropriate objectives to make the procedures fair, effective, and expeditious. In the hearing, the Committee may question the grievant and the witnesses presented by the grievant, may call such witnesses and examine such documents as it considers necessary, and shall keep a record of the hearing such as a recording or transcript from a court reporter.

The Committee's role is to investigate the complaint as presented to the Committee by the grievant, to obtain all the facts in the dispute, and to come to a conclusion as to whether or not the grievant has

just cause for complaint. In grievances which are contractual in nature, the Committee's role is to determine whether or not the grievant has had all the benefits of the procedures afforded by the grievant's contract and the rules and regulations of the University, school, and department, and whether or not the decision which forms the basis for the complaint was the result of adequate consideration in terms of the relevant standards of the University, school, and department. It is not within the scope of the Committee to make judgments on the professional qualifications of the grievant, such being the responsibility of the administrators within the concerned department, school, and the University. The Committee shall be guided in its decisions only by the evidence presented at the hearing.

Grievance hearing procedures: A grievance hearing is not an administrative due process hearing and therefore does not include all of those procedures provided for in due process hearings; neither do formal rules of evidence apply. The hearing shall be confidential and only those persons concerned should be included in the hearing.

Rights and responsibilities of the grievant: It is the responsibility of the grievant to present all the facts and to prove the merits of the grievance. To this end the grievant shall state the grievance with specificity, shall be allowed to present witnesses and documents on the grievant's behalf, and to examine any other witnesses and documents presented. The grievant shall not be represented by counsel but may have the assistance of an adviser of his/her choice from among personnel of the university community.

The Committee's report and final action: Upon conclusion of the hearing, the Grievance Committee shall prepare a report summarizing the evidence and rendering its conclusions. Copies of the report shall be sent to the President. Within fourteen (14) days* of the receipt of the report, the President, giving due weight to the report of the Committee, shall render a decision and so notify the grievant. The President's action shall be final, except that a grievant may appeal adverse findings to a subcommittee of the Board of Trustees.

It is at the discretion of the President whether or not a formal hearing is granted; the President reserves the right to remand the grievance to alternative forms of resolution.

**Excludes weekends, University recognized holidays, and periods during which the University is closed.*

Approved by the Board of Trustees, 12/04/1992

Proposed Changes Approved by Shared Governance and University President, 02/10/2017

MILITARY LEAVE

The University will comply with the Uniform Services Employment and Reemployment Rights Act of 1994 (USERRA) and applicable Alabama laws pertaining to military leave. As laws or as interpretations thereof change, military leave benefits for university employees may change accordingly. No attempt is made by this policy to cover all possible situations and circumstances that may arise when an employee is ordered to active duty. Therefore, as military leave situations arise, employees should consult with their supervisor and/or the Office of Human Resources for current and complete details regarding their military leave rights as a university employee and any continuation of benefits issues.

In accordance with USERRA and Ala. Code § 31-12-2 (2002), university employees who perform service in the uniformed services (as defined by USERRA) are entitled to a military leave of absence from their university positions, subject to the limitations and restrictions set forth in federal and state laws and in university policy. Upon receiving an assignment for military service, employees should promptly provide notice to their supervisors and the Office of Human Resources prior to going on military duty, unless precluded by military necessity.

Except as provided below, eligible university employees on duty with the uniformed services (as those terms are defined by USERRA) will be placed on unpaid military leave status for all days engaged in such service. Affected employees are not required to use annual leave in lieu of paid or unpaid military leave; however, they may elect to use accrued annual leave or earned comp time at their discretion.

- University employees eligible for Military Leave who are active members of the Alabama National Guard or of any other reserve component of the Armed Forces of the United States will receive, pursuant to Ala. Code § 31-2-13 (1995), up to 21 days (168 hours) of paid military leave per calendar year for performance of federal military duty. This military service includes drills, annual training, or military schools. It is not necessary for employees who are on military leave to return to work for the University in order to receive 168 hours of paid military leave for the calendar year subsequent to being placed on military leave. Once the 168 hours of paid military leave is exhausted, an employee may use other leave available, such as annual leave or earned compensatory time.
- In addition to the 168 hours per calendar year mentioned above, if these particular employees are called into active service of the State of Alabama by the Governor (typically in times of natural disaster), they will receive, pursuant to Ala. Code § 31-2-13 (1995), an additional 168 hours of paid military leave at any one time while called by the Governor to duty in the active service of the state.

If the military base pay of an employee called into active service for the war on terrorism is less than the salary he/she would have continued to receive if not called to active service, he/she may receive a salary differential (pursuant to Ala. Code § 31-12-5 (2002)) that is equal to the difference between the lower active duty military base pay and the higher public salary.

Approved by the Executive Council, 08/22/2011

NEPOTISM (EMPLOYMENT OF RELATIVES)

The Alabama Nepotism statute provides that:

No officer or employee of the state or of any state . . . institution . . . shall appoint any person related to him within the fourth degree of affinity or consanguinity to any job, position or with any of its agencies . . . Alabama Code, Section 41-1-5 (1975).

This statute is applicable to all university positions, including temporary, part-time, and student positions.

Relatives may be employed as peers within an academic department or administrative unit; however, no supervisory relationship may be allowed between persons who are related within the fourth degree by blood or marriage. The Executive Council may, for compelling reasons, make limited exceptions to this policy, but its reasons for doing so must be reflected in its report to the Board of Trustees Executive Committee.

PAID BIRTH RECOVERY LEAVE PROGRAM POLICY

The University recognizes the importance of a period of paid leave for medical recovery from childbirth. This leave may be used in conjunction with other forms of paid and unpaid leave following the birth of a child.

Paid Birth Recovery Leave

Four weeks of paid Birth Recovery Leave per year will be provided to eligible employees who give birth and are eligible for Family and Medical Leave (FMLA). Birth recovery leave specifications are as follows:

- Must be taken immediately following the birth;
- Must be taken consecutively in one-week increments;
- Limited to one paid birth recovery allotment per rolling calendar year; and
- Paid at 100 percent of straight-time, regular, base pay or salary (excludes summer pay).

Eligibility

Eligible employees must meet the following requirements:

- Must be a full-time, regular faculty or staff member;
- Must have completed two full calendar years of employment in an active status (inclusive of nine- and ten-month appointments);
- Must be a birth parent;
- Must be eligible for Family and Medical Leave (FMLA) –
 - Requirement of 12 previous months of service, and
 - Service of at least 1,250 hours in the previous 12 months.

Leave Considerations

If the birth occurs outside of a regular appointment period, employee will only be eligible for the balance of the four-week recovery period that overlaps the next regular appointment period.

Eligible employees are limited to one birth recovery leave period per 12-month rolling year.

Coordination with other Leave Types

Paid birth recovery leave must be taken in concurrence with Family and Medical Leave (FMLA).

Eligible employees who qualify for paid birth recovery leave (if approved) must exhaust birth recovery leave prior to using paid parental leave.

Birth recovery leave may be used in conjunction with a variety of paid leave types such as sick leave, annual leave, and compensatory time not to exceed the 12-week Family and Medical Leave (FMLA) maximum.

If a paid university holiday occurs during a week of paid birth recovery leave, no additional pay or time off will be provided for the University holiday. For example, if a week of paid birth recovery leave occurs during the week of Memorial Day, the employee is not also entitled to holiday pay or a day off at another time. Paid birth recovery leave should not be used during whole holiday weeks such as Spring Break and the two-week Christmas holiday break. In the case of whole holiday weeks, the balance of the four-week entitlement will resume the week immediately following the holiday week(s).

Notice and Application for Leave

An eligible employee should make application for paid birth recovery leave at least 60 days prior to the birth, unless not practicable.

Following proper notice to the supervisor, an eligible employee who plans to use paid birth recovery leave should complete a Request for Paid Birth Recovery Leave form (**form in development*). The request will be routed to Human Resources who will, in turn, provide instructions for next steps to include Family and Medical Leave (FMLA) request forms to be completed by a medical provider.

Required Documentation

Eligible employees who make application for paid birth recovery leave will be required to provide the following documentation:

- Completed Request for Paid Birth Recovery Leave form (**form in development*);
- Family and Medical Leave (FMLA) certification completed by medical provider – employee must [contact HR](#) to begin this certification process;
- Birth certificate that lists the eligible employee as birth parent (must be provided to Human Resources within three (3) business days of receipt).

Approved by the Board of Trustees, 09/08/2023

PAID PARENTAL LEAVE PROGRAM POLICY

Recognizing the need for work-life balance as it relates to bonding with a new child, the University provides eligible employees with paid parental leave.

Paid Parental Leave

Four weeks of paid parental leave per year will be provided to eligible employees who experience a qualifying event* as defined below. Leave usage requirements are as follows:

- Must be taken within 12 months of the qualifying event*;
- Can be taken intermittently or consecutively, but must be taken in one-week increments;
- Limited to one paid parental leave allotment per rolling calendar year; and
- Paid at 100 percent of straight-time, regular, base pay or salary (excludes summer pay).

Eligibility

Eligible employee must meet the following requirements:

- Must be a full-time, regular faculty or staff member;
- Must have completed two full calendar years of employment in an active status (inclusive of nine- and ten-month appointments);
- Must be the legal parent of a newborn or newly adopted/placed child. The name of the employee must be listed on the child's birth certificate or certified legal document that establishes adoption/placement.
- Must be eligible for Family and Medical Leave (FMLA) –
 - Requirement of 12 previous months of service, and
 - Service of at least 1,250 hours in the previous 12 months.

***Qualifying Event**

Parental Leave is granted to each eligible employee for one of the following qualifying events per rolling calendar year:

- Birth of a newborn child;
- Adoption of a child under the age of seven (7); and/or
- Placement of a foster child under the age of seven (7).

Leave Considerations

If the qualifying event occurs outside of a regular appointment period (e.g., during the summer months), then eligibility for paid parental leave will begin with the next regular appointment period (if applicable) and will end at the close of said appointment period.

Eligible employees are limited to one qualifying event per child and one qualifying event per 12-month rolling year.

Coordination with other Leave Types

Paid parental leave will be used concurrently with Family and Medical Leave (FMLA).

Eligible employees who qualify for birth recovery leave (if approved) must exhaust birth recovery leave prior to using paid parental leave.

Paid parental leave may be used in conjunction with a variety of paid leave types such as sick leave, annual leave, and compensatory time not to exceed the 12-week Family and Medical Leave (FMLA) maximum.

If a university holiday occurs during a week of paid parental leave, no additional pay or time off will be provided for the University holiday. For example, if a week of paid parental leave occurs during the week of Memorial Day, the employee is not also entitled to holiday pay or a day off at another time. Parental leave should not be used during whole holiday weeks such as Spring Break and the two-week Christmas holiday break.

Notice and Application for Leave

If the need for paid parental leave is foreseeable, an eligible employee should make application at least thirty (30) days prior to the anticipated qualifying event. However, if the need for paid parental leave is unforeseeable, an eligible employee should provide as much notice as possible.

Following proper notice to the supervisor, an eligible employee who plans to use paid parental leave should complete a Request for Paid Parental Leave form (**form in development*). The request will be routed to Human Resources who will, in turn, provide instructions for the next steps to include Family and Medical Leave (FMLA) request forms to be completed by a medical provider.

Required Documentation

Eligible employees who make application for paid parental leave will be required to provide the following documentation:

- Completed Request for Paid Parental Leave form (**form in development*);
- Family and Medical Leave (FMLA) certification completed by medical provider – employee must [contact HR](#) to begin this certification process;
- Medical documentation for childbirth –
 - Birth certificate that lists the eligible employee as a parent;
 - Must be provided to Human Resources within three (3) days of receipt.
- Documentation for Adoption or Foster Care –
 - Legal documentation must provide the date of the adoption and/or placement of a child for adoption or foster care with the eligible employee;

- Must be provided to Human Resources within three (3) business days of receipt.

Approved by the Board of Trustees, 09/08/2023

PATENT POLICY

In view of the far-reaching research in the various divisions of the University, it is inevitable that new discoveries and inventions will be made. The University of North Alabama recognizes that the protection and control provided under the patent laws may have to be invoked to obtain the greatest public benefit and usefulness from the products of scientific research. It is recognized that employees of the University might need assistance in determining and evaluating patentability and in prosecuting patent applications of inventions made by them. Many such inventions involve equities beyond those of the inventor himself or herself since the use of university facilities, the assignment of duties as a condition of employment, and the use of research funds with contractual obligations regarding patent rights give rise to complicated questions concerning rights and equities of all concerned. Therefore, in order to appraise relative rights and equities of all parties concerned, to facilitate patent applications, licensing, equitable distribution of royalties or other financial returns, to provide a uniform procedure in patent matters, and to serve the public benefit and interest, the Board of Trustees for the University of North Alabama (herein called the University), on recommendation of the President of the University, authorizes the establishment of a Patent Committee and the adoption of the patent policy as set forth herein.

1. The President of the University is hereby authorized to appoint a University Patent Committee composed of members representative of the entire university to administer the patent policy and to designate a Patent Administrator to administer the policies of the committee. This committee and the Patent Administrator shall serve at the pleasure of, and their actions shall be subject to the approval and right of review of, the President of the University.
2. Subject to the approval of the President, the Patent Committee shall have the power to adopt such rules and procedures as are deemed appropriate; to determine the interest of the University in all reported inventions; to cause all reported inventions to be investigated in order to evaluate the interest of the University in said invention (with due consideration given to the achievement of the inventor and the financial returns to the inventor and the University); to authorize the Patent Administrator to execute a release when the Patent Committee decides that the University has no interest in the invention or decides that the University does not desire to pursue the patenting or development of the patent; to authorize applications for patents on reported inventions and to retain patent counsel, in association with the University Attorney, for matters pertaining to patent applications; and to make recommendations to the President with regard to the prosecution and protection thereof and any litigation that may arise therefrom. The Patent Committee shall have power also to do all things appropriate for the investigation of patent rights and for the exploitation of patent rights by direct exercise, exclusive or non-exclusive licensing, and make recommendations to the President with regard to partial or total assignment or sale thereof. All questions concerning the methods by which the patent shall be commercially exploited shall be decided by the Patent Committee.

3. All faculty members and university employees, both while employed by the University and thereafter, shall report to the Patent Committee any invention or discovery related to the scope of their employment which they have conceived or developed, or which has been conceived or developed under their direction during their university employment.
4. Any such invention or discovery (a) which is the result of research carried on by or under the direction of any employee of the University and/or having the costs thereof paid by university funds or from funds under the control of or administered by the University and (b) which has been developed in whole or in part by the utilization of university resources or facilities belonging to the University shall be assigned to the University or a university designated non-profit organization established for its benefit. In other situations, the Patent Committee should determine if the University has an interest in the invention or discovery. Releases shall be executed by the Patent Administrator when the Patent Committee rules that the University has no interest in the patent or does not desire to pursue the patenting of the invention.
5. The Patent Committee shall cause each invention or discovery to be investigated in order to determine the interest of the University and, if the Patent Committee determines that the University has an interest in the invention which it desires to pursue, it shall undertake to obtain a patent on the invention. In determining whether or not the University has an interest in the invention, the Committee shall consider the benefits that might accrue to both the University and the inventor. The Patent Administrator and the Patent Committee are responsible to act within six (6) months of official notification by the inventor/discoverer for the purpose of protecting the property rights of the inventor and the University. Failure to act within the six (6) month's time will serve as a release of the University's interest in the invention.
6. As further consideration for the assignment rights set forth herein, the University agrees to pay annually to the inventor, his heirs and assigns, fifty percent (50%) of the royalties, fees, or other financial returns received by the University from such invention after a deduction of fifteen percent (15%) thereof for overhead costs, plus a deduction for all costs of patenting and protection of patent rights (incurred by the University). Recoupment of any unusual expenses paid by the University, or the inventor may be allowed by the Patent Committee on patents assigned to the University or to a university-designated non-profit organization established for its benefit. After these specified disbursements are made, all remaining financial returns from patents realized by the University are to be placed in the general fund of the University for distribution by the Budget Committee giving primary consideration to the University Research Fund administered by the Vice President for Academic Affairs and Provost.
7. The above policies shall not preclude the properly designated university officials from approving and executing research proposals, contracts, grants, and consulting agreements from or with the United States Government or its agencies, from or with corporations, or from or with individuals wherein the University's patent interest and the patent interest of the researcher, with his/her approval, are at variance with the above paragraphs; and the terms of said contracts, grants, and agreements shall prevail. Any of the above university officials may refer said proposals, grants, contracts, or agreements to the Patent Committee for recommendations prior to approval. To the extent the provisions of these proposals, contracts, grants, and agreements permit, the University shall administer such patents so as to make them broadly available in the public interest. This may be accomplished through non-exclusive licensing on a royalty-free, or on a reasonable royalty basis. Exclusive licensing may be utilized

for limited periods when further development is needed or investment or risk capital is not readily available, or there is no other incentive for the development of the invention.

8. This statement of policy shall not apply to copyrights except as they may pertain to inventions covered by this policy. This policy shall not apply to commercial ventures, joint ventures, or agreements to which the University is a party or shall become a party in the future. An example of such excluded ventures is the agreement existing for the creation, operation, and management of the University of North Alabama Laboratory of Applied Technology.

Approved by Board of Trustees, 03/07/1997

PROTOCOL FOR EXTERNAL FACULTY/STAFF SEARCHES

The University of North Alabama seeks to recruit and retain a diverse and highly qualified faculty who demonstrate excellence in teaching, scholarly activities, and public service. Similarly, UNA endeavors to recruit and retain equally diverse and highly qualified administrators and staff. Accordingly, the University is committed to ensuring that recruitment efforts are broad and focused on attracting diverse and qualified applicant pools by providing the following guidelines for external searches:

- Once a search is authorized, the hiring manager¹ will collaborate with Human Resources to determine recruitment strategies, including diverse recruiting source selection. Human Resources is committed to the continuous identification and evaluation of broad and diverse advertising strategies. The University has pre-determined reputable organizations, sites, nationally distributed publications, and discipline-based organizations which can be counted on to reach diverse audiences with well-qualified potential applicants. Moreover, Human Resources will collaborate with the hiring manager to identify additional applicable advertising strategies which may include professional groups/associations/conferences, minority-focused media, and active recruiting methods.
- While a search committee may be formed and utilized for the screening and vetting of candidates for any open position, a search committee is required only for faculty searches and staff searches at the director level and above. Search committee composition requirements for faculty positions are set forth in the Faculty Handbook. For staff searches, search committee composition is determined by each divisional head in consultation with Human Resources.
- The hiring manager and/or search committee members are responsible for review and screening of applicant materials to select those candidates most qualified to advance in the process. Human Resources provides hiring managers and search committees with resources to ensure an equitable recruitment and selection process.
- When a final candidate has been selected, the hiring manager makes a recommendation through the appropriate organizational hierarchy via an online request process. Once approved, the Office of the Provost or Human Resources will prepare an employment offer.

Deviation from this protocol may be necessary if unique circumstances exist. Exceptions to the protocol must be approved by the Associate Vice President for Human Resources.

Approved by Executive Council, 08/09/2011

¹ The Hiring Manager is the employee to whom the new employee will report when hired. For example, a new faculty member will report to his/her department chair (hiring manager).

PUBLIC COMPLAINTS

The University of North Alabama is committed to making a positive impact on its community locally, regionally, and globally. However, it is expected that there may be occasions upon which members of the public feel it is necessary to make the University aware of a complaint about a matter related to the University. Members of the public who make a complaint should be assured that the University will earnestly and promptly seek resolution of complaints.

Informal complaints should first be made to the University office or department that is most relevant to the complaint. Any office or department receiving a complaint should seek resolution of the complaint in a timely manner. If, after seeking remedy on an informal basis, the complaining party feels the complaint has not been satisfactorily addressed, he/she may make a formal complaint through the [Office of the Provost and Executive Vice President for Academic Affairs](#) using the following guidelines:

A written or electronic complaint should be prepared providing 1) the nature of the complaint, 2) all relevant background information, 3) the informal attempts the complaining party has made and to whom they were made, 4) why the outcome of the informal complaint process was considered unsatisfactory, and 5) the desired outcome of the formal complaint, if any.

Upon receipt of a formal complaint, the Provost and Executive Vice President for Academic Affairs will 1) respond directly, when possible, 2) forward the matter to the proper university office for a response, or 3) initiate an investigation as outlined in the following paragraph.

If the complaint can be resolved with a direct response from Provost and Executive Vice President for Academic Affairs or by another administrative office, the complaining party will receive a written response within 10 days of the University's receipt of the written complaint. If the University feels an investigation is warranted, the complaining party will be informed of the initiation of an investigation and of the date he/she should receive a report of its outcome. The investigation should be carried out by the senior administrator of the office/department from which the complaint arose and should conclude within 30 days of the formal complaint. It is the responsibility of the office/department investigating the complaint to report the final resolution to the Office of the Vice President for Academic Affairs and Provost once the review process has been completed.

Following the investigation process outlined above, the Provost and Executive Vice President for Academic Affairs will provide a written response to the complaining party that will address the appropriate action(s) taken by the University. Once this response has been sent to the complaining party, the matter will be considered closed.

A complaining party may withdraw his/her complaint at any time during the above-outlined process by contacting the Office of the Provost and Executive Vice President for Academic Affairs in writing or electronically.

PURCHASING POLICY (GENERAL)

No university employee may enter into a purchase agreement, make commitments to purchase, or otherwise obligate expenditure of university funds except on proper authorization and through the established procedures involving requisitions, purchase orders, delivery, invoice, and payment, and including strict compliance with the state bid law and sound business practices, and University of North Alabama purchasing policies and procedures.

Budget

For each fiscal year (October 1 - September 30), the university budget includes funds approved for each university cost center to purchase and requisition equipment, supplies, and services. The University's budget procedures are available in the Business and Financial Affairs Office.

Purchasing Office

The purchasing office coordinates with cost centers in taking advantage of special discounts, services, and shipping arrangements, and of the economies of large-scale purchases. All such purchases and services are charged back to the cost center originating the request, and cost center heads are responsible for keeping requests within their budgetary allocations. For requests of an unusual type and those that exceed budgetary allocations, cost center heads should consult the appropriate dean and/or director.

The University is not responsible for purchases made by persons other than the University's purchasing agent by official purchase order. Purchase orders are not issued after the fact. When these procedures are violated, the transaction is the personal obligation of the person making the arrangement.

Off-Campus Purchases

Any expenditure from university funds of \$200 or more requires a university purchase order. To receive a university purchase order, one must be requested from the purchasing office. Purchase order requests are created in Self-Service Banner under the finance section. A requisition must be properly completed to identify the cost center, budget account number, and details of the item(s) required. The form must be printed for appropriate signature by the cost center head and submitted to the purchasing office. If all the details are in order, a purchase order will be created. A minimum turn-around time of two workdays must be allowed for issuance of a purchase order, but normally a longer time period is required. Those employees with requests requiring bid submission must allow a minimum of four weeks for processing. No purchase order numbers are assigned by telephone except in emergency circumstances. Orders delivered or picked up must be inspected for conformity to the order before acceptance and invoice approval. All invoices for orders received must be promptly approved by the cost center head and sent to the Business and Financial Affairs Office for payment. Order cancellations or modifications, invoice errors, and other matters related to purchases should be cleared through the purchasing office.

On-Campus Purchases

Purchases to be made from the University supply room or the University Bookstore are requisitioned on the intra-campus request form, properly completed as to the identification of the cost center, the budget account number, and the signature of the cost center head. Cost centers should maintain a record of purchases by requisition from the supply room and the bookstore.

SOLICITATION POLICY

The University of North Alabama may authorize, by action of the President or the Board of Trustees, the solicitation of funds for recognized and established charities which benefit the general community. Additionally, the University sanctions an annual United Way fund campaign. Other solicitation of employees by other employees for membership, contributions, funds, or other purposes during employees' work hours (to include breaks and lunch period) is expressly prohibited.

Persons not employed by the University are not permitted to come or remain on university premises for the purpose of solicitation or distribution of cards, literature, notices, or papers of any kind in any work area. The posting of any such materials on walls, windows, machines or other equipment, or bulletin boards without the expressed permission of the appropriate member of the Executive Committee is prohibited.

Employees who discover persons making unauthorized solicitations should report such activities to their supervisors immediately.

NO SMOKING POLICY

The University of North Alabama is dedicated to providing a healthy, comfortable and educationally productive learning environment for faculty, staff, students and visitors. The University of North Alabama recognizes that smoking any substance presents a public health hazard. As such, it shall be the policy of the University of North Alabama that smoking shall be prohibited on all university-owned and operated property both indoors and outdoors.

"Smoking," as used in this policy, refers to inhaling, exhaling, burning, or carrying any lighted or heated smoking product and to the use of any such other electronic or other device that is used as an alternative to traditional tobacco products and that produces a smoke or vapor when in use. *"Smoking products"* include, but are not limited to, all cigarette products (cigarettes, bidis, kreteks, e-cigarettes, etc.) and all smoke-producing products (cigars, pipes, hookahs, vaporizers, etc.). *"University-owned and operated property"* includes but is not limited to: all outdoor common and educational areas; all university buildings; university-owned/operated housing facilities; campus sidewalks; recreational areas; outdoor stadiums; and university-owned and leased vehicles (regardless of location). Littering campus with the remains of smoking products is also prohibited.

This policy applies to all employees, students, visitors, contractors, and externally affiliated individuals or companies renting university-owned space on university-owned and operated property campus grounds.

Education will be the preferred enforcement method to ensure individuals adhere to the new policy. Individuals that violate this policy will be provided educational information on the new policy and offered a referral for smoking cessation. However, disciplinary action may also be used for repeat violations as indicated below.

- Students will be referred to the student conduct office. Violation of this policy is a violation of the Student Code of Conduct.
- Employees will be referred to their supervisor and/or appointing authority for appropriate action.
- Contractors will be referred to their respective employers for appropriate action.
- Visitors may be required to leave the campus if they fail to conform to the policy when advised.

ADDITIONAL RESOURCES AND SUPPORT

The University recognizes that quitting smoking can be a significant personal challenge. As such, the University will provide ongoing information, education, and support to faculty, staff, and students on a variety of wellness initiatives including cessation aids and programs.

Approved by the Board of Trustees, 06/12/1995

Revisions approved by the Executive Council, 05/10/2010

Revisions approved by Executive Council, 06/29/2015

Approved by the Board of Trustees, 06/07/2017

UNIVERSITY TRAVEL POLICY

The University Travel Policy is located on the Controller's website. To view this policy, please click on the link above.

VIDEO MONITORING AND SURVEILLANCE ACTIVITIES POLICY

PURPOSE

The University of North Alabama is committed to enhancing the quality of life of the campus community by integrating the best practices of safety and security with technology. A critical component of a comprehensive security plan is the proper utilization of a security and safety camera system. The surveillance of public areas is intended to deter crime and assist in protecting the safety and property of the UNA community. This policy addresses the University's desire to meet its safety and security needs while respecting and preserving individual privacy.

To ensure the protection of individual privacy rights in accordance with the University's core values and state and federal laws, this policy is adopted to formalize procedures for the installation of surveillance equipment and the handling, viewing, retention, dissemination, and destruction of surveillance records. The purpose of this policy is to regulate the use of camera systems used to observe and record public areas for the purposes of safety and security. The existence of this policy does not imply or guarantee that cameras will be monitored in real time 24 hours a day, seven days a week.

SCOPE

This policy applies to all personnel, departments, and colleges of the University of North Alabama in the use of security cameras and video monitoring and recording systems. Security cameras may be installed in situations and places where the security and safety of either property or persons would be enhanced. Cameras will be limited to uses that do not violate the reasonable expectation of privacy as defined by law. Where appropriate, the cameras may be placed campus-wide, inside and outside buildings. Although the physical cameras may be identical, the functions of these cameras fall into three main categories:

1. *Property Protection:* Where the main intent is to capture video and store it on a remote device so that if property is reported stolen or damaged, the video may show the perpetrator. Examples: an unstaffed computer lab, an unstaffed science lab, or a parking lot.
2. *Personal Safety:* Where the main intent is to capture video and store it on a remote device so that if a person is assaulted, the video may show the perpetrator. Examples: a public walkway, or a parking lot.
3. *Extended Responsibility:* Where the main intent is to have the live video stream in one area monitored by a staff member in close proximity. In this case the video may or may not be recorded. Example: a computer lab with multiple rooms and only one member of staff.

Information obtained from the cameras shall be used for safety and security purposes and for law and policy enforcement, including, where appropriate, student conduct functions. However, prudence should be exercised by parties requesting such information to ensure that requests are limited to matters of substantial consequence. The availability of surveillance recordings does not remove the responsibility of supervisors to work to prevent, detect, and address issues as they should normally do. Information must be handled with an appropriate level of security to protect against unauthorized access, alteration, or disclosure.

All appropriate measures must be taken to protect an individual's right to privacy and hold University information securely through its creation, storage, transmission, use, and deletion.

All camera installations are subject to federal and state laws.

Departments requesting security cameras will be required to follow the procedures outlined in this policy.

RESPONSIBILITIES

The University of North Alabama Police Department will manage all campus security surveillance systems pursuant to this policy.

To enhance security and aid law enforcement it may be appropriate to permanently install video devices on the campus. In such cases the following rules will apply:

- Individual departments, programs, or organizations wishing to permanently install video cameras shall submit a written request to the appropriate dean, director, or department head with a statement justifying the benefit of installing such equipment. The statement must include the proposed number and location of the device(s), as well as the purpose of the installation, whether the location of the cameras involve recording of activity by students, employees or the general public, and the name and title of the individual who will be responsible for reviewing the locations. The source of funding for the installation must be specifically identified as part of the request.
- The requesting department, program, or organization must work with the Information Technology Services, Facilities Administration and Planning, and the Chief of Police to determine the number and location of cameras prior to submitting their request.
- The appropriate dean, director or department head will forward the request along with his/her recommendation to their appropriate Vice President or if unavailable the Chief of Police.
- The Vice President or designee will review the request and will approve or disapprove. If approved the Vice President will forward the request to the University Executive Council with that recommendation.
- The University Executive Council in consultation with the Chief of Police, the Chief Information Officer, University's Legal Counsel, and the Assistant Vice President Facilities Administration and Planning shall be responsible for reviewing and approving or denying all proposals for security camera equipment recommended by a Vice President or the Chief of Police, and for approval of any requested exceptions to this policy.
- Unless otherwise directed by the University Executive Council, the Chief of Police for the University of North Alabama Police Department shall contact the Department of Facilities Administration and Planning and Department of Information Technology Services to oversee the installation of the video monitoring equipment. The Department of Facilities Administration and Planning will coordinate installation with a designated contractor or the Department of Information Technology Services. The contractor or Department of Information Technology Services will coordinate integration of the system.
- A member of the campus community may file a written request to change the location or limit the visual range of a specific installation of video monitoring equipment based on a belief that it infringes

on a reasonable expectation of privacy or other protected rights. The request shall be submitted to the appropriate Vice President to the University Executive Council and shall (a) identify the location, (b) identify the right believed to be infringed, and (c) provide an explanation of how the video device installation infringes that right. The University Executive Committee will consult with the University's Legal Counsel and respond to the request within twenty (20) business days after receipt. The response will be based on a reconsideration of the initial request to install the devices in light of the campus community member's concerns. The decision of the University Executive Council is final.

- Within three months of the effective date of this Policy, all existing uses of video monitoring and recording equipment on campus shall be brought into compliance with all aspects of this policy, including the approval process outlined in the preceding paragraph. Those that do not conform shall be removed.
- No researcher or organization, whether faculty, staff, student, or the general public, is authorized to use these cameras or recordings from the cameras for research purposes.
- Monitors for video equipment shall be installed in controlled-access areas and shall not be viewable by unauthorized persons.

The University Police Department will manage all campus security surveillance systems pursuant to this policy.

The University Police Department and Information Technology Services (ITS) are responsible for implementation of this policy, specifically for the following.

- Advising departments on appropriate applications of surveillance technologies and providing technical assistance to departments regarding security camera systems.
- Monitoring developments in the law and in security industry practices and technology to ensure that camera surveillance is consistent with the best practices and complies with all federal and state laws.
- Reviewing proposals and recommendations for camera installations and specific camera locations to determine that the perimeter of view of fixed location cameras conforms to this policy and forwarding recommendations to the University Executive Council.
- Annually evaluating camera locations.
- Testing and maintaining the camera systems.

The University Police Department will review any complaints regarding the use of surveillance camera systems and determine whether this policy is being followed. The University Executive Committee will review appeals of decisions made by the Chief of Police.

The President or the University Executive Council, in consultation with University Legal Counsel, will review all external requests to release records obtained through security camera surveillance prior to the release of any records.

PLACEMENT OF CAMERAS

The locations where cameras are installed may be restricted access sites such as a departmental computer lab; however, these locations are not places where a person has a reasonable expectation of privacy. Cameras will be located so that personal privacy is maximized.

Camera positions and views of residential housing shall be limited to public areas, elevators, and exterior locations. The view of a residential housing facility must not violate the standard of a reasonable expectation of privacy.

Unless the camera is being used for criminal investigations, monitoring by security cameras in the following locations is prohibited:

- Student dormitory rooms in the residence halls
- Bathrooms
- Locker rooms
- Offices – only at the entrance
- Classrooms not used as a lab

(These areas are protected by a "reasonable expectation of privacy." Use of cameras in these areas requires search warrants.)

The installation of “dummy” cameras that do not operate is prohibited. Unless being used for criminal investigations, all video camera installations should be visible.

ACCESS AND MONITORING

All recording or monitoring of activities of individuals or groups by University security cameras will be conducted in a manner consistent with University policies and state and federal laws and will not be based on the subjects’ personal characteristics, including age, color, disability, gender, national origin, race, religion, sexual orientation, or other protected characteristics. Furthermore, all recording or monitoring will be conducted in a professional, ethical, and legal manner. All personnel with access to University security cameras shall be trained in the effective, legal, and ethical use of monitoring equipment and shall receive a copy of this policy and provide written acknowledgement that they have read and understand its contents.

Access to live video or recorded video from cameras shall be limited to the University Police Department, designated ITS personnel and other personnel as authorized by the Chief of Police and Executive Director of ITS. The copying, duplicating and/or retransmission of live or recorded video shall be limited to persons authorized by the Chief of Police.

University security cameras are not monitored continuously under normal operating conditions but may be monitored for legitimate safety and security purposes that include, but are not limited to, the following: high risk areas, restricted access areas/locations, in response to an alarm, special events, and specific investigations authorized by the Chief of Police.

Personnel are prohibited from using or disseminating information acquired from University security cameras except for official purposes. All information and/or observations made in the use of security cameras are considered confidential and can only be used for official University and law enforcement purposes.

Any use of security cameras for reasons other than those cited in this policy is strictly prohibited. Violations of this policy or the procedures outlined therein will result in disciplinary actions consistent with the rules and regulations governing employees and students of the University as found in the Student Handbook and Employee Handbook.

USE OF CAMERAS FOR CRIMINAL INVESTIGATIONS

Mobile or hidden video equipment may be used in criminal investigations by the University Police Department. Covert video equipment may also be used for non-criminal investigations of specific instances that may be a significant risk to public safety, security and property as authorized by the Chief of Police.

USE OF CAMERAS FOR NON-CRIMINAL INVESTIGATIONS

Covert video equipment may be used for non-criminal investigations of specific instances that may be a significant risk to public safety, security, and property as authorized by the Chief of Police. An example of a non-criminal investigation would be an internal investigation conducted for HR where the goal is not to prosecute, but to determine continued employment after inappropriate use of university equipment or resources has been discovered. Another example would be video obtained to enforce a University policy and

procedure such as students propping open doors in a residence hall (not illegal, but a definite violation of policy).

EXCEPTIONS

This policy does not apply to cameras used for academic purposes. Cameras that are used for research are governed by other policies involving human subjects and are, therefore, excluded from this policy.

This policy does not address the use of webcams for general use by the University. This policy also does not apply to the use of video equipment for the recording of public performances or events, interviews, or other use for broadcast or educational purposes. Examples of such excluded activities include videotaping of athletic events for post-game review, videotaping of concerts, plays, and lectures, or videotaped interviews of persons. Automated teller machines (ATMs) that use cameras are exempt from this policy.

REQUEST FOR ACCESS TO LIVE AND/OR RECORDED VIDEO

Individual colleges, departments, programs, or campus organizations wishing to have access to live and/or recorded video shall submit a written request to the appropriate Vice President describing the requested access, with justification.

- The Vice President will review the request in consultation with the Chief of Police, if appropriate, and will forward it to the University Executive Council with a recommendation.
- The University Executive Council shall be responsible for reviewing and approving or denying all access requests recommended by the Chief of Police, via the Vice President.

TRAINING OF CAMERA OPERATORS

The University Police Department and the Information Technology Services department shall train camera operators in the technical, legal, and ethical parameters of appropriate camera use. Camera control operators shall receive a copy of this policy and provide written acknowledgement that they have read and understand its contents.

STORAGE AND RETENTION OF RECORDINGS

No attempt shall be made to alter any part of any surveillance recording and the surveillance centers and monitors will be configured to prevent camera operators from tampering with or duplicating recorded information.

All surveillance recordings shall be stored in a secure location for a period of 30 days and will then be erased or written over, unless retained as part of a criminal investigation, a civil or criminal court proceeding, or pursuant to a Preservation Notice issued by the University's legal counsel.

- Recordings will be stored in a manner consistent with available technology and transported in a manner that preserves security. Both current and archived recordings will be secured. All storage and access to recordings will be controlled by the University Police Department. Surveillance records shall not be stored by individual departments.
- Recordings used in law enforcement investigations or criminal prosecutions shall be retained until the end of the court or judicial proceedings and appeal period unless directed otherwise by a court.
- Recordings may also be retained for other bona fide reasons as determined by the University Police Department, in consultation with the University's legal counsel.
- Recordings shall be retained for 30 days and then will be erased or recorded over unless retained as part of a criminal investigation, a civil or criminal court proceeding, pursuant to a Preservation Notice issued by the University's Legal Counsel. No attempt shall ever be made to alter any recording. Editing

or otherwise altering recordings or still images, except to enhance quality for investigative purposes or blur features as described above, is strictly prohibited.

- Transmission of recordings using the Internet or campus network will use encryption technology to ensure that recordings are not improperly accessed.
- For FERPA purposes, recordings with information about a specific student are considered law enforcement records unless the University uses the recording for discipline purposes or makes the recording part of the educational record.
- The deletion of video, pursuant to this policy, and any exemption to the policy on deletion and records storage must be approved by the University Executive Council.
- Only the Chief of Police and the Chief Information Officer of the University are to be permitted and have the ability to delete video recordings pursuant to this policy.
- Individual departments shall not store video surveillance recordings.
- Editing or otherwise altering recordings or still images, except to enhance quality for investigative purposes or blur features as described above, is strictly prohibited.

A log shall be maintained by the Chief of Police of all instances of access to or use of surveillance records. The log shall include the date and identification of the person or persons to whom access was granted. The Chief of Police will also maintain a list of personnel approved to monitor live and/or recorded video feeds, with validation of each person having completed the required training. The right to view anything but live video will be very limited to ensure the integrity of this policy.

DESTRUCTION OR TAMPERING WITH CAMERAS

Any person who tampers with or destroys a camera or any part of the electronic surveillance system may be prosecuted in the criminal justice system as well as the campus Student Conduct system.

Approved by the Shared Governance Executive Committee and the President, 03/07/2016.

Revised and Approved by the Shared Governance Executive Committee and the President, 02/19/2020.

Revised and Approved by Shared Governance the President, December 2022.

POLICY REGARDING WORKPLACE THREATS AND VIOLENCE

The safety and security of its employees, students and visitors is of utmost importance to the University of North Alabama. Threats, acts of violence or threatening behavior against students, employees, visitors, third party vendors or other individuals by anyone on University property or on property controlled by the University will not be tolerated. Threats, acts of violence or threatening behavior includes but is not limited to: Physical acts, the intentional or willful damaging or destruction of property, verbal or written harassing and/or threatening statements, telephone calls or other electronic messages, or threatening gestures, expressions or other behavior such as stalking or intimidation. Verbal and/or written behavior also includes use of any method of communication such as email, comments posted on websites, or other social media, regardless of the ownership of the equipment used.

University employees who witness, receive, or are informed of any type of threat, act of violence or threatening behavior on campus or related to the campus should notify their supervisor or the University Police Department at 256.765.4357 as quickly as is possible. Additionally, employees should report any behavior or communication they have witnessed which they regard as threatening or violent, when that behavior may be acted upon on a University-controlled site or at a University-related function. Employees

bear the responsibility for making these reports regardless of the relationship between the individual who initiated the threat or threatening behavior and the person or persons who were threatened or were the focus of the threatening behavior.

Reports of threats, threatening behavior, or acts of violence made or committed by an employee will be investigated appropriately. If an investigation reveals cause for concern, the University may take action which could include the removal of the employee from campus until such time as a determination could be made regarding the employee's status. Disciplinary action will be commensurate with the level of severity of the threat, behavior or act, and may include, but will not be limited to, a written reprimand, suspension or termination of employment, and/or the filing of criminal charges, criminal arrest and/or prosecution of the employee involved.

No existing university policy, practice or procedure should be interpreted to prohibit decisions designed to prevent a threat from being carried out, a violent act from occurring, or a life-threatening situation from developing.

The University recognizes and respects the need for privacy and confidentiality of reporting parties and will, therefore, handle their reports with extreme discretion. Confidentiality will be maintained to the extent possible. Anonymous reports, which are not recommended, will be investigated to the extent possible, but the process may be restricted by the lack of full disclosure.

At no time does this policy prevent anyone from calling 911 should he/she feel there is an immediate threat to his/her own safety or the safety of others.

Any employee who applies for or obtains a protective or restraining order that lists university locations as protected areas must provide the University Police Department a copy of the petition and declarations submitted in support of the order, as well as a copy of any temporary or permanent protective or restraining order that is granted.

Student policies regarding threats, threatening behavior, and acts of violence are detailed in the Code of Conduct portion of the Student Handbook.

Approved by the Executive Council, 02/08/2010.

Editorial revisions approved by Shared Governance and the President, December 2022.

Minor editorial revisions approved by Shared Governance and the President, February 2026.

Procedures, Processes, and Programs

Administrative Leave

Emergency Procedures

The Isbell Scholar Program

Jury Duty

Ombudsman

Presentation of Diplomas at Commencement

Recruiting and Selection Procedures

Service Awards

Sick Leave

Tuition Remission (Remission of Tuition and Fees)

Verification of Employment

University Volunteer

PROCEDURES, PROCESSES, AND PROGRAMS

ADMINISTRATIVE LEAVE

In a rare situation, a regular employee may be given administrative leave time which does not result in a charge to any kind of leave with pay or loss of base salary. An example of administrative leave would be representing the institution at the request of the University. Should the need for administrative leave arise, it should be requested by the supervisor through the Office of Human Resources.

EMERGENCY PROCEDURES

In case of critical illness, accident, death, or fire on the university campus, emergency assistance should be summoned immediately by calling 911. The University Police Department also should be notified by calling Ext. 4357 or 256-765-4357 (HELP). The University also has a campus-wide emergency notification system designed to provide communications during a campus emergency. The system, Lion Alert, is available to all employees. To register for the system, follow this link: <http://www.una.edu/police/>.

THE ISBELL SCHOLAR PROGRAM: A SERVICE OPPORTUNITY FOR RETIRED UNA EMPLOYEES

University employees who are near retirement may submit a request to their immediate supervisor to be designated as an Isbell Scholar. This program allows employees an opportunity to be employed one additional year after retirement for the purpose of establishing an endowment fund to support the mission of the University. Up to one year of additional volunteer service is permissible but it must be requested annually and approved on an annual basis by the department chair or unit head and dean or cost center head. The policies and procedures for accessing this opportunity are outlined below.

Dr. Raymond Isbell first initiated the idea of contributing volunteer service after retirement in lieu of salary in 1997. In 2008, the program of funding scholarships in retirement was formalized and guidelines were developed. In 2011, the program was renamed after Dr. Isbell.

Procedures

Per current policy, the employee submits a letter to the President indicating his/her intent to retire. After employee planning to retire receives a letter from the President acknowledging retirement, employee writes a letter to his/her immediate supervisor expressing desire to volunteer services as an Isbell Scholar. Under this program an amount equal to his/her current salary and benefits (minus Social Security withholdings and, optionally, a minimal salary) is used to establish one or more endowment funds within the university. The letter requesting Isbell Scholar status must also provide plans for the endowment funds being created.

The immediate supervisor reviews the request and the plans for the endowment. Endowment plans are intended to enhance scholarship opportunities for UNA students and/or benefit the academic mission of the institution.

For unique endowment plan proposals, additional review may be merited. For faculty proposals, consultation should occur between the chair and the departmental faculty. The chair/supervisor forwards a recommendation to the appropriate dean or cost center head who reviews the proposal. He/she forwards a recommendation to the appropriate Executive Council member. The appropriate Executive Council member forwards a recommendation to the President. If approval is not granted, the Executive Council member must provide an explanation to the President prior to notification of the employee by the Executive Council member.

The President reviews all supporting materials and makes a final decision. If approval is granted, the President instructs the AVPHR to contact the employee to discuss total amount of potential contribution, TRS allowable earnings, desired salary, and amount(s) to be deposited into the endowment(s). Based on the discussion, the attached form is completed and distributed to the appropriate parties.

The Provost (for faculty) or AVPHR (for staff) prepares a letter from President to the employee detailing the salary and conditions for his/her voluntary service.

The Business and Financial Affairs Office provides to the employee monthly statements showing deposits into the endowment fund(s) and the current balance(s).

The Provost and HR Offices maintain a plaque of Isbell Scholars on display in Cramer Way.

Policies for Faculty Isbell Scholars

Since faculty members serving as Isbell Scholars are officially retired and volunteering services, they do not have voting privileges within the department, nor do they serve on university committees. They do not participate in activities such as tenure and promotion reviews, curriculum decisions, or other departmental matters that involve voting actions. Typically, faculty members are expected to teach a full load of classes and assist where needed with advisement and other instructional duties. In all cases, teaching assignments and duties rest with the department chair in consultation, as needed with the departmental faculty and/or college dean. Teaching assignments are for the fall and spring semesters only. In rare and unusual cases, requests for exceptions to teach in the summer may be considered but must be approved by the department chair, college dean, and Provost. It is strongly recommended that a faculty member desiring Isbell Scholar status meet with the department chair at the beginning of the process to clarify job responsibilities.

Approved by Executive Council on 11/15/2010

Last Revision, Amended by Executive Council on 8/25/14

JURY DUTY

Employees receive their full pay, based on normal hours worked, while absent from the University to serve on jury duty. The hours spent serving on jury duty will be considered hours worked. Additionally, the employee is entitled to keep his/her remuneration for serving on jury duty in addition to his/her pay from the University.

A copy of the court summons should be given to the employee's immediate supervisor for submission to the Office of Human Resources. Jury duty should be reported on the bi-weekly timesheet for non-exempt employees and the monthly leave report for exempt employees.

The employee should report to his/her immediate supervisor whenever he/she is excused from jury duty during hours that he/she normally would have been working for the University.

OMBUDSMAN

The Ombudsman provides an internal avenue for grievances and complaints. The responsibilities of the Ombudsman include resolving faculty, staff, and student complaints through involvement of all concerned parties; informing all parties of their rights that are established by law; seeking to resolve problems internally;

keeping all information confidential; establishing a relationship of trust with and among all constituencies; providing mediation as an alternative to litigation whenever possible and as necessary and proper, serving as an advocate for resolving the grievances of individuals who have been treated unfairly or improperly. The Ombudsman's office is located in Room 230 of the Guillot University Center.

PRESENTATION OF DIPLOMAS AT COMMENCEMENT

The University provides that a full-time member of the UNA Faculty or member of the Board of Trustees may make a diploma presentation at Commencement to any spouse, child, or parent who is receiving a degree.

RECRUITING AND SELECTION PROCEDURES

Requests to Fill a New/Vacant Position

All Requests to Fill/Advertise are created in the Online Employment System (OES) based on a position description. If a new staff position or faculty position is requested, the department requesting the position must send an updated position description to the Office of Human Resources who will create the Request to Fill/Advertise in the system. Once completed, the Request to Fill/Advertise will be sent to the department for approval. Once the Request to Fill has been approved at all levels, the Office of Human Resources (HR) will post the position as directed.

Posting and Advertising

All vacancies are posted on the OES for a minimum of seven days. The requesting department may designate the opening as a (1) Promotional Opportunity if it believes there may be current UNA employees who possess the required skills for the position. If the position is identified as a Promotional Opportunity, it will be posted only on the UNA Online Employment System and will be open only to UNA employees, or as a (2) Job Vacancy which is a posting open to any applicant, and is, at minimum, posted on the UNA Online Employment System, advertised in the Times Daily newspaper if requested, posted on the UNA Employment social media accounts, and included in the email digest. Faculty positions are typically designated as open until filled.

As part of the Request to Fill, the requesting party lists advertising sources and attaches any separate advertising copy items. Sources of advertising vary based on the level and scope of the vacant position. Upon receipt of the approved Request to Fill, HR posts and advertises the position as requested. The requesting department may also wish to list the position on various professional websites. These websites should be listed in the field provided for "other advertising sources" with a note to indicate how to list the position on each site.

Search Committees

Committees are no longer required for staff positions below the level of director but are required for those at the director level or above, for those that supervise others, and for faculty positions. These committees should typically be made up of no more than nine and no less than five members. The names of search committee members must be provided to the Office of Human Resources at the time that a Request to Fill/Advertise is requested. For Faculty positions, refer to the Faculty Handbook for specific instructions regarding the role and composition of search committees.

Screening Applications

Applications are screened by the Online Employment System based on screening questions in each posting. These questions are added based on the minimum qualifications for each position. Desired qualifications may also be gauged using the screening questions but should not be used to disqualify applicants.

Reviewing/Recommending for Interview

All applications and supporting materials will be received and initially processed by the Online Employment System and will be immediately available via the OES to the search committee. The committee members will review applications and supporting materials and develop an initial ranking of candidates. Interviews should be requested via email to employment@una.edu. Once applicants have been approved through the OES for interview, they may be interviewed as many times/ways as is necessary to make a final selection. Interview approval is only required once.

Recommending a Candidate for Hire

To make a recommendation for hire, the search committee chair email employment@una.edu to recommend a staff candidate. To make a recommendation for a faculty candidate, the hiring manager or their designee will complete the [Faculty Request to Hire](#) form.

Once an offer has been approved by all levels and sent to HR, HR will initiate a background check and create an employment letter for staff positions only. For Faculty positions, the Provost's office will prepare the employment letter upon receipt of an approved offer in the OES. Once a faculty contract has been signed, HR will receive a copy and initiate a background check at that time.

SERVICE AWARDS

The University recognizes full-time regular faculty and staff employees for attaining milestone service anniversaries, beginning at five years of service and every five years thereafter. Recognized service for awards must be continuous and uninterrupted. The service awards are presented at the annual faculty/staff picnic in the spring of each year to those who attained the milestone in the prior calendar year and who are still actively employed at the University.

SICK LEAVE (also referenced in the [Staff Handbook](#))

The University of North Alabama provides eligible faculty and staff employees sick leave to prevent loss of income.

Accrual of Sick Leave

Full-time regular faculty and staff employees are entitled to 96 work hours (12 workdays) of sick leave each year at the employee's regular rate of pay regardless of length of service. Eligible part-time and half-time employees are entitled to sick leave at a prorated share for hours worked. Provisional employees are not entitled to use sick leave until the end of the 90-day provisional period. Temporary employees are not entitled to sick leave.

Employees entitled to sick leave earn sick leave credit for all hours that they are considered to be in active pay status, which includes but is not limited to (a) normal work hours, (b) paid vacation, (c) paid sick leave, (d) paid jury duty leave, and (e) paid military leave.

Usage of Sick Leave

Categories of Sick Leave

There are various categories of sick leave, the usage of which are subtracted from the employee's sick leave balance.

Personal illness/accident leave and physician appointments: An employee may take sick leave if he/she is unable to work due to illness or injury or for health-related professional services which cannot be obtained outside regular work hours.

Maternity leave: Sick leave can be used for up to 6 weeks' postpartum. Should an employee desire to take the balance of her 12-week Family and Medical Leave Act (FMLA) allotment for extended maternity leave (beyond the postpartum period), she must use annual or unpaid leave to do so. Disabilities caused or contributed to by pregnancy, childbirth, or related medical conditions are treated the same as disabilities caused or contributed to by other medical conditions under the University's health or disability insurance and sick and annual leave plans.

Family illness/accident leave: Sick leave may be used for illness or injury of an immediate family member which requires the employee's presence. Immediate family is considered to be a spouse, child, stepchild, mother, father, brother, sister, mother-in-law, father-in-law, son-in-law, daughter-in-law, grandparent, or grandchild. Generally, the maximum amount that can be charged against sick leave for family illness/accident leave during a calendar year is 12 weeks for family members covered by the FMLA.

Bereavement leave (death of a family member): An employee may take time off due to a death in the immediate family and may charge the time off to sick leave. Immediate family is defined above. Proof of relationship to the family member may be required. Generally, the maximum amount that can be charged against sick leave for death of a family member is three days. Additional sick leave time may be granted under certain circumstances by the appropriate vice president.

Funeral leave: An employee may take sick leave to attend the funeral of family members (outside the immediate family) and friends. Time off normally is limited to one day or less for each occurrence.

Personal leave: An employee is allowed time away from work to take care of extraordinary legal or personal business matters. Personal leave should be approved in advance, and work requirements take priority over personal leave. Only two days per year of personal leave are authorized. (The year starts on January 1 and ends on December 31.) An additional three days of leave may be approved by the appropriate vice president when circumstances warrant such action. Personal leave is charged against the accrued sick leave balance and cannot be carried over from one year to the next.

On-the-job injury leave: An employee who is injured on the job may elect to charge the absence to his/her accrued sick leave in lieu of being paid under the University's Workers' Compensation Equivalent Program. After exhausting all sick leave, the employee may request that annual leave or compensatory time be used, but such requests must be made to the Office of Human Resources.

Miscellaneous uses: Sick leave may be taken to attend classes during the workday if approved by the supervisor or for absences resulting from inclement weather when the University is not closed may be charged against sick leave.

Planning and Taking Sick Leave

For sick leave purposes, a day is considered 8 hours for full-time regular staff employees, and as the actual hours the employee was scheduled to work for regular staff employees who work less than 40 hours per week.

Use of sick leave for authorized non-emergencies, (e.g., medical, dental, and optical appointments) should be planned in advance, and coordinated with the employee's supervisor.

Sick leave may be taken in increments of one-quarter of an hour with seven minutes rounded down to the nearest quarter hour and eight minutes rounded up to the nearest quarter hour. Sick leave may not be used for vacation time.

Requesting and Reporting Sick Leave

All sick leave hours taken by monthly-paid employees are to be reported on the leave report in Self-Service Banner by the employee and submitted to the appropriate supervisor. Non-exempt employees are to report sick leave hours taken on the bi-weekly timesheet in Self-Service Banner.

All cost center heads are responsible for monitoring absences within their areas and for ensuring that leave is reported properly.

Advanced Sick Leave

Upon the recommendation of the supervisor and department head, full-time regular employees may be authorized to take small amounts of sick leave in advance of earning said leave under emergency conditions, normally not to exceed 24 hours. An additional 16 hours of sick leave may be approved by the appropriate vice president when circumstances warrant such action. Advanced sick leave must be repaid from the next earned sick leave hours. Any sick leave time taken in advance, but not repaid with earned leave, must be repaid upon termination.

Donating Leave

An employee in a position with "regular" status, who must be absent due to sickness or to care for a seriously ill member of his/her immediate family as defined by the [Family Medical Leave Act](#), and who has exhausted his/her sick leave, annual leave, and compensatory time may be given annual leave or sick leave by another employee. The supervisor of an employee needing donated leave may solicit leave by contacting other employees directly or by an email to all faculty and staff employees. To donate leave, employees contact Human Resources, stating the desire to donate leave to another employee. Human Resources reviews and processes the requests according to policy and deducts only the needed hours per pay period on a proportional basis from each donor's appropriate leave balance and credits the recipient with the designated hours. An employee receiving donated leave will remain on the payroll with all benefit entitlements until all donated leave has been exhausted, he/she becomes eligible for long-term disability, or the sickness no longer exists, whichever comes first.

- No more than 80 hours per year may be donated by any individual employee.
- Leave cannot be donated if it results in a negative leave balance for the donor.
- An employee may not be absent on leave (a combination of annual leave, sick leave, personal leave, compensatory time, and donated leave) longer than 12 weeks during each calendar year, in cases other than his or her personal sickness. In cases of personal sickness, the employee may qualify for long-term disability.

General Sick Leave Policies

Sick leave is not intended to be nor may it be used for additional annual leave time nor may it be converted to annual leave. However, an employee may choose to use annual leave or compensatory time instead of sick leave for any category of sick leave. If the qualifying sick leave extends beyond the employee's original authorized annual leave period, the additional leave time may be counted against accumulated sick leave.

The employee's supervisor has the responsibility to ensure that the employee uses sick leave for its legitimate purposes. Until the supervisor is satisfied that the employee has used sick leave properly, he/she may recommend the withholding of sick leave pay. Upon request of the supervisor, the employee may be required to show evidence of his/her illness or of the necessity to be absent to attend to a family member during an illness in the form of a medical certificate from a physician.

If the President notifies employees in advance that a particular day or half day is designated as additional time off (holiday or inclement weather), an employee on sick leave is not charged sick leave for the time off. Additionally, if an employee is on annual leave and becomes ill, or if other circumstances occur which qualify the employee for sick leave, the leave time may be counted against sick leave, if certification is provided verifying the sickness or qualifying circumstances.

If the employee must be on an extended qualifying sick leave (e.g., sickness) and wishes to maintain his/her accumulated sick leave balance, the leave may be taken as annual leave. Furthermore, an employee may request leave without pay in order to preserve his/her accrued leave (to "freeze leave"). If the employee elects to freeze his/her leave, he/she has technically gone on leave without pay and is not entitled to accrue leave until he/she returns to work.

An employee on sick or temporary disability leave should return to work in his/her normal job as soon as medically feasible. An employee returning to work after such a leave may be requested to supply the University with a doctor's statement certifying that he/she is able to return to his/her normal duties. An employee is not permitted to work against the advice of his/her doctor. If an employee chooses not to return to work after being released by a physician to do so, the employee has resigned his/her position.

Accrued sick leave from another Alabama public educational institution who participates in the Retirement System of Alabama is transferrable to the University of North Alabama.

Any employee who violates or abuses sick leave is subject to disciplinary action, including termination.

Sick Leave Carry-Over

Unused sick leave is carried forward on December 31 of each year. There is no limit on the number of days that can be carried forward. An employee's sick leave balance appears on his/her monthly or bi-weekly paycheck stub. Leave balances may also be viewed by the employee at any time in Self-Service Banner.

Sick Leave and Employment Separation

When the employee/employer relationship ceases to exist, sick leave is handled according to the following:

Retirement: Sick leave days are certified as additional service credit to the Alabama Teachers' Retirement System if employee is vested, and is a Tier 1 member. Tier 2 members are not eligible for sick leave service credit certification.

Resignation or Dismissal: If vested, Tier 1 employees' accrued sick leave is certified to the Alabama Teachers Retirement System upon separation. Tier 2 employees are not eligible for sick leave certification. If an employee is not vested, a record of his/her final sick leave balance is placed in her/her personnel file. If an employee is rehired at a later date, his/her sick leave is reinstated.

TUITION REMISSION (REMISSION OF TUITION AND FEES)

As a part of its fringe benefits package, the University of North Alabama provides remission of tuition to eligible employees and to their spouses and qualified dependent children. Eligibility guidelines for this benefit include, but are not limited to, the following:

- Must be a full-time or part-time, regular employee in an active status, ~~who has been in such status with the University for at least ninety days~~ *(this requirement was placed on moratorium on July 8, 2021 and remains there)*; or
- Must be an adjunct; limited to employee-only remission (no spouse or dependent child benefit); and
- Must be employed at the University at the beginning of the semester in which the individual is enrolled; or
- Must be a retiree of the University (all references to employees in this policy apply equally to retirees of the University, even if not expressly written); or
- Must be the eligible spouse or dependent child of an employee who died or retired while in eligibility status for this benefit.

Employees who wish to take advantage of this benefit must submit the designated electronic form by the appropriate deadline. The Bursar's Office establishes an application deadline each semester, and the Office of Human Resources notifies all employees of the same.

General Remission of Fees Information

- The employee's failure to submit the required electronic form for remission of tuition for dependent children, spouse, or self, prior to the deadline, may result in the employee's forfeiting his or her eligibility to receive the remission of tuition benefit for the covered academic semester.
- The remission of tuition and fees benefit is in the form of a remission and is not paid in cash; it is also not refunded in the event of withdrawal.
- Employees, spouses, or eligible dependents who are eligible for a university-related scholarship must waive the remission benefit if the scholarship is accepted. Certain university-related scholarships such as service-based scholarships are exempt from this policy and may still be assigned to the eligible recipient. In no case will a combined scholarship and remission benefit exceed the maximum amount of scholarship awarded to a UNA student who is ineligible for the tuition remission benefit.
- Tuition remission is only in the form of reduction in University charges and will not be paid in cash. However, employees, spouses, or eligible dependents who are eligible for UNA Foundation-related and/or other scholarships representing real money (not tuition discounts) may still receive these awards in combination with the tuition remission benefit.
- Eligible spouses and dependents who are full-time, degree-seeking students at UNA who are otherwise qualified for the University study abroad scholarship, may receive this scholarship for participation in an approved study abroad program while receiving the tuition remission benefit.
- If an employee's employment is terminated, remission of tuition for the individual, his/her dependent children, and spouse will be discontinued as of the date of termination. If a child and/or spouse of an employee is enrolled in a course at the time of termination, s/he or they will be permitted to complete the course under the tuition remission benefit. If an employee is enrolled in a course and is terminated or voluntarily separates from the University, s/he must reimburse the University for a prorated share of the fees covered by the remission of tuition benefit in order to continue in the course.
- In the event an employee, his/her spouse, and dependent children become ineligible for the tuition remission benefit, any university-related scholarship previously awarded, but waived per this policy, may be reinstated for any remaining eligibility period if all other eligibility requirements are still met.

- An employee's benefits under this policy cannot be combined with the Early College Program.
- Employees, their spouse, and dependent children seeking to use this benefit with summer and interim courses must employ late registration and will only be permitted to enroll in courses that have already reached sufficient enrollment numbers to be offered as per university policy.
- An employee or retiree cannot combine his or her benefit under this policy with that of a spouse as listed above.
- A retiree employed by the University in an adjunct or temporary capacity cannot combine his/her benefits as an employee and a retiree.

Employees

There is a full remission of tuition and fees for both graduate and undergraduate level courses taken at UNA by any eligible employees of the University.

- A leave of absence, other than that for illness, disability, faculty development leave, or active military service, classifies an employee as inactive.
- Failure to teach in any summer term does not affect this benefit, provided that the employee has an employment letter for the subsequent fall term.
- Individuals wishing to apply for remission of tuition and fees must be admitted to UNA prior to the initial registration and must be eligible to register for each term in which a course is to be taken.
- Courses for employees under this benefit are available only on a space available basis.
- Courses must be registered for during late registration. The late registration fee is waived. If employees register prior to late registration, their registration will be voided, and they will have an opportunity to re-enroll during late registration on a space-available basis.
- Eligible employees may receive this benefit for no more than six credit hours during any fall, spring, or summer term. There is no limit to the number of terms an eligible employee may receive this benefit.
- The maximum amount UNA will pay on behalf of a qualifying employee for remission of tuition and fees per semester shall not exceed the cost for six credit hours of undergraduate or graduate classes. The employee will be responsible for all costs incurred in excess of this allocation.
- Remission of tuition and fees for special programs of study scheduled outside the regular fall and spring terms will be limited to: (1) 1.5 course hours per four weeks; or, (2) six graduate course hours per each four months (16 weeks); or, (3) two graduate or two undergraduate courses (three hours each) during each of the fall, spring, and summer terms. Course hours taken with the remission benefit shall not exceed 18 hours per calendar year. The maximum amount paid for a course hour for special programs of study (undergraduate or graduate) will be the standard amount for a regular graduate course hour.
- An eligible employee may audit a class if approved by the supervisor or department head.
- Audited courses do not count towards the six hour per semester limit.
- Upon the recommendation of the supervisor and/or department head, an employee may be given special permission to take two continuing education courses each semester in lieu of two regular graduate or undergraduate courses. Tuition and fee remission for any continuing education class will not exceed the standard amount for a regular graduate course. The total number of continuing education courses cannot exceed two per term.

With the approval of his or her supervisor, a staff employee may be permitted to take a course under this benefit during the normal workday or during the one-hour lunch break. When a course is taken during the normal workday, the time spent for class, laboratory, or other required attendance, in excess of the lunch hour, will be charged against the employee's accrued personal leave, compensatory time (for non-exempt

employees, if applicable), and/or annual leave as directed by the employee. Employees in this classification may not take a course that requires them to be away from their regular work station during the normal workday for more than one hour and thirty minutes on any day (other than for a final examination) or when it is the judgment of their immediate supervisor that their work cannot be left unattended.

- Faculty may not take a course that conflicts with their teaching schedule.
- The approval authority for employee remission of tuition and fees is the employee's immediate supervisor.
- When the employee's tuition remission application is approved, the employee receives an email notifying him/her of the approval.
- Temporary employees whose employment with UNA is shorter than the length of a full semester are not eligible for this benefit.

Dependent Children

The University provides remission for 100% of the basic tuition and mandatory fees (exclusive of course-specific fees and other related charges, i.e. books, supplies, room and board) for enrollment in the undergraduate program at UNA for eligible dependent children of eligible full-time regular employees or retirees during fall and spring terms.

The University provides remission for 75% of the basic tuition and mandatory fees (exclusive of course-specific fees and other related charges, i.e. books, supplies, room and board) for enrollment in the undergraduate program at UNA for eligible dependent children of eligible full-time regular employees or retirees during summer terms.

Qualifying children are eligible for the tuition remission benefit if a parent meets the eligibility guidelines above.

Eligible children are those who meet all the following conditions:

- Are the natural children, stepchildren, or legally adopted children of the eligible employee who:
 - Are dependents of the employee as determined by eligibility for federal income tax purposes, by a qualified child support order, or by other appropriate definitions (birth certificate, certificate of adoption, marriage certificate – for stepchildren, etc.);
 - Have not received or completed requirements for a baccalaureate or equal degree from a four-year degree granting institution;
 - Are eligible for admission and matriculation under existing university policies; and
 - Have not reached their 26th birthday prior to the term for which they will next enroll.

This benefit is limited to the maximum of the necessary number of credits to obtain one baccalaureate degree (including reasonable double major and approved minor programs of study), but not to exceed ten semesters. Enrollment for any credit during a spring or fall term constitutes a full term of entitlement. Summer and interim terms are counted as one-half of a semester for this purpose.

Spouses

The spouse of an eligible employee is eligible for remission of tuition and fees for one course per fall and spring semesters and summer sessions under the same provisions as stipulated for employees above, except for continuing education courses.

Remission of tuition for special programs of study for a qualifying spouse will be one half that of an employee.

Spouses of eligible employees who are enrolled as full-time students in a degree-seeking program may enroll in classes in accordance to their classification (freshman, sophomore, junior, senior, graduate). The equivalent tuition remission benefit of one course (three credit hours) will be applied to the student's account. These students do not need to wait for late registration during the fall and spring semesters, provided they are enrolling in more than one class in that semester, but they must register for any summer course that they wish to apply the tuition and fees benefit for in late registration as stipulated above.

Approved by the Board of Trustees, May 11, 1979

Revised, March 16, 2007

Last Revision, June 13, 2019

VERIFICATION OF EMPLOYMENT

A third party asking for verification of employment and/or employment data about an employee is generally given only confirmation of employment and dates of employment.

Information beyond confirmation of employment and dates of employment are provided only upon the request of the employee and through the employee. Upon receiving such requests, the employee may be provided either a letter of recommendation or, at the discretion of the University, a letter certifying requested employment data. Once the letter is given to the current or former employee, he/she is free to distribute it in any way he/she desires.

If a third party (e.g., lending institutions) forwards forms to the Office of Human Resources requesting employment data, the forms are prepared by the Payroll Office and returned to the third party if a release, signed by the employee, is enclosed.

UNIVERSITY VOLUNTEER

The term "employee" does not include an individual who volunteers to perform services for the University if:

- The individual receives no compensation or paid expenses reasonable benefits, or a nominal fee to perform the services for which he or she volunteered; and
- Such services are not the same type of services which the individual is employed to perform for the University.

All volunteers of the University are required to sign a [Volunteer Agreement](#) and are subject to a criminal background check.

General Information and Statements

ADA Compliance Statement

Accidents Involving Visitors and Students

Admission to Athletic Events

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Premium Deductions)

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Conservation

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Whistleblowing/Airing of Grievances

Appendix A

GENERAL INFORMATION AND STATEMENTS

ADA COMPLIANCE STATEMENT

UNA is committed to full compliance with the Americans with Disabilities Act (ADA) as amended by the Americans with Disabilities Act Amendments Act (ADAAA), and Section 504 of the Rehabilitation Act of 1973, which prohibit discrimination against qualified persons with disabilities, as well as other federal and state laws pertaining to individuals with disabilities. Under the ADA and its amendments, a person has a disability if he or she has a physical or mental impairment that substantially limits a major life activity. The ADA also protects individuals who have a record of a substantially limiting impairment or who are regarded as disabled by the institution whether qualified or not. A substantial impairment is one that significantly limits or restricts a major life activity such as hearing, seeing, speaking, breathing, performing manual tasks, walking or caring for oneself.

Inquiries about ADA/504 Compliance should be directed to the Associate Vice President for Human Resources or the Director of Disability Support Services and ADA Compliance.

Reasonable Accommodations

Pursuant to the ADA, UNA will provide reasonable accommodation(s) to all qualified employees with known disabilities, where their disability affects the performance of their essential job functions, except where doing so would be unduly disruptive or would result in undue hardship.

An employee with a disability is responsible for requesting an accommodation by completing the online [Employee Accommodation Request Form](#). If an employee cannot complete the online form, a paper form can be made available in both the Office of Human Resources and Disability Support Services. After the Employee Accommodation Request Form is received and reviewed, Disability Support Services will contact the employee to discuss any additional documentation needs. If accommodations are recommended, Human Resources will work with the employee's supervisor to identify which essential functions of the position are affected by the employee's disability and what reasonable accommodations could enable the employee to perform those duties.

ACCIDENTS INVOLVING VISITORS AND STUDENTS

An injury sustained by a visitor or student and accidents involving a visitor or student should be reported to the Business and Financial Affairs Office.

ADMISSION TO ATHLETIC EVENTS

The University offers season tickets to athletic events at reduced rates to full-time employees and retirees. Discounted tickets must be purchased during the regular university season ticket sale. No discounts will be given on individual game tickets. More information can be obtained from the [University Ticket Office](#).

BOARD OF TRUSTEES

The governing control of the University is vested in a [Board of Trustees](#) established by action of the State Legislature (HB 650, Act No. 773, September 9, 1967, Alabama Code Section 16-51-1 through 16-51-15 [1975] [1987]). The Board is composed of the Governor as president *ex officio*, the State Superintendent of Education

as a member *ex officio*, and nine members--six within the area comprising the seventh and eighth congressional districts and three from the State at large. The trustees are appointed by the Governor, by and with the advice and consent of the State Senate, and hold office for a term of six years or until their successors are appointed and qualified.

The President of the Student Government Association serves as a nonvoting, *ex officio* member at the pleasure of the Board.

CAFETERIA BENEFITS PLAN (TAX-EXEMPT PREMIUM DEDUCTIONS)

The University's Cafeteria Plan currently exempts from federal, state, and FICA tax any payroll-deducted premium paid by the employee for health/vision, dental, cancer, accident, hospital indemnity, or supplemental vision coverage. At the end of the tax year, all tax exemption amounts are deducted from gross wages subject to tax, and the net amount is reported in the appropriate block on Federal Form W-2.

In order to waive participation in the Cafeteria Plan, please contact HR.

CONFIDENTIAL INFORMATION

An employee of the University may have the occasion to deal with information which is of a confidential nature. It is imperative that the employee respect the confidentiality of information by not discussing it with anyone except those in a position to have a need for the information. If there is doubt as to whether the information is confidential, the employee should ask his/her supervisor for guidance.

CONSERVATION

The University has a responsibility for both economy and conservation in the use of energy. Lights should be turned off when offices, rooms, and buildings are not occupied. Equipment requiring electricity should be turned off when not in use. Conservation procedures include removing lights not essential to safety and security and using proper temperature settings.

HOUSEKEEPING

All employees are expected to maintain good housekeeping standards in their work areas. Supervisors should allow the employee clean-up time as required in his/her work area and job.

IDENTIFICATION CARDS

All employees of the University are issued a photo-I.D. card (Mane Card.) This card serves as the University's official identification card, library card, and personal debit card that can be used on campus and at various off campus locations. The card may also grant door access to the building/rooms that the employee is authorized to enter. To obtain the card, all employees should go to the [Mane Card Office](#) located in The Commons, ground floor, and provide a form of legal photo identification such as a driver's license, military I.D., passport,

etc. Employees will be asked to read and sign a Mane Card Agreement. If the employee has been issued a Mane Card in the past, such as a student card, he/she will be asked to surrender the previously issued card prior to receiving a new card with the appropriate employee classification, such as faculty, staff or adjunct instructor. Upon termination of employment, employees must return their I.D. cards to the Mane Card Office.

INDEBTEDNESS AND COLLECTIONS

The University is required by state law to honor garnishments against an employee's wages. The Payroll Office will notify an employee when a garnishment order is received and advise the employee of the total amount due, the amount of the deduction, and the starting date of the salary deduction.

SAFEGUARDING OF KEYS

Offices, rooms, storage units, and buildings are to be secured and locked when not in use. Keys to university facilities are provided only to authorized personnel and are to be safeguarded from improper use. Upon termination of employment or change of location, all keys are to be returned to the immediate supervisor. Any evidence of intrusion or theft should be reported promptly to the supervisor and to the University Police Department.

LICENSURE AND REGISTRATION

When a license or registration is required in order for an employee to perform certain duties, it is the responsibility of the employee to acquire and to renew such license or registration. The revocation of or failure to renew a required license or registration could result in the downgrading of the employee's classification or termination of employment.

[LOST AND FOUND](#)

The lost and found is located at the University Police Department. To view information regarding lost and found, please click on the link above.

MAINTENANCE AND ENVIRONMENTAL SERVICES

All personnel are expected to exercise proper regard and responsibility for the security, use, and care of university-owned property. Maintenance and custodial needs are reported to the [Facilities Administration and Planning Department](#).

NOTIFICATION OF CHANGE OF STATUS

Any change in an employee's status should be reported to the Office of Human Resources. If the information in the employee's file is not correct, problems may arise concerning taxes, employee benefits, and other important matters.

Employment Status: Changes in employment status (i.e., promotion, transfer, disciplinary action, resignation, retirement, training, awards, etc.) are reported by the employee's supervisor to the Office of Human Resources.

Personal Data: Change of name, marital status, dependents, beneficiary, telephone number, and address are of vital importance in the employee's interest. These changes should be reported promptly by the employee to the Office of Human Resources.

OFF-DUTY CONDUCT

The University does not dictate how employees run their personal lives while away from the job. On the other hand, there are times when an employee's off-duty conduct reflects on the University. Therefore, university employees are asked to conduct themselves in such a way that they do not discredit or tarnish the image of the University or the positions that they occupy.

PAYROLL INFORMATION (also referenced in the [Staff Handbook](#))

Payroll Frequency: All nonexempt employees are paid on a bi-weekly schedule. Exempt employees are paid monthly.

Payroll Deductions: The University makes payroll deductions required by state and federal laws and court orders as well as voluntary deductions authorized by the employee and approved by the University.

Statement of Earnings and Deductions: Each payday, each university employee receives a copy of his or her statement of earnings and deductions as a part of his/her payroll check or direct deposit information. These figures reflect the employee's gross and net pay and deductions for the period as well as totals for the year. This information can also be viewed at any time via Self-Service Banner.

Direct Deposit: A university employee may request the Payroll Office to deposit his/her payroll check directly to his/her bank. Direct deposit can be made to more than one financial institution. An employee may sign up for direct deposit by completing a [direct deposit form](#) and returning it to the [Payroll Office](#).

PERSONAL ATTIRE AND APPEARANCE

The University does not have a specific dress code. Therefore, judgment with regard to proper attire is left to the employee. All employees are advised to be mindful of their personal hygiene, neatness of attire, and cleanliness of apparel. It is expected that each employee chooses clothing that is modest and in good taste. Radical departure from conventional dress or grooming is not advised. Dress that results in distraction of other employees or disruption of the department's work, as determined by the department head, will not be permitted.

PERSONAL BEHAVIOR

Employees should be courteous of others in both class and office areas by refraining from loud conversation and/or other noises.

PERSONAL MAIL

Personal mail or packages should not be regularly delivered to an employee through the University Post Office or receiving department.

PETS IN THE WORKPLACE

In order to create a proper, safe, and healthy environment for the conduct of academic programs and support at the University, pets (with the exception of fish) are not allowed to accompany employees to work in any of the buildings owned and operated by the University. Exceptions to this policy are granted for service animals that have been approved as an ADA accommodation through [the interactive process](#) the Offices of Human Resources and Disability Support Services. Emotional support animals are not service animals and are not allowed in the workplace.

PUBLIC RELATIONS

University employees help shape the University's image among students, visitors, friends, supporters, alumni, and members of the community. Therefore, each employee is, in effect, a public relations representative. Courtesy, helpfulness, respect, and friendliness make for good public relations. All university employees are expected to help make the campus "user friendly" so as to foster good public relations and the recruitment of new students.

RELIGIOUS/PERSONAL CONVICTIONS

If an employee is asked or required to perform duties to which he/she objects because of religious or other personal convictions, he/she should discuss the matter with his/her supervisor. If at all possible, religious convictions of employees are honored when brought to the University's attention.

Unscheduled religious holidays of importance to the employee may be observed, but the employee is charged annual leave, personal leave, or leave without pay. Such leave is subject to the approval of the employee's supervisor.

SAFEGUARDING UNIVERSITY EQUIPMENT

All employees who handle university equipment are responsible for the care, security, and proper maintenance of such equipment while it is under their control. Employees are not permitted to use university equipment or property for personal reasons. Unauthorized or improper use or removal of university equipment or property is prohibited under penalty of severe disciplinary action, including termination of employment by the University and prosecution under the criminal statutes of the State of Alabama. The

desired removal of University property should be handled through the Facilities Administration and Planning Department. Misuse of University property should be reported to the Vice President for Business and Financial Affairs.

SERVICE DATE

An employee's service date is the date he or she was employed full-time by the University after which there has been no break in service by reason of termination of employment. This is the date upon which annual leave accruals are based.

SHARED GOVERNANCE STANDING COMMITTEES

Shared governance is a means of university management in which each chief group in the university community participates in decision making. The shared governance structure, standing committees, document, and steps for making change can be found at the link above.

STATE ETHICS LAW

As employees of a state-supported institution, all employees of the University of North Alabama are subject to applicable Alabama state ethics laws. Below are highlights of some of the provisions that are applicable to UNA employees. The Ethics Commission website provides detailed information on all guidelines contained in the Ethics Act. Visit the website at: <http://ethics.alabama.gov/>

1. Legal Duty to File Statement of Economic Interest

Ala. Code § 36-25-14 requires all full-time public employees whose base pay is \$97,000 or higher, and/or every full-time public employee serving as a supervisor to file a Statement of Economic Interests no later than April 30. Each person who meets the necessary criteria, regardless of whether they retired the previous year or served/worked in the public position for any time (even a portion of one day) during the previous year, is required to file. The duty of an employee to comply with the Ethics Act, including the duty to file the Statement of Economic Interests, rests with the employee, not UNA. Employees who are required to file but fail to timely file a Statement of Economic Interests with the Ethics Commission may be fined \$10.00 per day not to exceed \$1,000.00 or be charged with a Class A misdemeanor for intentional failure to file [Ala. Code§6-25-14(d) & (e)].

2. UNA Requirement to Timely Provide Proof of Training to Human Resources

UNA requires all new employees to complete the ethics training (regardless of salary level). It is each new employee's responsibility to complete the training within 90 days of your hire date. You must print the certificate after you complete your training and email a copy of it to humanresources@una.edu. The training is online at: <http://www.ethics.alabama.gov/training/>

3. Criminal Act to Use Position for Personal Financial Gain/Rules for Contracts with UNA

It is a violation of the State Ethics Code (felony or misdemeanor, depending on facts) for a UNA employee to use his/her position with UNA to obtain personal gain for himself/herself, a family

member or any business with which the employee is associated. UNA/state property, including equipment, technology, supplies, tools, and building materials are to be used for conducting official business of UNA. As such, private or personal use of UNA/state property for personal gain is prohibited. Faculty and staff shall not make use of property, personnel, or students of UNA for the purpose of obtaining personal compensation from sources external to UNA or use the University's name in a way that would suggest that a personal activity or endeavor is sponsored or endorsed by UNA. (See Alabama Code § 36-25-5). Ala. Code §36-25-11 prevents any public official or public employee, or members of their households, or any businesses associated with these people from entering into a contract that will be paid for using government funds unless the contract has been awarded through a competitive bid process. The contract must then be filed with the Ethics Commission within ten (10) days of its execution.

4. More Information on Amendments to Ethics Act & Gifts to Public Employees

Employees are prohibited from soliciting or accepting any of the following “things of value” for the purpose of influencing official action: any gift, benefit, favor, service, gratuity, tickets or passes to an entertainment, social or sporting event, unsecured loan, other than those loans and forbearances made in the ordinary course of business, reward, promise of future employment, or honoraria or other item of monetary value. Furthermore, family members of public employees may not receive anything of value for the purpose of influencing official action. Excluded from the definition of “thing of value” (and thus are permitted to be received by employees) are:

- a. Greeting cards, and other items and services with little intrinsic value which are intrinsic value which are intended solely for presentation, such as plaques, certificates, and trophies, promotion items commonly distributed to the general public, and items or services of de minimum value.
- b. Loans from banks and other financial institutions on terms generally available to the public
- c. Opportunities and benefits, including favorable rates and commercial discounts, available to the public or to a class consisting of all government employees
- d. Rewards and prizes given to competitors in contests or events, including random drawings, which are open to the public.
- e. Anything for which the recipient pays full value.
- f. Hospitality, meals, and other food and beverages provided to a public official or public employee or the spouse of the public official or employee, as an integral part of an educational function, economic development function, work session, or widely attended events
- g. Meals and other food and beverages provided to the public employee not to exceed \$50 per meal with a limit of two hundred fifty dollars (\$250) per year.

Additional information about gifts can be found here: <http://ethics.alabama.gov/law.aspx>. Convictions of intentional violations of Ethics Laws are class B felonies (2-20 years in prison & fines up to \$30,000).

5. Ethics Law Pertaining to UNA Employees Selling Textbooks

Violations of the Ethics Act occur if a UNA employee sells an instructor edition or complimentary copy of a textbook or any related materials (study guides, test banks, supplementary CDs, etc.) to anyone, including a student, bookstore or online textbook reseller, unless the proceeds of that sale are retained by the University. For example, sale proceeds can be deposited into a departmental account to purchase office supplies or institutional purposes. Employees selling complimentary

course materials are responsible for providing documentation showing that they have not personally profited.

6. Criminal Act to Use Property/Human Labor for Personal Gain

It is a violation of the State Ethics Code (felony or misdemeanor, depending on facts) for UNA employees to use or cause to be used equipment, facilities, time, materials, human labor, or other UNA/state property under their discretion or control for the private benefit or business benefit of that employee, except as otherwise provided by law or pursuant to a lawful employment agreement. It is also illegal for a person to solicit a UNA employee to do these things for that person's private or business benefit, except as otherwise provided by law. (See Alabama Code § 36-25-5). This includes using students and/or employees to perform personal errands or favors for non-work-related purposes.

7. Employment of Members of the Same Family

Alabama law (§ 41-1-5) prohibits an employee of UNA from appointing (hiring) any person related to him/her within the fourth degree of affinity to any job with UNA. If this rule is violated, the appointment is deemed void and the person can be charged with a misdemeanor, fined up to \$500, and imprisoned for up to one year. The Employee Policy Manual and Handbook states that no employee is permitted to work within the chain of command when work responsibilities, salary, hours, career progress, benefits or other terms and conditions of one relative could be influenced by the other relative.

8. Selections From the Alabama Fair Campaign Practices Act – Candidate Filing

Guide <https://www.sos.alabama.gov/alabama-votes/candidates/candidate-resources>. Below are selected sections from the above-referenced resource.

- Rights of City, County, State Employees – Section 17-1-4: City, county, and state employees have the right to participate in city, county, or state political activities to the same extent as any other citizen of the state, including endorsing candidates and contributing to campaigns. City, county, and state employees also have the right to join political clubs and organizations and state and national political parties. They may also publicly support issues of public welfare.
- Improper Use of State Property, Time, Etc. for Political Activities – Section 17-17-5: No state, county, or city employee shall use public funds, property, or time for any political activity.

It is unlawful for any officer or public employee to solicit any type of political campaign contributions from other employees who work for the officer or employee in a subordinate capacity.

It is unlawful for an officer or public employee to coerce or attempt to coerce a subordinate employee to work in a political campaign or cause.

- Use of State-Owned Property – Sections 36-12-60 through 64: It is unlawful for any state officer or employee to use or to permit to be used any state-owned property including stationery, stamps, office equipment, office supplies, or automobiles for political activity.

State employees are also prohibited from transporting campaign literature either in a state vehicle or

in a private vehicle while mileage is being paid for by the state.

STATEMENT ON PERSONAL VISITORS/CHILDREN IN THE WORKPLACE

The University values an atmosphere that fosters a healthy balance between workplace obligations and family matters. However, the presence of visitors, including children, friends, or other family members during work hours is unsuitable as it causes decreased productivity due to distractions and disruptions, may violate confidentiality rights, creates health/safety risks to the visitors and employees, and creates liability concerns for the University.

Extended visits in the workplace from individuals who do not have official business at the University are prohibited. Visits by friends, children, or other relatives at the employee's worksite are to be kept to occasional, casual visits of short duration. It is inappropriate, other than in a valid family emergency, to bring a child to the workplace. In labor-intensive areas, where machinery exists, no personal visitors should be allowed to visit under any circumstances.

All University employees should make arrangements for the care of their children that will assure that children are not frequently or routinely in university workspaces during working hours including after school or on school holidays. Any child with an illness that prevents the child from going to a childcare facility or from attending school should not be brought to the workplace. If employees must attend to their children, and short-term childcare cannot be arranged, employees should take sick or annual leave, as appropriate per University policy, to accommodate their children during working hours.

Approved by the University Executive Council – June 20, 2017

SUGGESTIONS

The University's work environment is continually changing, and employees' suggestions on improvement of university operations, policies, procedures, and practices are always welcome.

TELEPHONE USE

Personal telephone calls while on work time, whether on a university phone or a personal cell phone should be kept to a minimum. Employees are prohibited from using the University's long distance service for personal reasons. Supervisors are required to observe the frequency of personal calls and address any issues involving excessive personal calls.

UNIVERSITY MISSION AND VISION, GOALS, AND VALUES

UNIVERSITY ORGANIZATIONAL STRUCTURE

WHISTLEBLOWING/AIRING OF GRIEVANCES

Employees have an obligation to notify their supervisors, others in their chain of supervision, or appropriate university officials of a reasonable belief that a wrongdoing on the part of any member of the University community has occurred. An employee who notifies a member of his/her chain of supervision or a member of the administration of improprieties in the application of policies and procedures, administration of programs, execution of official duties, handling of funds, etc., is protected against retaliatory actions.

APPENDIX A

Center Director Appointment Procedures

1. Identification of Search Committee. Search committees will be formed by the cost center head/dean to whom the center reports. The search committee shall select its chair.
2. Development of Job Advertisement. The committee, in consultation with the cost center head/dean, shall write an internal job advertisement that represents the position and post on campus as needed.
3. Receipt of Applications. All applications and supporting materials will be received by the search committee.
4. Review of Applications/Interview. The search committee shall specify criteria to be used to evaluate all applicants. Using these criteria, the committee shall review all applications for the position and select candidates for interview. With the concurrence of the cost center head/dean, interviews will be conducted as needed.
5. Final Evaluation of Candidates and Recommendation for Hiring. Upon conclusion of interviews and deliberations, the search committee shall recommend candidate(s) to the cost center head/dean for the position. The cost center head/dean will endorse the recommended candidate for submission to the appropriate Vice President, who will notify the successful candidate via letter.